

OREGON'S HISTORY: PEOPLE OF THE NORTHWEST IN THE LAND OF EDEN



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Oregon's History: People of the Northwest in the Land of Eden

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TABLE OF CONTENTS

[Introduction](#)

[Licensing](#)

1: Chapters

- [1.1: Origins- Indigenous Inhabitants and Landscapes](#)
- [1.2: Curiosity, Commerce, Conquest, and Competition- Fur Trade Empires and Discovery](#)
- [1.3: Oregon Fever and Western Expansion- Manifest Destiny in the Garden of Eden](#)
- [1.4: Native Americans in the Land of Eden- An Elegy of Early Statehood](#)
- [1.5: Statehood- Constitutional Exclusions and the Civil War](#)
- [1.6: Oregon at the Turn of the Twentieth Century](#)
- [1.7: The Dawn of the Civil Rights Movement and the World Wars in Oregon](#)
- [1.8: Cold War and Counterculture](#)
- [1.9: End of the Twentieth Century and Beyond](#)

[Index](#)

[Glossary](#)

[Detailed Licensing](#)

Introduction

Preface

Oregon's History: People of the Northwest in the Land of Eden presents the people, places, and events of the state of Oregon from a humanist-driven perspective and recounts the struggles various peoples endured to achieve inclusion in the community. Its inspiration came from Carlos Schwantes historical survey, *The Pacific Northwest: An Interpretive History* which provides a glimpse of national events in American history through a regional approach. David Peterson Del Mar's *Oregon Promise: An Interpretive History* has a similar approach as Schwantes, it is a reflective social and cultural history of the state's diversity. The text offers a broad perspective of various ethnicities, political figures, and marginalized identities. Neither provide a traditionalist historiography of the American West. Traditionalist works replicated the heroic pioneer in the wilderness narrative embraced by historians like Frederick Jackson Turner at the beginning of the twentieth century. Other works such as Elizabeth McLagan's *Peculiar Paradise* interrogated inherent racism of the traditional historical approach of the American West that enshrined a linear narrative of Euro-American colonization bearing progress and civilization to Oregon. McLagan's analyzes the establishment of the African American community and their struggles against racial oppression in Oregon.

This "open textbook" is a social and cultural history of the people of Oregon representing powerful figures from the dominant Euro-American culture, the marginalized and oppressed, and social and political reformers who shaped the historical legacy of the state. It is a story of the diverse array of immigrants who helped build the state and strengthen it. The title is a recollection of the racial fantasies that European-American settlers created in their expansionist vision of the West and the state of Oregon. Initially the Oregon Territory was built on intolerance and racial exclusivity, but eventually Oregon embraces its diversity, but not without struggle and heartache. Our journey through the past starts with an essential question, "Who are the people of Oregon?"

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CHAPTER OVERVIEW

1: Chapters

- 1.1: Origins- Indigenous Inhabitants and Landscapes
- 1.2: Curiosity, Commerce, Conquest, and Competition- Fur Trade Empires and Discovery
- 1.3: Oregon Fever and Western Expansion- Manifest Destiny in the Garden of Eden
- 1.4: Native Americans in the Land of Eden- An Elegy of Early Statehood
- 1.5: Statehood- Constitutional Exclusions and the Civil War
- 1.6: Oregon at the Turn of the Twentieth Century
- 1.7: The Dawn of the Civil Rights Movement and the World Wars in Oregon
- 1.8: Cold War and Counterculture
- 1.9: End of the Twentieth Century and Beyond

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1.1: Origins- Indigenous Inhabitants and Landscapes

Origins: Indigenous Inhabitants and Landscapes



Mount Mazama: Giiwas

Oregon is a vast land filled with enchantment, wonder, and promise. Unlike other regions in the continental United States, Oregon hosts a variety of microclimates, terrain, and a variety of flora and fauna that could fill an entire museum. The coastal region offers a majestic and serene back porch to the gigantic and powerful Pacific Ocean surging with potential energy and promise for humankind. To the east of the Coastal Range lies the Willamette Valley and its rich, arable soils nestled between two mountain ranges. On the eastern side of the valley are the Cascade Mountains (known as *Yamakiasham Yaina* or “mountains of the northern people”), which run through the center of the state into Washington and British Columbia. The Cascades are a series of phantasmal peaks that can be seen on a clear day in the Willamette Valley. Some of the iconic peaks include Mount Hood (known as Wy’east by the Multnomah Tribe) east of Portland, Oregon and the turbulent, crop-topped Mount Saint Helens (known as Lawetlat’la by the Cowlitz people) in southern Washington.

East of the Cascades lies the Columbia Plateau, High Desert, and Blue Mountain regions. The eastern portion of the state is marked by a drier climate in part due to the rain shadow cast by the Cascade Mountains. The northeastern border of the state, adjacent to Idaho, is home to the Wallowa Mountains and Hells Canyon, the deepest river gorge in the United States, and one of the deepest in the world. The Columbia River forms the Columbia River Gorge along the northern border separating the states of Washington and Oregon. The river is named after the ship of the fur trader and explorer Robert Gray, who sailed through the mouth of the mighty river in 1792. The Columbia River is home to various salmon, providing the backbone of life within the biodiverse environment and landscape of the Pacific Northwest.

Since Oregon is a mountainous region with active and dormant volcanos, it would be fitting to begin an Oregon story with a significant event in the state’s geological history. Mount Mazama, (known as Giiwas by the Klamath and Modoc peoples) with a peak approximately 12,000 feet high, was part of a complex of active volcanoes. The mountain was destroyed 7,700 years ago by an enormous explosion of molten rock that caused its collapse. The force of the explosion was estimated to have been forty-two times greater than the eruption of Mount Saint Helens in 1980. When the top half of Saint Helens crumbled into Spirit Lake, it completely altered the lake sending a wall of water, rocks and debris into the Columbia River. The eruption of Mount Mazama sent a towering column of pumice and ash thirty miles high into the atmosphere, and when it collapsed, it formed the Crater Lake caldera. The volcanic material settled in thick layers around the outer rim of the caldera, and as the volcanic depression deepened, rain and snowmelt began to fill the caldera. Wizard Island was formed during a separate eruption and stands above the surface of Crater Lake. Indigenous peoples of the Klamath River region recognized Mount Mazama, both before and after its transformation into Crater Lake, as a spiritual center of great power and continue to hold great awe and respect for the mountain.

The Klamath historical memory of *Giiwas* corresponds closely to geologic data of the cataclysmic eruption. According to one source, the eruption of Mount Mazama was seen as retribution for the people’s violation of taboos, and as punishment for their arrogance and decadence. “They were being punished for forgetting the right way to live,” according to one Klamath.^[1] In the wake of the eruption, Crater Lake was seen as a place of potency for visions. The local Klamath, Modoc and Paiute, in addition to Takelma people from the Rogue River Valley, have travelled to the mountain for generations for a variety of cultural and spiritual purposes.

Another significant geologic event that shaped the State of Oregon was the Missoula Flood, or formerly known as the “Spokane Flood.” It was a series of floods that carved out the Columbia Gorge and the Willamette Valley at the end of the Pleistocene Era

approximately 13-15 thousand years ago. The ice dams at the Clark Fork River periodically ruptured releasing a torrent of flood waters with an estimated force of ten times the combined hydropower in all the world's rivers. The water carried rocks and other debris barreling down the Spokane River Valley, westward through the Columbia River Gorge, carving out the Grand Coulee and the Channeled Scablands of Eastern Washington, and spilling into the Willamette Valley and the Pacific Ocean. After each release of water, ice would rebuild on the glacial Lake Missoula. Like an overflowing tub, the water pooled in the glacial lake increasing to about twice the size of the state Rhode Island, only to repeat the process again over time. As a result of the Missoula Flood, large boulders and alluvial silt were deposited into Willamette Valley forming fertile agricultural lands. About 6,000 years ago, humans descended from the surrounding hills into the Willamette Valley when the floor became dry enough. Today, hikers and nature enthusiasts can learn about this event along the Columbia River Gorge in places like Beacon Rock, Washington.



Fort Rock Sandals

In 1938, University of Oregon archaeologist Luther Cressman discovered dozens of sandals below a layer of volcanic ash from the eruption of Mount Mazama at Fort Rock Basin of Central Oregon. The sandals were constructed from sagebrush bark and date from 10,400 to 9,100 years ago, making them among the oldest footwear ever found. Archaeological excavations have taken place at Paisley Caves in southern Oregon since the 1930s. Stone projectile points, baskets, rope, wooden artifacts, and animal bones found in the caves date back to at least 13,200 years ago, predating artifacts from the famous Clovis culture, first documented in New Mexico, by more than one thousand years. Scientists have concluded that Paisley Caves, 220 miles southeast of Eugene on the eastern side of the Cascades, were an ancient stopping place for trade among indigenous peoples.

Newer theories have emerged on human migration into the American continent that brought the original inhabitants into Oregon. The Bering Land Bridge theory became the orthodox view among archaeologists as the primary explanation for human migration into the Americas. But according to Cressman and other scientists' findings, the Bering Land Bridge theory doesn't account for the presence of people in North America 13 thousand years ago. Other theories surmised that seagoing people travelled along a "kelp highway" from Asia, and went east along the Bering Strait, and then southward along the northwest coast to California. Kelp highways, and coastal areas in general, provide a diversity of aquatic mammals, fish, shellfish, and plants for travelers who came from the Asian continent. According to several indigenous people, including Little Turtle of the Miami tribe, they have concluded people originated on North American soil, and did not arrive from the Eurasian continent.

Ancient indigenous cultures have lived near Celilo Falls, known as Wy-am, along the Columbia River in what is known today as The Dalles. It was one the oldest occupied zones on the continent. The ancient fishing ground of Celilo Falls along the Columbia River, called *Nch'I Wana* ("The Big River"), produced a bonanza harvest due to an estimated six to ten million fish that returned to spawn in the Columbia River. Archeologists found that Indians, including the Chinookans, Wascos, Klickitats, and Sahaptins have been fishing in the area for at least 11,000 years, and was one of the greatest fisheries in the area for millennia.



Celilo Falls

The salmon runs created a vital trade center in the region. Various indigenous groups brought goods to the region from Yellowstone and the Great Basin covering several western states. Salmon pemmican has a long shelf-life, making the fish more durable and portable. The salmon runs helped make The Dalles the greatest trade center of the north Pacific slope. Traditionally, the waters of the Columbia united rather than divided human populations, and interdependence formed a common bond among communities. Men and women of Celilo Falls worked together to harvest and process the salmon. Fishing stations became sites of social and ceremonial activity. Rituals were incorporated into the salmon runs, and fishing season would not start until the ceremonies were over. As a ritual act, salmon bones were thrown back into the water to allow the salmon spirits to return to the sea. As it turns out, this practice provided nitrogen replenishment for the riparian ecosystems of the Columbia River. Those who lived closest to the Columbia riverine system were known in the Sahaptian language as “people of the river.” Fishing rights secured more than just food sources; they were a central part of their cultural and religious practices and their identity as a distinct social group. A system of reciprocity between cultural groups kept a relative peace and security to the area.

Further south, in the Great Basin, the Northern Paiute lived a nomadic lifestyle following animals and other seasonal food sources. The names of each band was named after a food source; therefore, the people of Carson Sink were known as “Toi Ticutta” meaning “tule eaters.” Unlike other indigenous tribes of the Northwest like the Nootka, few if any internal social distinctions existed among the Northern Paiute; people did not accumulate wealth which would have enabled them to command the labor of others. The homeland of the northern Paiute is dry with low amounts of rainfall. Northern Paiute people remained in small bands, like other Indian groups of the Great Basin, because access to water sources was limited. They did not practice large scale agriculture, but had extensive and sophisticated irrigation ditches. They used sticks to unearth roots, and were referred to as “digger Indians” in a derogatory manner by white colonialists. At the confluence of the Snake and Boise Rivers, they met with other indigenous groups to trade and communally fish. Items processed and manufactured by these people were traded as far north as Alaska and east to Missouri.

Northwest Coast peoples maintained densely populated societies without the benefit of agriculture. Their most important resource was salmon. Scholars estimate that the average resident along the lower Columbia or the coast ate about 365 pounds of salmon a year. Access to food allowed more time for social activities and rituals, including potlatches, where surpluses of food were redistributed by the chief to all members of society and for trade. The Chinook and Coastal Salish populations reached densities of 400 people per 100 square miles. Unlike the tribes in eastern Oregon, there were social distinctions among these groups—a wealthy man could have many wives and even slaves. They were status-conscious residents, whereas desert plateau society was egalitarian since distinctions of wealth were less concentrated.

From an ecological perspective, the Willamette Valley environment provided more abundant food sources than the desert-like Columbia Plateau or the Great Basin east of the Cascades. Willamette Valley populations had social organization practices similar to the desert regions of eastern Oregon. Social relations were mostly egalitarian and slavery was a foreign concept. Before European American settlement, the Willamette Valley’s landscape had a different appearance. The indigenous peoples used fire in the valley and encouraged the vigorous growth of tall grasses, such as meadow barley, acorns and bluegrass. These long grasses were collectively referred to as kalapuya by the indigenous population, and so when the European Americans encountered these peoples, they referred to them collectively as the Kalapuya. The Tualatin-Yamhill Kalapuya occupied the northern Willamette Valley, the Yoncalla lived in the south in the Umpqua region, and the Santiam inhabited the greater portion of the central and southern Willamette Valley. The Kalapuya subsisted primarily on plant foods, less so on game and fish. They had a less varied diet than the Chinook of the Columbia River and the Coastal Salish of Puget Sound. The Kalapuya relied on camas, a large, seasonally abundant tuber, as a staple of their diet and set fire to the valley grasses to encourage its growth. Camas is a member of the lily family, and the nutritious elements could be found in the edible bulbs that were mashed into a paste for breads. By burning the valley floor, the Kalapuya altered the environment to create more open meadows where camas thrives, and prevented the growth of contiguous pine forests. Acorns also came widely into harvest and production, which was a staple food for the Kalapuya as it was for the Chumash Indians of south-central California. These grass fires had little effect on the California black oak trees that grew in Oregon. By keeping the ground clear of other trees, the oaks were able to produce large amounts of acorns. The Kalapuya also cleared the land to grow tobacco, which was their only cultivated crop in the modern sense.

The original inhabitants or indigenous people of Oregon comprise of various tribes and groups representing a rich cultural diversity. The landscape of the region was shaped by their cultural footprint and their societies held property as communal or belonging to the tribe. When the indigenous people of Oregon encountered European explorers in search of commerce and land,

their cultures and societies entered a gradual upheaval that occurred in stages. The beginnings of the cultural encounter and exchange between Euro-Americans and Natives was prefaced by the fur trade and Western nations seeking empires for trade, colonial possessions, power and prestige. The Euro-American culture represented a different set of values and beliefs that conflicted with previously held customs and institutions of indigenous people. European Americans came to the Pacific Northwest with perceptions and beliefs about Native Americans from earlier experience. The explorers and fur trade opportunists bore an imperial hubris and carried assumptions of their cultural superiority over the indigenous people of Oregon. The next chapter will examine these encounters and how Euro-Americans became enchanted with the Oregon region during the fur trade, and how they influenced the Native American communities of Oregon.

[1] Douglas Deur, "A Most Sacred Place: The Significance of Crater Lake among the Indians of Southern Oregon," *Oregon Historical Quarterly*, Vol. 103, No. 1, (Spring, 2002), pp. 18-49.

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1.2: Curiosity, Commerce, Conquest, and Competition- Fur Trade Empires and Discovery

Early European Interests

After Columbus claimed some of the Caribbean Islands for King Ferdinand and Queen Isabela, the Spanish Empire zealously pursued gold and wealth in the Americas. The conquistadors carved out land claims, established missions, coerced indigenous people through labor contracts and searched for thoroughfares to Asian trade markets. The Spaniards thought a fabled Northwest Passage, known as the Strait of Anián, crossed the North American continent linking the Atlantic and Pacific Oceans. In 1592, Ioannis Phokas of Valerianos, from the Ionian island of Cephalonia in Greece, sailed a Spanish ship to what is now Washington state. He claimed he discovered the Northwest Passage, a strait which would bear his Spanish name, Juan de Fuca. Many conquistadors and Spanish explorers had sought the imagined Strait of Anián, without success, but it was Phokas' discovery that brought further intrigue to the lands of the Pacific Northwest and the insatiable interests of commerce and conquest among European empires.

Western European nations developed their global imprint on overseas possessions and aggressively attained claims to trade networks by asserting an expansionist nationalism. Commercial interests in the global fur trade beckoned Russian, Spanish, and British adventurers who established points of possession, portages, and trading posts by official declarations in the Pacific Northwest and Alaska. The Danish explorer Vitus Bering under the czar's service made incursions into the Northern Pacific Sitka region of Alaska and the Bering Strait. The Russian empire established fur trading outposts and were belligerent towards the indigenous peoples pressuring them to produce furs or face violent retribution towards their women.[1] Western European powers guided by Roman legal tradition (*uti possideitis*), created rituals of possession based on conquest and subsequent demarcation of borders through the use of rock edifices scripted by official representatives of the crown or buried capsules of parchment documents. These official formal means of declaration provided the explorers and their entourages the legal means of possession in the European-American legal tradition of colonization and imperial expansion.[2] Robert Miller, a scholar of Native American and international law, refers to this as the Doctrine of Discovery.[3] The Spanish initiated this method of imperial possession in the Americas and other European powers (Russians and British) followed suit in their mastery of conquered lands and the dispossession of indigenous peoples.

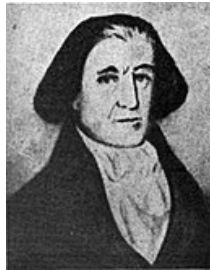
Spain and Great Britain were vying superpowers that sought to have a role in the colonization of the Pacific Coast of the North American continent; however, the Spanish Empire was in decline and prospects for the British Empire looked optimistic. Seafarers from Europe and America dispelled the fog of geographic ignorance that had previously shielded the north Pacific coast from outsiders. The British government subsidized growth in overseas markets with financial incentives. In 1744, Parliament offered a reward of £20,000 to the captain and crew of the first British merchant ship to pass through the Northwest Passage, and later the offer was extended to navy ships as well. The British explorer James Cook sought the reward on his third voyage in 1778, but he personally did not think the Northwest Passage could be found.[4] Captain Cook would serve as a driving wedge between Spain and England. As Spain gradually lost sovereign influence, this allowed the United States to isolate foreign rivals from the Pacific Northwest, and narrow down their competition to England. Cook received protection from the American patriots during the Revolutionary War and safely reached the Northwest coast in search of the Northwest Passage. Orders were given to "treat his crew with all civility and kindness, affording them as common friends to mankind." [5] After the completion of his third voyage, he provided a modern map of the region which served as an advertisement for the Oregon Territory.

During the Qing Dynasty the sea otter fur trade was in high demand. Among the Chinese nobility, the quality and tailoring of the fur denoted a person's social rank. Furs were worn by the Chinese elite, while commoners in China wore heavy sheepskin for warmth. The Pacific Northwest sea otter was regarded as one of the finest of furs, it is little wonder that the fur traders of Boston and the British Empire pursued the Chinese market in the late eighteenth century. When Cook and his ships arrived in Canton, China, he reaped a tremendous profit from the sale of twenty otter pelts and furs estimated at thousands of dollars. Cook understood the fur trade could bring prodigious wealth to the British Empire, "The fur of these animals...is certainly finer and softer than any we know of....The discovery of this part of the continent of North America, where so valuable an article of commerce may be met with, cannot be a matter of indifference." [6] Connecticut-born, John Ledyard, a young explorer who served

on Cook's third voyage published his own account it, and encouraged the formation of American fur trading companies stating, "Skins which did not cost the purchaser sixpence sterling sold in China for 100 dollars."^[7]

Another British explorer, Major Robert Rogers of the British army, had become convinced the legendary Northwest Passage existed. He called it "Ourigan" and thought it connected with the Missouri River. Jonathan Carver, who served with Rogers, used the word "Oregon" for a great river that he had never seen in a book he published in 1778. Carver's book contains the first known record of the word "Oregon" as a name that implied "river of the west." That same river was officially designated the Columbia after Robert Gray's voyages.^[8] Later, President Thomas Jefferson wanted Meriwether Lewis and William Clark to prove if the Missouri River connected with the Columbia.

Robert Gray, a fur trader from Boston, set off on a prospective voyage to gain a foothold in the fur trade markets of the Pacific Northwest in 1792. Gray documented critical cartographic data of the Oregon region and the Columbia River. His discoveries amount to one of the foundational pieces of evidence affirming American possession of the region according to international law and the Doctrine of Discovery. American companies from New England were developing economic interests in the Pacific Northwest well before Jefferson annexed the Louisiana Purchase and Lewis and Clark's transcontinental journey. Starting in 1787, the Pacific coast had become a target of many New England merchants and traders. They began to compete with British trading interests in the region, and made efforts to fend off the opposition in the Hudson Bay Company and Russian markets.



Captain Robert Gray

Robert Gray helped establish the United States as an emergent commercial power in the Northwest, and his discoveries were significant but not without controversy. Gray's second voyage to the Columbia River marked the first landing by white men in Oregon country and was the first circumnavigation of the globe by an American ship.^[9] Captain Gray piloted the ship *Columbia Rediviva* and his commodore John Kendrick the *Lady Washington*. Gray made two voyages to the Pacific Northwest over a five-year period. In 1788, Gray first anchored off Tillamook Bay near present-day Cape Lookout. They encountered Chinook and Tillamook Indians who were scarred from smallpox after coming into contact with the Spanish explorer Bruno de Heceta and his crew in 1775. Heceta was the first European to sight the mouth of the Columbia River, but his depleted crew were unable to overcome the swift currents of the mighty river.^[10] Indians traded beaver skins with Gray, but not otter pelts.^[11]

Gray traded with the Clatsop and the Tillamook Indians, and left behind a trail of death. Twenty natives were killed during Gray's mission because of his fear of the Indians. On two separate occasions in Tillamook Bay (his men named it Murderer's Harbor) and Grays Harbor, he fired on resistant Native traders, killing several. Gray's Fifth Mate, John Boit recorded the violent altercation in his log: "I am sorry we was oblig'd to kill the poor Divells, but it cou'd not with safety be avoided."^[12] Gray justified his actions as "taking no chances" that could jeopardize his mission. He failed to work diplomatically with the Clatsop and Tillamook who were shrewd dealers and discriminating consumers. Sometimes Indians resorted to violence to protect borderlands, resources and trading positions, and Gray's inexperience caused unnecessary Indian deaths.

Historians of the early twentieth century have glossed over Gray's violent interactions with the Indians and embellished his heroic qualities as a great American patriot who brought civilization to Oregon, "The discovery of the Columbia River completes at the end of a 300-year period the full discovery of America which in 1492 Columbus had initiated. The Western continent in its essential features as a home for civilized humanity was now revealed."^[13] Robert Gray's primary interest was to find a trading post site for merchants and investors in the fur trade. He did not have a knack for diplomacy or nation building, and wasn't interested in cultivating relations with the indigenous people.

British explorers George Vancouver and William Broughton, a member of Vancouver's naval expedition, contended that Gray did not enter the river but only its "sound," or estuary. They argued Broughton staked a more significant claim for the British crown on the Columbia River near the confluence of the Washougal River on October 30, 1792 about 100 miles upstream. The following

month, Broughton, commandeering the HMS Chatham, was the first Euro-American to embark on Sauvie Island, near the confluence of the Willamette and Columbia Rivers that frame the city of Portland today. American politicians refuted the British claim of possession of the Columbia River. South Carolina statesman and firebrand, John Calhoun challenged Great Britain that Robert Gray's discovery of the Columbia was something that John Bull, Britain's version of Uncle Sam, could not counter. Calhoun represented the jingoist faction of the American Democratic party that zealously promoted American expansion and was defiant to British interests in the Pacific Northwest. President James Polk aggressively disputed American claims in Oregon country with Great Britain by stating negotiation should only favor their own interests, "the only way to treat John Bull is to look him straight in the eye."^[14] Historians concluded Gray did not take possession of the Columbia River through any formal act, pointing to a journal entry in Boit's log that contains an interlineation, "& take possession," entered at a later date in different handwriting and different ink:

"I landed abreast the Ship with Capt, Gray to view the Country, **& take possession** leaving charge with the 2d officer – foind [sic] much clear ground fit for Cultivation, the woods mostly clear from Underbrush none of the Natives came near us."^[15]

If the journal entries were analyzed by a graphologist, then this could have had tremendous implications on the settlement of the Oregon boundary between Britain and the United States. The words "& take possession" were added by John Boit and were cramped in a small space; there are such interlineations throughout the journal. The second officer, Owen Smith, did not indicate that Boit went ashore with Captain Gray, but insisted Gray was the first to sail up the Columbia River. The ship's log made no mention of burying coins (a standard procedure for marking territory by possession) or raising the American flag. Instead Boit noted in the ship's log that the lower Columbia would make a fine "factory site" for the fur trade. A few years later, New York real estate entrepreneur John Jacob Astor fulfilled that vision (despite initial failure) and established a town named after him, Astoria.



Lewis, Clark and Sacajawea

LEWIS AND CLARK

A year after Robert Gray's expedition to the Columbia River in 1792, Thomas Jefferson and the American Philosophical Society of Philadelphia underwrote and sponsored the French botanist André Michaux to go on an overland journey along the Missouri River westward to the Pacific Ocean. Benjamin Rush and Jefferson had "framed instructions for his observance," but the expedition never got off the ground. Jefferson's instructions to Michaux were built upon the discovery of Robert Gray and were similar to the orders he gave to Meriwether Lewis a few years later:

"You will then pursue such of the largest streams of that river, as shall lead by the shortest way, & the lowest latitudes to the Pacific Ocean. When, pursuing these streams, you shall find yourself at the point from whence you may get by the shortest & most convenient route to some principal river of the Pacific Ocean, you are to proceed to such river, & pursue its course to the ocean. It would seem by the latest maps as if a river called Oregon interlocked with the Missouri for a considerable distance, & entered the Pacific ocean...But the Society are aware that these maps are not to be trusted."^[16]

The prominent men of the young republic who belonged to the American Philosophical Society had wider interests than the fur trade. The American Philosophical Society saw the exploration of Oregon as an Enlightenment principle of human ingenuity and as proof of the march of progress and civilization. Alexander Ross, who later accompanied John Jacob Astor's expedition to Astoria,

summarized the Enlightenment ideals of American exploration: “The progress of discovery contributes not a little to the enlightenment of mankind; for mercantile interest stimulates curiosity and adventure, and combines with them to enlarge the circle of knowledge.”^[17] Discovery was a part of the noble dream of progress, expansion and societal perfection in Western liberal ideology.

Americans, along with Jefferson, became engrossed in explorer’s journals and travel literature. Alexander Mackenzie published his journals *Voyages from Montreal 1789–1793*. It was a powerful declaration of British intent to secure the fur commerce of the Columbia River and place a virtual monopoly of the fur trade endangering American interests in northwestern territories. Alexander Mackenzie stated: “By opening this intercourse between the Atlantic and Pacific Oceans, and forming regular establishments through the interior, and at both extremes the entire command of the fur trade may be obtained.”^[18] The Scotsman Mackenzie hadn’t found the Columbia River or any of its tributaries; thus, his voyage did not give England any claims to the Columbia River watershed. Jefferson and his personal secretary Meriwether Lewis carefully read over Mackenzie’s book. As Jefferson was seeking Congressional approval for funding the Corps of Discovery, passages of Mackenzie’s text were read in debates by politicians indicating a need for American exploration in the northwest. Mackenzie recommended that England exploit the route he had pioneered, occupy the Pacific Northwest, and open a direct fur trade with Asia on the Pacific Coast. This brought a level of urgency to President Jefferson’s decision to order Lewis and Clark and the Corps of Discovery to stake their claims on the Columbia River.

People of the Pacific Northwest honor Lewis and Clark above all others from the era of American exploration. Cities and counties, rivers and peaks, streets and schools all attest to the importance of the two explorers and the Westernizing impulse in American life. Lewis and Clark’s Corps of Discovery was a military expedition not built on conquest, but discovery and enlightenment. Along the path to the Oregon Territory, Lewis and Clark sought to establish trade networks, transportation and communication channels with the Indian tribes, and the legal claims of Robert Gray. They were agents, diplomats and prospectors of a blossoming American empire. The fantasy of an easy portage from the Missouri River to the Pacific Ocean fired Jefferson’s imagination until Lewis and Clark disproved the existence of a Northwest Passage. Ultimately they accomplished their primary goal and established a permanent American presence at Fort Clatsop.

Their primary instructions involved diplomatic negotiations with Native Americans and their governments, and demarcation of land through rituals of possession. “The object of your mission is to explore the Missouri River, and such principal streams of it, as, by its course and communication with the waters of the Pacific Ocean, whether the Columbia, Oregon [sic], Colorado, or any other river.” Jefferson highlighted the pursuit of the Northwest Passage for the Asian fur trade and falsely stated to England, France, and Spain the commercial purposes of the expedition; he indicated the expedition’s sole purpose was science and exploration. Spain felt something was suspicious with American intentions and sent four military missions to stop the expedition.

The Corps of Discovery was shrouded in secrecy and intrigue. European powers were intent on expansion of their empires, and American actions had to be covert. Jefferson sent a secret message to Congress in which he sought approval and funding for the expedition. In the message, Jefferson referred to England as “that other country”^[19] and requested an appropriation of \$2,500 to finance an expedition up the Missouri River and to the Pacific Ocean. Historian Stephen Dow Beckham stated, “The United States had embarked on the path of building a transcontinental empire,” and the expedition “dramatically enhanced the United States discovery rights to what became known as the Oregon country.”^[20] It was a carefully planned scientific reconnaissance.

Jefferson instructed Lewis and Clark to have positive relations with the tribes they encountered for the establishment of trade and commercial partnerships with the Indians. “In all your intercourse with the natives, treat them in the most friendly and conciliatory manner which their own conduct will permit.”^[21] Essentially, he thought, this would catapult the United States into becoming the world’s biggest player in the lucrative fur trade market. Jefferson told Congress the United States could undercut the British fur trade with China by using the Missouri, the Mississippi, and perhaps the Columbia River systems to get furs to China quicker than English companies. For commercial purposes, Lewis and Clark were, in a way, traveling salesmen, in addition to diplomats and army commanders.

The Corps of Discovery marked Jefferson’s fifth attempt to explore the West.^[22] The expedition would not have been possible without the help of indigenous people including the 16- year-old Shoshone woman, Sacajawea. Captains Meriwether Lewis and William Clark were the first white men to enter Idaho, Washington, and Oregon by land. On their way to the Pacific Coast, they camped across the Columbia on Wapato Island (near Portland, Oregon). It was not a pleasant experience for Clark, who wrote in his journal, “I slept but very little last night for the noise Kept up during the whole of the night by the swans, geese, white and great brant ducks on a small sand island they were immensely numerous and their noise horrid.”^[23] The Corps neared the long-awaited

shores of the Pacific on November 7, 1805. Clark rejoiced in his notebook, “Great joy in camp we are in view of the Ocian, this great Pacific Octean [sic] which we been so long anxious to see!” Evidently, they had not reached the ocean yet and mistook an estuary of the Columbia River for the Pacific.

When they arrived at the Pacific shore, they built Fort Clatsop and left discovery evidence in a document at the fort indicating American possession at the mouth of the Columbia River. They drafted it as a memorial or declaration of their presence in the Northwest. They also distributed the document to local chiefs of the region and instructed them to pass it out to any ship captains that arrived in the area. Lewis and Clark often recorded in their journals that they carved and branded their names on trees and stones along their journey. Clark’s name is still visible on Pompey’s Pillar near Billings, Montana. It is the only physical evidence left of the expedition on the landscape today. The success of the journey fired the imagination of scholars and ordinary citizens of the past and present.

The expedition would not have survived while they were living on the Oregon coast if it had not been for the efforts of the Chinooks and Clatsop who told them where the elk and other critical food supplies could be found. The Corps of Discovery had a Christmas dinner the day after the fort’s construction was finished. According to Clark’s journal, they ate “poor elk, spoiled fish and a few roots.” Lewis and Clark did not care for the Pacific Northwest climate at the mouth of the Columbia (today’s Astoria) during the winter months. During their four-month stay at Fort Clatsop, rain fell every day but for twelve days, and the skies remained cloudless for only six. They were excited to leave; if only they had arrived in July, then they may have found the area more appealing!



John Jacob Astor

John Jacob Astor

Thomas Jefferson, in his pursuit to colonize the West, also encouraged American businessman John Jacob Astor to build a permanent fur trading post at the mouth of the Columbia River. Jefferson promised him all the support the executive branch could provide. Astor’s trading post was a significant foray towards American possession of the Pacific Northwest. There was political motivation among American lawmakers who thought England was intruding upon American sovereign rights of the Oregon territory. Fur markets continued to pull American commercial interests overland into the Louisiana Territory and toward the Oregon Territory. Following the footsteps of Lewis and Clark, Astor chased after dreams of wealth, prestige and power in pursuit of an Asian trade hub during the infancy of American globalization.

John Jacob Astor was a German immigrant and real estate magnate from New York City who amassed his wealth buying up foreclosed properties from small landowners. He was also a rent collector, but not for luxury homes; much of Astor’s estate in New York was covered with squalid immigrant tenements in disrepair. The maps of “Property in the City and County of New York Belonging to John Jacob Astor” as of April 1836 resembled a grand dominion with landholdings scattered across the New York metropolitan area.

In 1808, Astor expanded his prospective investments, and organized the American Fur Company, and by 1810, he established the Pacific Fur Company in the Oregon Territory in defiance of British claims in the area. Alexander Ross, an employee of the company, wrote in 1849 that the Pacific Fur Company was “an association which promised so much, and accomplished so little.”^[24] From a business perspective, the Pacific Fur Company could be considered a failure, but from a geopolitical perspective, the establishment of Fort Astoria at the mouth of the Columbia River on the Oregon coast was a crucial gesture towards American possession. Astor supplied money to his venture enterprise and had American and Canadian associates operating in the field. They fanned out across the Northwest in search of business contacts to secure the fur trade. Astor negotiated a pact that made him the sole supplier of goods exported to Russian America, today’s Alaska, and he hoped to gain access to those fur markets as well.

Astor's vision was to import blankets, cotton cloth, beads, brass kettles, metal tools, and weapons to outfit his men in the field and to trade with Native Americans. Indian men devoted more attention to hunting for furs, and native chiefs traded for copper with Euro-Americans. The fur trade led to the rapid depletion of the sea otter population to the brink of extinction during the nineteenth century. Astor's vessels then carried furs to the markets of the Pearl River on the south coast of China to exchange them for cargoes of tea, porcelain tableware, silk cloth, furniture, fans, and other luxury goods for the residents of the East Coast of the United States. The ships returned to New York City to unload the imports and take on a new cargo of trade goods for the distant Oregon Country.

Astor dispatched an overland and a naval expedition to the north Pacific coast. Both of these expeditions would have their share of problems and disasters. Wilson Price Hunt was in charge of the overland party, he was one of the founding partners of the Pacific Fur Company, and completely inexperienced at leading an expedition. Along the way, Hunt lost part of his party composed of company officials and fifty employees, including the trappers John Day and Ramsay Crooks. Hunt and his party were met with troubles in the high plain of the Snake River in Idaho with no sign of water. His men were tormented by thirst, and some resorted to drinking their own urine and ate some of their animals. Hunt's team eventually found the lost trapper near the Columbia River. Northern Paiute Indians stripped naked Day and Crooks and took all their belongings in retaliation for an Indian murder perpetrated by one of the company employees. They were left hungry with no resources to start a fire. The river near the site where the encounter took place would be named the John Day River by company employees. Day was traumatized by the experience spent the rest of his years in the Willamette Valley hunting for furs as a social recluse.



The *Tonquin* crossing the Columbia Bar

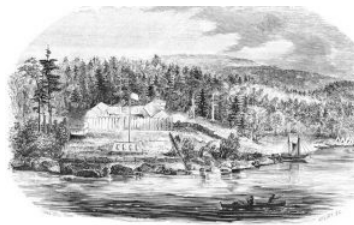
The marine component of Astor's venture started in Boston aboard the *Tonquin* on September 8, 1811, under Lieutenant Jonathon Thorn. This choice proved one of the worst in a series of fatal miscalculations, and Thorn and his crew did not fare much better than Wilson Price Hunt's expedition. The eight-month journey to Oregon was plagued by fighting and dysfunction among the crew because of Thorn's horribly hot-tempered and unstable leadership. During the journey he stranded crew members at Tierra del Fuego and Easter Island, and he flogged crew members. Thorn's cruelty cost eight men their lives at the mouth of the Columbia River when he ordered them out onto small boats to traverse the violent waters of the dangerous bar. He ordered his first mate, Ashton Fox, whom Thorn disliked, along with three inexperienced men and an elderly sailor out onto leaking boats. Fox objected, but the captain refused to listen to his entreaties. Thorn rebuked him, stating, "Mr. Fox if you are afraid of water, you should have remained at Boston." Thorn was not to be deterred, and Fox turned to his partners and said, "My uncle was drowned here not many years ago, and now I am going to lay my bones with his. Farewell my friends, we will perhaps meet again in the next world." Upon this, Fox had the boats lowered, and their small inadequate vessels were dwarfed by the waves on the turbulent waters at the mouth of the mighty river. The boat was submerged several times after traveling a few hundred yards, and the men cast up a distress flag. Thorn ignored it and ordered his men to continue upon their duties.

Alexander Ross recalled Thorn's irascible leadership: "For the captain, in his frantic fits of passion, was capable of going any lengths, and would rather have destroyed the expedition, the ship, and everyone on board, than be thwarted in what he considered as ship discipline, or his nautical duties."^[25] Ross stated Fox met with the captain's ire by trying to smooth over relations with the passengers on board the *Tonquin* whom the captain had mistreated and clerical employees he had treated as deck hands.^[26] Thorn then ordered a second boat with five aboard to the sounds across the channel. It too capsized into the furious break waters. Of the unlucky crews, only two men—armorer Stephen Weekes and one of a dozen Hawaiians they had brought along—were later found alive near Baker Bay. Despite the challenges experienced by the crew, the *Tonquin* docked on the south bank of the river and there they established Fort Astoria in 1811. Governor Oswald West later in historical memory held an unflattering view of the crew of the *Tonquin* and in particular its French-Canadian crew members: "Company employees [of the Astor Pacific Fur Company] upon

arrival on the Columbia, lost no time in giving the Indian maids the once over. When Louis, Baptist or Pierre spotted one to his liking he slipped a hunting knife to Papa, a string of blue beads to mama, and the deal was closed.”[27]

Later the *Tonquin* would leave Astoria. Thorn experienced perhaps a most deserving fate when he arrived at Nootka Sound on Vancouver Island. Transactions with the Nootka soured over when Thorn felt the Nootka were overcharging him on the price of otter pelts. Despite Astor’s instructions to Thorn and his crew to treat the Natives with fairness and kindness, Thorn kicked the furs back at the Nootka Indians and violently rubbed a headman’s face with a fur. His interpreter urged Thorn and his men to leave that night. Thorn refused, thinking he had taught the Indians a lesson. At dawn, canoes came alongside the *Tonquin*. The Nootkas who were seemingly unarmed, offered furs to trade, and Thorn allowed them on board. This was another instruction Thorn ignored from Astor. He had been advised to not allow trading on deck, or allow envoys to board the ship. Soon the deck swarmed with 200 villagers holding pelts. A call was given, and the Nootkas cast their pelts aside. They took out hidden maces and fell upon the crew. Thorn and most of the others were knifed or clubbed and thrown overboard where women in canoes finished them off. Only four of the Americans escaped, later to be caught and put to death. The next day, the Nootkas returned to the ship. A couple of the sailors were able to detonate a gun powder magazine blowing themselves up, along with several Nootkas. The *Tonquin* was destroyed, and the only survivor was an interpreter named Lamazee. After hearing the news of the ship and its crew, Astor went to the theater that night as a diversion. When an associate asked him how in good conscience he could shrug off the tragedy and entertain himself, Astor responded, “What should I do? Would you have me stay at home and weep for what I cannot help?”[28]

FORT ASTORIA: AMERICAN BEGINNINGS



Fort Astoria

Fort Astoria became the nucleus of Astoria, Oregon, the region’s oldest European American community. The outpost went through decades of trial and tribulation with its population dropping at times to a single family and a few employees of the Hudson’s Bay Company, but it endured. It was not as ideal as the Willamette Valley for settlement and a future “agrarian republic.” The Clatsop Plains lacked fertile soil and received far too much rain to reap the rewards of farming. But the Columbia River had great strategic importance, and the federal government spent heavily in its defense and kept its commercial channels safe and navigable with the establishment of lighthouses. Federal initiatives like these helped fuel the local economy and drew more Euro-American immigrants into the region. Astoria would become an important city on the Pacific coast, home to various ethnicities, but it was almost the city that did not happen.

Jefferson argued the United States owned the Oregon country because of Astoria, the permanent American trading post that John Jacob Astor had built. During the War of 1812, the British occupied Astoria and renamed it Fort George, giving the empire its first post on the North Pacific coast. Astor used his considerable political influence to lobby government officials to protect his post, even arguing that Thomas Jefferson, now out of office, had asked him to undertake the endeavor. He pleaded with James Madison to intercede at Fort Astoria for the good of the country. Most of the post’s disappointed leaders were prepared to sell the operation to the North West Company, a British fur trading conglomerate that rivaled the Hudson Bay Company, even before a British warship arrived late in 1813. The Treaty of Ghent in 1814 settled the war with Britain by restoring all the disputed territory in the Oregon region to the United States government allowing American companies to regain their access to the resources of Oregon. Americans and British merchants coexisted in Astoria until the Northwest Company was forced to merge with the Hudson Bay Company in 1821.

FORT VANCOUVER and JOHN McLOUGHLIN

In 1825, George Simpson, who worked in the administration of the Hudson Bay Company, relocated Fort George in Astoria to Fort Vancouver 100 miles downstream on the north bank of the Columbia River, across from what would become Portland, Oregon. He soon determined that the Columbia River fur trade “has been neglected, shamefully mismanaged and a scene of the most wasteful extravagance and the most unfortunate dissention.”^[29] Simpson envisioned that fur traders would not rely on trading alone but would be kept busy and self-reliant by farming, fishing, or taking up some other profitable activity. Fort Vancouver would provide a crucial global trade link between China, North America, and Great Britain. Simpson made the Oregon country’s fur trade more centralized and profitable for the Hudson Bay Company.

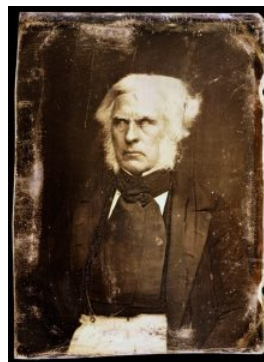
The company created a credit system that served to tie Indigenous fur trappers and traders more closely to the company through debt. A similar system was deployed in the Ohio River Valley by Thomas Jefferson and the governor of Indiana, William Henry Harrison, whereby trading houses were vehicles of debt for Natives and they were compelled to cede their lands as payments for their outstanding debts. Along the coast, in areas that seemed more secure, Simpson favored a more sustainable trade in which the company relied largely on Native trappers. He appointed John McLoughlin, who had previously worked for the North West Company. He was a man of striking appearance both tall and regal with a penetrating gaze. The local Indians called him the White-Headed Eagle. As Chief Factor and Superintendent of the Columbia District of the Hudson Bay Company, he wielded great power. He headed the nerve center of a vast commercial system of various trade items and maintained an extraordinary presence in a remote frontier domain. Officially, he is known as the “Father of Oregon”.



Marguerite McLoughlin

Fort Vancouver was a small, self-sufficient European community, complete with a hospital and thirty to fifty employees of the company who lived with their Indian wives, like McLoughlin himself who married Marguerite Wadin McKay whose mother was Ojibwa. It was a cosmopolitan metropolis of sorts, with Indians, Hawaiians, métis, and French Canadians who were all links to the British imperial trade system. Many of the French Canadian settlers and employees of the fur companies had held Indian slaves, both male and female, as a slave could be had for ten to fifteen blankets. Most of them remained with their owners until 1855 and 1856, when they were rounded up by federal authorities and placed on Indian reservations. The French Canadian trappers—including Joseph Gervais and others, like Michael La Fromboise, who came in on the *Tonquin*—started the settlement in French Prairie. Gervais was born in Canada and died in French Prairie in 1861. He trapped fur for the both the North West and the Hudson Bay Companies, and he had several Indian wives through the years, including women from Chinook and Clatsop nations.

During the initial phases of Euro-American settlement and the opening of the fur trade, the Oregon Territory became a critical trade hub of globalization and American expansion. Many European powers contested for possession of Oregon, and gradually through trade and exploration, the region began to retain a multicultural hue.



Chief Factor of Hudson Bay Company, John McLoughlin

- [1] Calloway, Colin: *First Peoples: A Documentary Survey of American Indian History*, (Bedford St. Martin's Press, New York, 2019) p. 218
- [2] Belmessous, Saliha (ed.): *Native Claims: Indigenous Law against Empire 1500-1920*, (Oxford University Press, London, 2012) p. 20
- [3] Miller, Robert: *Native America, Discovered and Conquered: Thomas Jefferson, Lewis and Clark, and Manifest Destiny* (University of Nebraska Press: Lincoln, 2008)
- [4] J. Richard Nokes: *Columbia's River: The Voyages of Robert Gray*, (Washington Historical Society Press: Tacoma, 1991) p. 67.
- [5] Schwantes, Carlos: *The Pacific Northwest: An Interpretive History*, p. 20.
- [6] Cook, James: *The Voyages of Captain James Cook*, Volume II (William Smith: London, 1842)
- [7] John Ledyard, A Journal of Captain Cook's Last Voyage to the Pacific Ocean, and in Quest of a North-West Passage, between Asia & America
- [8] Elliott, T.C., "The Strange Case of Jonathon Carver and the Name Oregon," *The Quarterly of the Oregon Historical Society*, Vol. 21, No. 4 (Dec., 1920), pp. 341-368.
- [9] J. Richard Nokes, p. xvi.
- [10] Hayes, Derek. Historical Atlas of the Pacific Northwest: Maps of exploration and Discovery. Sasquatch Books. 1999
- [11] Historians argue the otter should have been the state animal of Oregon instead of the beaver.
- [12] Nokes, Richard: *Columbia's River: The Voyages of Robert Gray*, Washington State Historical Society, Tacoma Wa. 1991, p. 194.
- [13] Ibid. p. 185
- [14] Nokes, *Columbia River*, p. 262
- [15] Ibid., p. 195.
- [16] "Thomas Jefferson to Andre Michaux, January 23, 1793," *Thomas Jefferson Papers*, Library of Congress
- [17] Schwantes, Carlos: *Pacific Northwest History: an interpretive guide*
- [18] Mackenzie, Alexander: *A General History of the Fur Trade from Canada to the Northwest*, 1801.
- [19] Thomas Jefferson to Congress, January 18th, 1803. *Thomas Jefferson Papers*, Library of Congress.
- [20] Miller, Robert: *Native America, Discovered and Conquered*, p. 108.
- [21] Jefferson's Instructions to Meriwether Lewis, June 20th, 1803.
- [22] In 1807 Sergeant Patrick Gass, who was a part of the Lewis and Clark expedition, used the name of Corps of Discovery in the title of his book about the expedition and it stuck. The actual nickname that is recorded in the Lewis and Clark journals is the "Corps of Volunteers for North Western Discovery."
- [23] Lansing, Jewel: *Multnomah: The Tumultuous Story of Oregon's Most Populous County*, (Oregon State University Press: Corvallis, 2012) p. 9.
- [24] Pyle, Robert Michael: "John Jacob Astor I: A Most Excellent Man?", cited in Stephen Dow Beckham (ed.), *Eminent Astorians*, (Oregon State University Press, Corvallis, 2010)
- [25] Ross, Alexander: *Adventures of the First Settlers on the Oregon or Columbia River: A Narrative of the Expedition Fitted Out by John Jacob Astor*, (Smith, Elder and Co.: London, 1849) p. 52-56.
- [26] Ibid.
- [27] Oswald West Papers Box 1 MSS 589
- [28] Pyle, Robert Michael: "John Jacob Astor: A Most Excellent Man?" in *Eminent Astorians*, p. 70-71.
- [29] Peterson del Mar, David, *Oregon Promise*, p. 85.

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1.3: Oregon Fever and Western Expansion- Manifest Destiny in the Garden of Eden

OREGON PIONEERS and MANIFEST DESTINY

In 1905 *The Oregonian* published a biographical article on one of the more prominent Euro-American pioneers of Oregon's past, Joseph Meek, as the "man who saved Oregon." The newspaper adulated him as "a frontiersman of the highest type. Six foot two of magnificent manhood an inspiration and exemplification of American citizenship."^[1] Joseph Meek was the epitome of the rugged frontier individualist that shaped the Oregon experience and provided a push for settlers to hit the Oregon Trail. Newspapers and other media outlets, never hesitated to elevate the pioneers of the West in hagiographies, especially individuals like Meek, who was a relative of President James Polk's wife, the first lady Sarah Childress Polk. Oregon's pioneers were reconfigured in narratives of saint-worship whereby the people of the frontier represented the assimilationist forces of civilization and progress, buttressing Jefferson's mission of an empire of liberty built on an agrarian republic.



Joseph Meek: Mountain Man

Oregon, like other states of the greater Northwest and Rocky Mountain regions, cultivated the archetype of rugged frontier folk who tamed the "savage wilderness", mastered its natural resources, and were icons of individualistic self-reliance. "The first ideal of the pioneer was that of conquest. It was his task to fight with nature for the chance to exist. The rifle and the ax are the symbols of the backwoods pioneer. They meant a training in aggressive courage, in domination, in directness of action, in destructiveness. To the pioneer the forest was no friendly resource for posterity, no object of careful economy."^[2]

In the mid-nineteenth century, John O'Sullivan was an influential political writer, journalist, and advocate for the Democratic Party. He stated that the United States already held legal title to Oregon. He was the author of an infamous essay titled *Manifest Destiny*. It justified American expansion through divine providence and claimed the United States owned the "true title" to the Oregon Territory. Native American claims and rights to their ownership of the land were elided and excluded from his argument.

"Our claim to Oregon would still be best and strongest. And that claim is by the right of our manifest destiny to overspread and to possess the whole of the continent which Providence had given us for the development of the great experiment of liberty and federated self-government entrusted to us...The God of nature and of nations had marked it for our own, and with His blessing we will firmly maintain the incontestable rights He has given, and fearlessly perform the high duties He has imposed."^[3]

Politicians and other influential people who contributed to Oregon Fever and settlement spoke of America's Manifest Destiny in their arguments for national expansion and the settlement of the West. The nationalist myth of the rugged frontier individual would serve as a potent symbol of American individualism in the West, but it materialized through a morbid tragedy; the genocide of Native American communities.

Early settlers in the Willamette Valley viewed the prairies as their agrarian future and often spoke of them in positive pastoral terms that were conventional in the nineteenth century. The prairies were viewed as a Garden of Eden based on a social and racial utopia for Euro-Americans. To encourage settlement in the region, exaggerations of the size of harvests were common: beets two feet in size and turnips that weighed thirty pounds.^[4] For Jefferson's dream of an empire of liberty, nothing could have done better to fuel his dream than to speak of a destiny guided by divine providence. Government policies aimed toward a bullish run in land speculation and disbursement brought on the actualization of the settlers' utopian vision, and the removal of Native Americans from their landholdings.

OREGON FEVER and MISSIONARY ZEAL

Between 1820 and 1840, an upsurge of religious awakening coincided with Oregon Fever and movement of people out West. Protestant and Catholic missionary societies focused their sights on pioneer communities. In November 1843, missionaries watched

an eruption of Mount St. Helens in awe and fear and sang “This awful God is ours” from the hymn “Marching to Zion.”^[5] The Canadian Methodist missionary Jason Lee and the Oregon prospector and entrepreneur Nathaniel Wyeth went overland to Oregon along with a group of Methodist missionaries and arrived in Fort Vancouver. Missionary activities piqued the curiosity of the Nez Perce Indians. In 1832, three Nez Perce and one Flathead Indian journeyed to St. Louis looking for William Clark of the Corps of Discovery. They requested the “book” and the “black robes” for their people. The Nez Perce looked for the source of the white man’s power by sending representatives to St. Louis. European American whites, in their evangelical fervor, interpreted the Nez Perce and Flatheads who had come to St. Louis seeking “the white man’s Book of Heaven” as a call for spreading their faith in the West. This story, along with the volcanic eruption, would be retold in missionary circles as a note of encouragement to bring others to the Oregon Territory to further the goals of the civilization program, and the conversion and cultural assimilation of American Indians.

Chief Factor John McLoughlin persuaded Lee to start his mission in the central Willamette Valley where Hudson Bay Company employees lived. Lee established his mission ten miles north of Salem near French Prairie, an agricultural enclave. When the Methodists and Lee arrived they entered an area of human tragedy in the Willamette Valley: a vast malaria epidemic had broken out and decimated the Kalapuya population. The missionaries, unlike the fur traders, were interested in transforming the Indians’ religious beliefs and cultural practices. Native Americans had looked to the missionaries in a time of a humanitarian crisis to gain consolation and understanding of the trials they had undergone with the wave of epidemics that wreaked havoc upon the region. Lee established an assimilation school to convert Kalapuya children to Christianity and impose punishments for traditional cultural practices viewed as “uncivilized”. When he left, “there were more Indian children in the mission grave yard...than alive...in the manual labor school.”^[6]

The Oregon Country represented unlimited possibilities for development and personal enhancement for Euro-American whites. During 1838 and 1839, Jason Lee went on a lecture tour through the East and Midwest, extolling the natural wonders and economic opportunities of Oregon with an evangelical fervor. He brought back fifty-one settlers, known as the Great Reinforcement, to Oregon, and they set up towns such as The Dalles, near Celilo Falls.



Jason Lee

The American Board of Commissioners for Foreign Missions sponsored the Whitman and Spalding missionary parties upon the urging of Marcus Whitman. In 1836, Whitman and his wife Narcissa, established a mission at Waiilatpu “The Place of the Rye Grass” in the Walla Walla Valley. Both the Spaldings and Whitmans claimed they were helping the Cayuse and Nez Perce “develop a better way of life,” but the Christians and non-Christians were segregated from each other. Narcissa Whitman, the wife of Marcus, disliked the Cayuse people, and like many on the Oregon frontier, she rarely interacted with them. The Cayuse were alarmed by the waves of pandemics in measles and smallpox that arrived with Euro-American settlers. Their suspicions grew regarding the onset of disease in their community and they thought the Whitmans were poisoning them. In a matter of time, Narcissa and Marcus Whitman’s missionary settlement at Waiilatpu met its demise in 1847.

Henry Spalding, a Presbyterian missionary, arrived into the Northwest along with the fur traders. His family established themselves among the Nez Perce, also known as Nimipu, or “The People” in the Sahaptian language. Spalding supported cultural assimilation of the Nimipu in the Oregon country. He urged them to adopt an agrarian lifestyle and abandon nomadic traditions. Spalding brought in a printing press and published the biblical book of John in the language of the Nimipu. Spalding, like the Whitmans, was paternalistic and punitive in his relations with the local indigenous peoples. He attempted to enforce the prohibition of their ritual dances and ceremonies, and he grew frustrated over private property disputes with the tribe. Asa Bowen Smith, another missionary associated with Spalding, was critical of his attempts to turn the Nimipu into farmers, and ultimately failed to convert them to Euro-American lifestyles.

French Prairie, located in the Champoege region, and St. Paul became epicenters of Catholic missionary work upon the invitation of Chief Factor John McLoughlin and the encouragement of his French-Canadian Catholic employees in the Hudson's Bay Company. Francois Norbert Blanchet and Modeste Demers were French Catholic missionaries who responded to McLoughlin's invitation. The Bishop of Quebec sent them to "regain from barbarism and its disorders, the savage tribes scattered over that country" and to extend their help "to the poor Christians who have adopted the customs of the savages and live in license and forgetfulness of their duties."^[7] They established two missions, one north of Fort Vancouver in Washington and the other in the Willamette Valley of Oregon.

With the establishment of Catholic missions and activity, religious tensions arose between Protestants and Catholics in Oregon. Catholics and Protestants, similar to the American experience in the eastern regions of the United States, felt distrust and animosity toward one another because of their religious and political differences. Marcus Whitman viewed Catholics in Oregon with suspicion and stereotyped them as crusaders of expansionist papal states, "Romanism stalks abroad on our right hand and on our left, and with daring effrontery boasts that she is to possess the land. I ask, must it be so?"^[8] Until his death, Henry Spaulding was convinced Catholic missionaries and the Jesuits conspired with Hudson Bay employees and spurred the attack against the Whitmans. Catholics in turn were suspicious that Protestants ultimately wanted to control the trade and commerce of the area all to themselves, and they feared the Protestant authoritarian approach to indigenous people would harbor their resentment and animosity. But both Christian faiths felt without spiritual conversion, Native Americans were doomed to perdition.

OREGON and THE SECOND GREAT AWAKENING

Charles Grandison Finney, who was one of the most celebrated revivalists of the Second Great Awakening, a Protestant movement of the time, was a large man who had a commanding presence and intimidating visage comparable to John McLoughlin. Finney experienced a soul-wrenching conversion during which God told him to plead his cause to others. Finney's preaching style was forceful and imposing, and he represented the age of Jackson with a focus on the individual. Finney's impact swept across the east and provided a religious fervor that fueled westward migration. He focused on the individual with a representation free of ornamentation and pomp. Arguably, Finney provided spiritual fuel for Oregon Fever. Finney and the Second Great Awakening held a cultural worldview based on temperance and abolitionism. Finney constantly preached the sins of slavery and how the United States must repent for its transgressions against mankind. This represented a significant cultural force in the European American construction of Oregon.

OREGON FEVER!



Sen. Lewis Linn

Senators Lewis Linn and Thomas Hart Benton of Missouri were two of the chief architects of Oregon Fever and the push to incentivize settlement in the area. Linn viewed Oregon as an opportunity for "finding and founding empires for us," namely white politicians and landowners.^[9] Linn was one of the earliest proponents of the Land Donation Act in the Senate. The senators promoted the idea that colonists, incentivized by the federal government, conquered new areas not "by physical conquests [and] fleets and armies" but because these regions and people "have sought the blessings of our institutions; not we who will have coveted the enlargement of our territory by conquering." Linn articulated a nationalist vision built on expansion articulated in a hagiography of William Clark. He is described as an empire builder and visionary, like Alexander the Great of Macedon, when he stood on the edge of the Pacific Ocean in 1805 and "saw through the dim vista of the future rising states of his countrymen spreading along the Pacific shore...the chain is complete from the Atlantic to the Pacific Ocean."^[10] Settlers, along with Benton and Linn, thought they were, in the words of Thomas Jefferson, the "germe of a great State," spreading the influence of Americanism and civilization. The imperial bravado politicians and missionaries brought an enthusiastic corps of volunteers and settlers who were ready to answer the call of Manifest Destiny on the Oregon Trail.

In Cincinnati, Ohio, a convention of prospective pioneers clamored for the immediate occupation of the Northwest territory in Oregon. They were guided by their political prophet Lewis Linn, and demanded for speedy occupation and settlement of the

Oregon county according to international law. A fire was set under the feet of Congress to move things forward with the colonization of Oregon. Prospective settlers listed their resolutions and demanded Congress to provide military outposts on the trail, preserve naval and commercial independence at the mouth of the Columbia, and “that there should be no negotiation regarding the Oregon [Territory], except as the time the Hudson Bay Company should have to quit the country.”^[11]



American Progress by John Gast (1872). Columbia, cast in white, representing American progress dispersing the darkness of the West with the tools of civilization.

Thomas Hart Benton was an ally of Andrew Jackson, and an Oregon Fever zealot who actively pursued a militant stance on Western settlement. He promoted the idea that Oregon could be saved only by white Americans. Benton belonged to the expansionist wing of the Jackson Coalition in the federal government, which included James Polk and Martin Van Buren. They adhered to a jingoist stance of western expansion in the American frontier and an aggressive diplomatic position of the Monroe Doctrine in Latin America. They felt American presence in Latin America was warranted and necessary. American influence, in their paternalistic view, would support those nations development into democratic republics. In their western expansionist vision, Oregon was a providential place for white settlers and according to officials’ imperial hubris, Euro-Americans would improve the human condition of the American West. According to Senator Benton, Euro-Americans were burdened with the civilizing task to enlighten the American West to their political, social and cultural institutions. It is a political philosophy that dominated international relations through the Spanish-American War. It was a nakedly Social Darwinist ideology fueled by a militant evangelism spreading Americanism to cultures perceived as needing indoctrination for their own benefit.

“The effect of the arrival of the Caucasian or White race on the western coast of America, opposite the eastern coast of Asia, remains to be mentioned among the benefits which the settlement of the Columbia will produce; and that a benefit, not local to us, but general and universal to the human race. I know of no human event...which promises a greater more beneficial change upon earth than the arrival of the van of the Caucasian race (the Celtic-Anglo-Saxon division) upon the border of the sea which washes the shore of eastern Asia.”^[12]

With the arrival of Euro-American settlers, the Indian Question was born. “Should Indians assimilate to the “Caucasian race” or face their own extinction?” Federal and state policies, during this historical era, never considered whether indigenous peoples should retain their cultural heritage or their sovereign rights.^[13] Instead Oregonians normalized the tragic plight and widespread death of indigenous peoples without much objection. Linn County resident Ms. James Miller wrote in 1852, “They are dying here as elsewhere, where they are in contact with civilization. I used to be sorry that there was so much prospect of their annihilation... Now I do not think it is to be much regretted. If they all die, their place will be occupied by a superior race.”^[14] For the many Euro-Americans, they had not seen themselves as a contributing factor to Indian genocide, nor did they hold much empathy towards their situation.

Benton’s thoughts on racial predestination were part of his call for the settlement of Oregon:

“The Mongolian, or Yellow race is a race far above the Ethiopian, or black, above the Malay or brown, above the American Indian, or Red: it is a race far above all these, but still far below the White, and like all the rest, must receive an impression from the superior race whenever they come in contact.”^[15]

Benton saw the settlement of Oregon as the gateway to providing racial improvement to Asians, Indians, and African Americans. It is clearly a white supremacist ethos. He declared that whites have an imperial prerogative to “subdue the earth,” as a providential call from God:

“It would seem the white race alone received the divine command, to subdue and replenish the earth! For it is the only race that has obeyed it, the only one that hunts out new and distant lands, and even a New World, to subdue and replenish. (On the shores of the

Pacific) a great population will grow up there, luminous with the accumulated lights of European and American civilization.”[16]

Benton’s jingoist views on western expansion hinged upon Anglo-Saxon superiority, racial purity and rigid gender roles as a prescriptive civilizing force that would be a benefit to humankind. According to the tenets of imperial hubris of the mid-nineteenth century, “It is the duty of enlightened nations... to protect the rights and to cherishing the interests of the Indians, if it exerts itself for the good of the Indians. As a father would benefit his children to diffuse the benefits and blessing of civilization among them.”[17] This encapsulates federal Indian policy until the latter half of the twentieth century. Indians were considered a ward of the state, and Congress, enshrined in its paternalistic duties, protected the Indians under a condition of subservience.

The premise of Oregon Fever was fueled by an evangelism that hinged upon Anglo-Saxon superiority as the moral and cultural ideal that would bring forth Jefferson’s vision of an assimilated class of Indians who would become productive, faithful citizens in the agrarian republic of the American West. Settlement of Oregon would provide European Americans the ability to enlighten and civilize the “rude and suffering people”[18]—the Indians. It would be the duty of Americans to protect Indians under their own newly found sovereignty by uprooting Native America cultural heritage and traditions, their landholdings and legacies. “The moral condition of the Aborigines, if blessed by the influences of a refined and religious community will be improved. The attempt to enlighten the minds and to dignify the nature of this unfortunate race may no longer be defeated by injudicious plans.”[19] Clearly Benton and his visionaries paved the way for Indian assimilation as a necessary tool of colonization, and perceived under nineteenth century liberalism, their education according to Western values and Americanism would allow their integration into society.

Benton viewed the settlement of Oregon as one of the greatest achievements of mankind comparable to Christopher Columbus’ possession of the Caribbean Islands. He saw the “settlement of the Columbia River by the van of Caucasians as the most momentous human event in the history of man since his dispersion over the face of the earth.”[20] Historians later in the twentieth century caught up with the mythistory of Columbus and have revealed other civilizations had explored the American continents before the arrival of Columbus and the Spanish Empire. The jingoists of the Jackson coalition thought Oregon would provide what Columbus had intended, a “North American Road to India.”[21] Another zealous proponent of Oregon colonization, Hall Jackson Kelley also venerated the exploits of Christopher Columbus and used the “heroic narrative” of the European explorer as a torch bearer of civilization and progress, disregarding the indigenous cultures that had established themselves for millennia.[22]



Hall Jackson Kelley

Hall Jackson Kelley was a New England school teacher who was obsessed with Oregon and wrote extensively about Euro-American settlement. Kelley was a jingoist at heart, and personally was an ambitious opportunist driven by wealth and visions of grandeur. He led an expedition to Oregon with a few less than savory individuals on the Oregon Trail. Motivated and emotionally stirred by Lewis and Clark’s journals and conversations with other explorers, Jackson Hall Kelley asserted that “active sons of American freedom” ought to make their way to Oregon. Nicholas Biddle and Paul Allen’s *History of the Expedition under the Command of Captains Lewis and Clark*, the first edited copy of their journals published in 1814, inspired Kelley to “go and labor in the field of philanthropic enterprise and promote the propagation of Christianity in the dark and cruel places about the shores of the Pacific.”[23] Meriwether Lewis held the view that the Pacific Northwest was a prison, a “dreary wilderness” devoid of civilization.[24] Kelley’s negative perception of the Northwest was shaped by the Corps of Discovery’s writings on the region.

Jackson Hall Kelley was a vocal proponent of mass migration to Oregon as early as 1815. He has been called the Prophet of Oregon. “In the year 1824, I announced to the world my intention to settle in Oregon. Nothing is wanting, but a second Daniel Boone to lead the way.”[25] With the increased speed in the production of printed material, Kelley spread Oregon Fever through pamphlets and letters to newspaper editors, and personally encouraged Congress to occupy and govern Oregon. He viewed Oregon

as “the most valuable of all the unoccupied parts of the earth,” and organized the American Society for Encouraging the Settlement of Oregon Territory in 1829.

In 1834, he persuaded a party of hunters to accompany him to Oregon through the Applegate Trail, named after famed pioneer Jesse Applegate. The famous trapper, Ewing Young, along with Kelley and fourteen additional men made their way north from California with 100 livestock. During their course along the Applegate Trail, the party routinely murdered Natives along the way, including two along the Rogue River. Kelley and his men arrived at Fort Vancouver on the north side of the Columbia River on October 27, 1834, “depressed in spirits and under great bodily weakness, then recovering from the fever and ague. He found himself an unwelcome guest at the place. Calumnies and slander were propagated about him, and the persons whom he had induced to come and settle there, were turned against him; and bloody men more than once threatened his life.”^[26] Kelley lamented about his negative experience at Fort Vancouver. He never met with the Chief Factor John McLoughlin who ordered Kelley to stay in the laborers quarters at Fort Vancouver. A messenger told Kelley he could not stay in the fort and sent him to a cabin for butchering animals, which was “extremely filthy” and “mixed with animal putrescence.”^[27]

He became convinced from this experience that the “agents of the Hudson Bay Company [sic], resident in the United States, have by all means, and with a settled hostility, done all they could to counteract his plans for the colonization of Oregon.”^[28] Kelley was strong-armed by the Hudson’s Bay Company, and was sent on his way to Hawaii, and eventually returned to Massachusetts. Kelley held deep grievances against the Chief Factor of the Hudson’s Bay Company, “Doctor John McLaughlin [sic] the chief officer of the company in Oregon, was kept informed of my movement in the states. The persecuting monster, anticipating my coming to the place of his abode, was ready, with sword in his hand, to cut me down; and I was treated at and after my arrival, with every demonstration of inhumanity.”^[29]

OREGON FEVER: NATHANIEL WYETH

Another aspect of Oregon Fever and its expansionist zeal was on the economic front. The Panic of 1837 was an economic depression that lasted for several years. The panic was based on a variety of factors, including a speculative real estate boom that occurred after Indian removals in the American West, declining cotton prices, and erratic banking practices. Thomas Benton and President Andrew Jackson promoted an economic policy of land acquisition based on hard currency called the Specie Circular, which required payment for land in gold and silver. This in part spelled trouble for the markets and contributed to the collapse. The financial crisis affected the global markets as well, in particular Chinese trade. It negatively affected farmers who were unable to pay their mortgages. Actions taken to move from the collapse included shifting financial investment into development of the railroads. This brought on further land speculation and a furious land grab from Native American holdings and possessions. Hard currency flowed from New England merchants, and bankers to the nascent railroad industry who gobbled up Native American lands. Nathaniel Wyeth built his financial empire from the fur trade and as an ice merchant. He shifted his investments to the blossoming railroad industry, and possible opportunities in the Oregon Territory as many other Northern capitalists in antebellum American.

Hall Jackson Kelley, like other European and American prospective explorers needed to find investors, convinced Wyeth of the business opportunities waiting for him in Oregon. Wyeth was enticed by opportunities in the fur trades and the salmon industry. Kelley intended to have Wyeth sponsor him on expeditions to Oregon, but Wyeth led his own expeditions without him not trusting the erratic personality of Kelley. It did not seem to have occurred to Kelley that in Nathaniel Wyeth possessed leadership qualities that he himself so conspicuously lacked. In the 1830s, Wyeth was leading expeditions to expand his developing business interests. He helped establish Fort Hall in present-day Idaho and Fort William on Wapato Island near present-day Portland. The Chinook people called the island Wapato, a reference to an edible bulb, the “Indian potato,” that grows there. Wapato Island is today known as Sauvie Island named for the French Canadian dairy farmer Laurent Sauvé, a Hudson’s Bay employee who settled on the west side of the island in the 1840s.

OREGON FEVER and 54’40” or FIGHT!

In 1836, President Andrew Jackson asked Congress to cancel the Oregon joint-occupation treaty with Great Britain. Thomas Hart Benton’s militancy over the issue had grown. He told Congress he wanted to “vindicate our rights on the Columbia” and that his bill would provide “thirty or forty thousand rifles beyond the Rocky Mountains, which will be our effective negotiators.”^[30] American western expansion was reaching a fever pitch during the Polk presidency. Congress authorized James Polk to revoke the

treaty on his own initiative when he took office. Polk and Benton put forth the rallying cry “Fifty-four forty or fight!” to meet British challenges and claim the Oregon Territory as its own. Massachusetts Senator Daniel Webster, whose efforts were instrumental in the diplomatic settlement of American sovereignty of Oregon, along with President Polk, wanted to get ahead of a forthcoming diplomatic dispute that was unfolding with Great Britain.

President Polk, continuing the push for American expansion out West, would inaugurate the internal migration out west to Oregon. Along with American embroilment in the Mexican-American War, the chief executive willed the people of America to fortify American claims in Oregon through settlement and a hardline stance against the British Empire with its economic claims in the Hudson’s Bay Company at Fort Vancouver. Following the establishment of the provisional government at Champoege in 1843, some 5,000 Americans were living in the Oregon region in 1845. Democrats demanded “clear and unquestionable” rights to the Oregon Territory. Polk would carry the motto “Fifty-four forty or fight!” to the southern tip of the Alaskan panhandle.

In his inaugural address in 1845, President Polk declared that American title to Oregon was “clear and unquestionable.” Polk proposed to the British that Oregon be divided at the forty-ninth parallel. When the British balked at accepting that boundary, Polk resumed his belligerent stance. He stated to Congress that he was no longer willing to compromise and that national honor and interest were at stake in Oregon. Besides Polk and Benton, and some members of the Democratic Party, very few truly believed the entire Oregon Territory belonged to the United States. According to Benton:

“There is no boundary at 54°40’; and so far as we proposed to make it one, it was for the British, and not for ourselves and so ends the redoubtable line, up to which all true patriots were to march! And marching fight! And fighting die! If need be! Singing all the while, with Horace, *Dulce et decorum est pro patria mori*. I proceed...to the dogma of the unity and indivisibility of the Oregon title, and its resulting corollary of all or none...all the way from 42° to 54°40’ no break in it, and consequently all or none.”^[31]

During this time, very few Americans actually lived north of the Columbia River; that area was mostly occupied by Hudson’s Bay Company employees. Between the forty-ninth and fifty-fourth parallels, there were no Americans. The Treaty of 1818 offered joint occupancy of the Oregon Territory to American and British interest, in particular the Hudson’s Bay Company, which still held commercial supremacy of the fur trade. The Oregon Treaty of 1846 was Polk’s proud creation. It settled the international dispute with Britain once and for all. Benton provided the animus to move the Oregon Treaty on the congressional floor. Polk was using his political clout in this diplomatic battle not only to secure the Oregon Territory but to stake claims up to the forty-ninth parallel and the state of Washington. The Oregon Territory was secured through diplomatic channels rather than military conquest in the Treaty of Oregon.

OREGON BECOMES AN AMERICAN TERRITORY

America was able to avoid war with Britain during a time when things were heating up over Mexico and the annexation of Texas. The Senate ratified the Oregon Treaty in 1846, and the boundary along the forty-ninth parallel was extended from its previous terminus in the middle of the Rocky Mountain to the Strait of Georgia. The Hudson’s Bay Company would retain the right to navigate the Columbia River south of the forty-ninth parallel, and it was promised protection for its possessions in American territory.

The settlement and colonization of the Oregon Territory was achieved by an inner circle of movers and shakers with overlapping political connections. John C. Fremont, who had achieved military notoriety gained the patronage of political circles within the Democrat Party. He was an ally of President Polk and Thomas Hart Benton’s son-in-law, and gained government sponsorship to embark on a Western expedition with the elite Corps of Topographical Engineers. The army commissioned Fremont to map and survey the trail to Oregon to facilitate American settlement. He set out on his mission from St. Louis, Missouri, and eventually traversed the high desert of Oregon. He was the first to identify the Great Basin region in eastern Oregon. Fremont was also responsible for providing the means of settlement that would serve in Polk’s diplomatic claims for the Oregon Territory: a detailed map of the Oregon Trail.

But the story of Fremont is like many others in the formative period of Oregon’s history. Fremont and other critical players, such as Joseph Meek, were interconnected in a political web of opportunism. Fremont was married to Senator Benton’s daughter, and Meek was a relative of the President Polk’s wife, Sarah Childress Polk.

Joseph Lane started out as a state legislator from Indiana, along with many others from the Old Northwest, who settled in the Willamette Valley. He came to the region along the Oregon Trail in 1849. Previously he served as a general and was considered a

hero of the Mexican American War. Polk appointed him governor of the Oregon Territory. Later during the 1860 presidential election he ran as John Breckenridge's vice president, and as part of a pro-slavery wing of the Democrat Party. Lane was a devout defender of African slavery, and was a powerful figure in Oregon and the Democratic Party. Lane's political career ended when his venture into White House failed and Lincoln won the presidential election. Lane returned to Oregon a beaten man and spent the rest of his years isolated in Roseburg, Oregon until he died in 1881.

RACE AND THE OREGON LAND DONATION ACT

Oregon was created during a time of national tumult over slavery. The West was considered a “free soil” land for white labor, and a white racial utopia as well. The Compromise of 1850 had designated California a free state, meaning free from slavery, but like other states in the American West, California and Oregon were to be “free labor” states—the rightful domain of white laborers free from competition of nonwhites. This established a foundation in exclusionary racist policies in Oregon that guided state legislation until the twentieth century.

American laws founded on racial discrimination were established in western states during expansion while white settlers and their families arrived in the Oregon Territory by middle of the nineteenth century. The Oregon Donation Land Claim Act of 1850 was a racially hued land settlement scheme subsidized by the federal government, and excluded a vast swath of nonwhites from obtaining land. Black pioneers in Oregon regarded the Donation Act as encouraging the settlement of a particular race of people, not themselves. In a letter to the renown Frederick Douglass, the African American abolitionist and the editor of *The North Star*, one of the earliest black residents of Portland wrote to him, “Even in the so-called free territory of Oregon, the colored American citizen, though he may possess all the qualities and qualifications which make a man a good citizen, is driven out like a beast in the forest, made to sacrifice every interest dear to him, and forbidden the privilege to take the portion of the soil which the government says every citizen shall enjoy.”^[32]

The Donation Act severely curtailed the territorial claims of Indians and overrode treaties that had been established between Euro-Americans and indigenous people of Oregon. The public domain was generally considered to be an inexhaustible source of wealth, and the availability of unsettled and unclaimed land, according to Euro-American perceptions, was seen as a solution to overcrowding and financial autonomy. During the American colonial era, frontier settlers and land speculators promoted growth and expansion of the colonies, and brought concomitant violence and tensions between Euro-Americans and Native Americans. Government authorities responded to political pressures by either attempting to bar limits on the spread of the western frontier, which always met with resistance, or provide funding for military protection and security of settlers who intruded within Indian territorial borders established by agreements and treaties. It was a double-edged sword; frontier agitation promoted western expansion and settlement for the United States, but gradually eliminated Indian hunting grounds, the traditional customs and livelihood of indigenous tribes, and their sovereign rights. The Land Donation Act was a teleological means to eradicate Native Americans from Oregon soil either by relocation or elimination.

While the history of the rugged individual archetype has become a critical ideological thread in the making of the West, it is an image that must take into account how reliant the pioneers were on government support and subsidies, and military support. Settlers in Oregon looked to the federal government to help them achieve solutions to the problems of land titles. The Donation Land Claim Act recognized the generous land claims of Oregon's provisional government and set up a system for acquiring additional land. It was an early homestead act. Each white male citizen eighteen years or older was entitled to 320 acres of land if single; if he married by December 1, 1851, his wife could claim another 320 acres. A person had to live and use the land only for four years in order to have the right to gain title to the land, a narrow reading and interpretation of the legal precedent, *res nullius*. This created an open-ended ruling of Native land claims which frequently declared them as “abandoned property” according to Western laws. Prospective claimants needed only two witnesses to prove whether a contested plot of land was considered “in use” by the fruits of labor of its owner.

GENDER, PATTERNS OF SETTLEMENT and LAND DONATION ACT

Generous land provisions within the Land Donation Act promoted more immigration and marriages within Oregon. Within a few years, little of the Willamette Valley was left unclaimed, and this spurred development in eastern Oregon in 1860. Oregon's skewed sex ratios and the provisions of the Donation Act meant that many women married men twice their age or more which was starkly different than communities of Northern European origin. According to the historian Dorothy Johansen, “This did not assure their

[women's] independence but it did assure any woman of barely marriageable age a husband.”[33] Until 1849 women accounted for only 15 to 20 percent of travelers on the Oregon Trail. Men outnumbered women by a ratio of 2.5 to 1 in 1850. The American West scripted a different age disparity between men and women in marriage. Men in their twenties and thirties greatly outnumbered women, and marriage could double the amount of land men and women could farm. Marriages were made at a young age, often without women's input, and abuse was not uncommon. “What could a girl of 14 do to protect herself from a man of 44,” wondered a woman whose husband “used to beat me until I thought I couldn't stand it.”[34] Abigail Scott Duniway, a pioneer of women's suffrage in Oregon, cast a critical eye upon the vast age disparity between husbands and wives due to the mechanism of the Land Donation Act, and women's subservient condition, “The result is subjugation on one hand and despotism upon the other.”[35] But the Oregon Donation Land Claim Act was a watershed event in women's property rights, and many wives were able to keep legal titles to their lands. During the Donation Land Act's five-year existence, 8,000 claimants acquired three million acres. Most of the land that was claimed was in the Willamette Valley, whose landscape would be forever altered from the way the Indians had shaped it.

Land grants were given to settlers without the agency of the territorial government. The intention was to promote migrants from the Midwest, Appalachia and southern states to wrest control of the region from the Hudson Bay Company and the residing indigenous tribes. Homesteads in Oregon tended to include log cabins, an architectural form that pioneers had carried over from the colonial period, bringing traditional building styles and cultural practices from the Midwest and upper South.[36] According to nineteenth century liberalism, the act was intended to stimulate land settlement and benefit the country by the means of racial improvement through civilization and progress.[37]

SAMUEL THURSTON and LAND DONATION ACT

The pioneer and lawyer Samuel Thurston was the first delegate from the Oregon Territory to serve in the House of Representatives in the United States Congress. The voters of the Oregon Territory relied on him to secure federal lands for Oregon. He was one of the chief architects of the Land Donation Act. A donation bill like Oregon's had only been encountered one other time in the federal land system, and that was in the state of Florida which served as an Indian defense mechanism against the Seminole tribe during the Seminole War. In 1824, the land donation law of Florida permitted Euro-Americans to acquire land titles up to 640 acres from Seminole holdings and Spanish claims. Similar to the Oregon land donation act, the intention was to claim indigenous land holdings and induce white settlement. Thurston insisted the donation bill was necessary to compensate the settlers who made the journey. Several homestead bills were being passed by influential senators like William Seward, known for the purchase of Alaska from Russia, and Daniel Webster. Thurston failed to get the support of newspaper magnate Horace Greeley who felt the apportionment of 640 acres was too much for families. But Thurston pressed on to pass the bill in the House and the Senate.

A second provision of the Donation Act limited the grants of land to white settlers only. Thurston intended to exclude Pacific Islanders and African Americans from Oregon. The congressional debate over this provision revealed the sectional divide between abolition-minded representatives and southern representatives who delivered fiery speeches on the natural inferiority of African Americans. The amendment to exclude blacks from the state of Oregon was adopted by Congress and passed by a vote of 68 to 51. [38] Eventually Thurston was able to get the Land Donation Act to pass the House and Senate in 1850.

While Oregon would become primarily a settlement and a trading interest with East Asia, the pioneers who came to the region brought their illusions of self-reliance and motivations of individualism and autonomy to Oregon. The federal government showed generous gratitude to settlers of Oregon by legislating huge tracts of land through the Donation Land Claim Act of 1850, which was a profoundly racially hued mandate of land settlement in Oregon that would exclude a slew of nonwhites from gaining property in the region. The foundational establishment of exclusivity and racial privilege became a significant constitutional precedent during the formative years of statehood in Oregon, and carried on into the twentieth century.

[1] Schwantes, Carlos: *Pacific Northwest: An Interpretive History*, (University of Nebraska Press: Lincoln, 2000)

[2] Turner, p. 269.

[3] Miller, Robert: *Discovering Indigenous Lands: The Doctrine of Discovery in the English Colonies*, (Oxford University Press: Cambridge, 2012) p. 83.

[4] It is a phenomenon that continued in the expansion of the American West that drove prospective farmers in the Southern Plains before the Dust Bowl. It was the promise of bountiful harvests that seemed too good to be true. Boag, Peter: *Environment and*

Experience, p. 88.

[5] Johansen, Dorothy: *Empire of the Columbia, A History of the Pacific Northwest* (Harper and Row Publishers: New York, 1957) p. 43.

[6] Peterson del Mar, David: *Oregon Promise*, p. 47.

[7] Schwantes, Carlos: *Pacific Northwest: An Interpretive History*, p. 95.

[8] Ibid. p. 98.

[9] Congressional Globe 27th Congress 3rd Session, p. 117 (February 2nd 1843)

[10] Ibid.

[11] "Oregon-Adjourned Meeting," *The Ohio Statesman*, March 5th, 1844, issue 51.

[12] Thomas Hart Benton, *On The Oregon Question*, Speech delivered in the Senate of the United States May 22,25,28 1846, (Blair and Rives: Washington, 1846)

[13] American Indian policy would not begin to experience any significant changes at the federal level until the Indian New Deal of John Collier during Franklin Roosevelt's presidency. By the 1960s, the protection of Native American sovereign rights was becoming the established norm in American politics.

[14] Boag, Peter: *Environment and Experience*, p. 58.

[15] Benton, p. 28

[16] Benton, p. 29

[17] Ibid.

[18] Ibid.

[19] Kelley, Jackson Hall, p.72-76.

[20] Thomas Hart Benton, p. 30.

[21] Ibid.

[22] The historiographical consensus has been reached by which Columbus's work is no longer seen as heroic and beneficial to American civilization since it has been thoroughly documented by Dominican friars like Bartolomeo Las Casas that Columbus tortured, maimed, raped and killed Carib and Taino Indians in the Caribbean. See James Loewen, *Lies My History Teach Told Me* (New Press: New York, 2008).

[23] Powell, Fred W. (ed.): *Hall Jackson Kelley on Oregon: a collection of his published works*, (Princeton University Press: Princeton, 1932) p. x

[24] David L. Nicandri, "The Columbia Country and the Dissolution of Meriwether Lewis: Speculation and Interpretation," *Oregon Historical Quarterly*, Vol. 106, No. 1 (Spring, 2005), pp. 6-33

[25] Ibid, p. 10.

[26] Fred Wilbur Powell: *Jackson Hall Kelley On Oregon: a collection of his published works* (Princeton University Press, 1932) p. 98

[27] Ibid.

[28] Ibid.

[29] Ibid.

[30] Miller, Robert: *Native Americans*, p. 148

[31] Benton, *Speech to Congress*, p. 24.

[32] McLagan, Elizabeth: *Peculiar Paradise*, p. 46

- [33] Johansen, Dorothy O., and Charles M. Gates. *Empire of the Columbia: a History of the Pacific Northwest*, (New York: Harper & Row, 1967)
- [34] Peterson del Mar, *Oregon Promise: An Interpretive History* (Oregon State University Press: Corvallis, 2003) p. 75
- [35] Peterson del Mar, *What Trouble I Have Seen: A History of Violence against Wives*, (Harvard University Press: Cambridge, 1996) p. 11
- [36] Boag, Peter: *Environment and Experience*, p. 58.
- [37] Nineteenth century liberal ideology commonly embraced the ideas of imperial expansion, racial betterment and civilization as intertwined concepts throughout Western Europe.
- [38] Bergquist, James: "The Oregon Donation Act, and the National Land Policy," *Oregon Historical Quarterly*, Vol. 58, No. 1 (Mar., 1957), pp. 17-35

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1.4: Native Americans in the Land of Eden- An Elegy of Early Statehood

FEDERAL AND STATE AMERICAN INDIAN POLICY

The middle of the nineteenth century marked a period of incredible violence, rapid change, and forced migration of Native American peoples. After the passage of the Land Donation Act in 1850, Native American communities were besieged and displaced by settlers, miners and government officials at a furious pace. The early half of the decade was marred by massacres and war in a period of ethnic cleansing of the indigenous people of Oregon. The Euro-American colonists in the Oregon Territory gained the upper hand on Native populations through deliberate acts of violence and waves of epidemics and disease brought on by exposure to colonization and the fur trade. The settlers of Oregon aligned with federal American Indian policy and thought the “Indian question” had two answers: extermination or assimilation to Anglo-Saxon cultural mores and institutions. Otherwise, Indians of Oregon faced relocation on the reservations. During the history of the Native American experience since the American Revolution, relocation had been pursued and enacted repeatedly by an overly intrusive federal government since the Treaty of Greenville of 1795, which allowed American expansion into Shawnee, Wyandot, Delaware, and Miami territory in the Ohio Valley.[1]

In the early history of the American republic, treaties between the Native tribes and the United States were negotiated between roughly two equal powers, but as time wore on, the sovereign rights of indigenous people eroded under federal policies. Although in the ruling *Worcester v. Georgia* in 1832, the Supreme Court had stated Native American nations, like the Cherokee Tribe, have defensible sovereign rights to their land. President Andrew Jackson arrogantly ignored the Supreme Court ruling and claimed he held executive power to forcibly move the Cherokee with the passing of the Indian Removal Act in 1830. Relocation of Natives to reservation lands set aside by the federal or state governments involved forced migrations causing starvation and suffering. The forced migration of the Cherokee people was a jeremiad in historical memory known as the Trail of Tears to the Oklahoma Territory. This is a pattern that repeated itself in Native American history in Oregon, and many other western states.

By the end of the nineteenth century, the Indian populations of Oregon and the United States had seen their lands and people shrink into small enclaves removed from mainstream society. Many American wondered if Native Americans were a dying race inevitably bound for extinction at the end of the nineteenth century.[2]

OREGON TRAIL

The Oregon Trail brought in settlers from the southern, midwestern and eastern states of America to Oregon and California. A mass migration of settlers and pioneers arrived in the Willamette Valley during the 1840s. They were driven by self-interest and wanted immediate wealth in land. Pioneers imagined the Willamette Valley as a Land of Eden where poor health and financial debts could be alleviated. Unlike the common migrant heading to California, the Euro-American pioneers heading to Oregon were homesteaders rather than gold seekers or land speculators. The promise of free land from the Land Donation Act lured thousands to the Willamette Valley during the mid-1850s. The region changed from a fur-trading zone to a farming frontier through the political will of politicians, military personnel, missionaries and entrepreneurs, and of course settlers.



Oregon Trail, marked by ruts from wagon wheels, leading to the Sweetwater River Valley in Wyoming.

At approximately 2,000 miles in length, the Oregon Trail represented the longest overland trek that American pioneers attempted to the Northwest. From 1840 to 1860 approximately 300 to 400 hundred thousand people set out on the Oregon Trail with guidebooks serving as their navigation systems. Few pioneers were attacked by Natives on the Oregon Trail, although there were incidents of theft in eastern Oregon. The primary threat to the Oregon pioneers were sanitary and hygienic concerns along the trail and the spread of cholera and dysentery. Bodies were not carefully buried away from water sources, and the disease swept through the strenuous passage. Many travelers along the trail did not experience the comforts of domesticated living and urban environments.

Migration on the Oregon Trail was an annual event. Oregon-bound pioneers drove wagons into the Willamette Valley through treacherous mountain passages such as Barlow Pass or braved the violent unpredictable waters of the Columbia River at The Dalles upon a raft. Sam Barlow's toll road was an alternative option to the Columbia that also started at The Dalles, and ran along the southern edge of Mount Hood to Oregon City in the Willamette Valley.

The multitude of traveling pioneers and immigrants heading into the Oregon Territory drew concern for the Chief Factor of the Hudson's Bay Company, James Douglas who acknowledged the changing appearance and intentions of emergent communities in the Oregon Territory. Douglas, whose mother was of Afro-Caribbean ancestry from Barbados, became the Chief Factor of the Hudson's Bay Company in 1839. Douglas was the first to be a highly ranked official of mixed racial ancestry in the Oregon Territory. Historians have concluded that Oregon's early exclusionary laws may have been directed against people like Douglas. As early as 1831, he predicted the consequences of a large migration of American settlers to the fur trade in Oregon: "The interests of the American colony and the Fur Trade will never harmonize, the former can flourish, only, through the protection of equal laws, the influence of free trade, the accession of respectable inhabitants; in short, by establishing new order of things, while the Fur Trade, must suffer by each innovation."^[3]



James Douglas, Chief Factor of Hudson Bay Company

Many who had been influenced by the evangelical fervor of Oregon Fever kept bibles with them because, in the words of one pioneer, "We hope not to degenerate into a state of barbarism." Like Lewis and Clark, Oregon pioneers thought that they were entering a land of evil and darkness prone to sin and savagery. Oregon Trail settlers held unfounded fears of Native Americans and brought large arsenals of weapons, and several on the trail died from gun accidents. Crime and punishment, or any semblance of a criminal justice system, was based on frontier law. Settlers made their way across the Great Plains supporting the concept of righteous revenge and punishment for individual crimes. *Lex talionis*, the law of retaliation, co-opted from ancient Middle East societies like Sumer, known familiarly as "an eye for an eye, a tooth for a tooth," was the spirit of the law on the American frontier, and it was the legal tradition along the Oregon Trail. In all but two isolated cases, the death penalty was disproportionately enforced upon Native peoples in frontier law that lacked due process. Hangings ordered by the courts gave the appearance of legal lynchings and were part of the general warfare between the new and the old residents.^[4]

THE WHITMAN MISSION AND THE CAYUSE

Elijah White was one of the first of thirty white men who settled in Willamette Valley. In 1837, he joined the Methodist mission in the Willamette Valley. White led the first wagon train with more than 100 people over the Oregon Trail to Oregon and discovered a pass through the Oregon Coast Range to what is now the town of Newport. In 1842, more than a hundred persons and eighteen wagons rolled west under the guidance of White. It was the first party to form a multiple-wagon train in which families predominated. Elijah White was an ambitious man and a driven leader, but was a horribly cruel state official as the first Indian agent of the Oregon Territory. Arrogance reverberated through the actions of Elijah White. White attempted to run Indian affairs through draconian ideas of governance such as a law that penalized wrongdoers by flogging them. White expected the Native people to be prone to his will. He was ignorant of the Indian societies, and had no understanding of their tribal structure, or how independent bands operated. White's laws did nothing to quell the distress among the Cayuse who lived along the Oregon Trail and experienced mass migrations of white settlers passing through their lands putting pressure upon their communities.

In the spring of 1843, rumors of discontent among the Nez Perce, Cayuse, and Walla Walla suggested they might attack the settlements west of the Wallowa Mountains. The tribes were angered by the killing of their game, the opening of the Oregon Trail, and the news that Marcus Whitman, a missionary who had lived among them since 1836, would soon lead a large wagon train of more Euro-American immigrants to Oregon. White attempted to assuage the Cayuse and Walla Walla societies by establishing a code of laws to govern their society and demanded their loyalty.

"If they would lay aside their former practices and prejudices stop their quarrels, cultivate their lands, and receive good laws, they might become a great and a happy people, that in order to do this, they must all be united, for they were but few in comparison to the whites; and if they were not all of one heart they would be able to accomplish nothing; that the people should be obedient and in their morning and evening prayers they should remember their chiefs."^[5]

Upon Elijah White's insistence, the Indians were to be of one heart, or unified and subservient under his command. White was an avid proponent of the "civilization program." It became a centerpiece of federal American Indian policy and focused on converting Natives to Protestant faith and cultural values along with "agrarian virtue": farming and American manhood. Indigenous peoples shared concerns over White's leadership and the laws he enforced. Yellow Serpent of the Walla Walla said, "I have a message to you. Where are these laws from? Are they from God or from earth? I would that you might say they were from God. But I think they are from the earth because from what I know of white men they do not honor these laws." An Indian named Prince commented, "People [like White] had been coming along, and promising to do them good; but they had all passed by and left no blessing behind them."^[6]

Elijah White lacked an understanding of Indian diplomacy and was unable to reach mutual agreements and concessions with tribes. He was considered one of the primary causes of the Whitman Massacre with the Cayuse Indians in Walla Walla. According to the historian Stephen Dow Beckham, "Seeds of distrust between white settlers and the Indians prompted Dr. Elijah White to try to impose laws and craft a hierarchy of chiefs among the Cayuse. Going one better than the dealings of Moses with God, White handed down eleven commandments to the Plateau Indians in 1843."^[7]

The Cayuse lands were bisected by the Oregon Trail, and the Whitman mission at Waiilatpu, "The Place of Rye Grass." Marcus Whitman appealed to the American Board of Commissioners for Foreign Missions (ABCFM) to retain their mission in Oregon. The board intended to recall him and other missionaries including Henry Spaulding. Whitman was an ardent expansionist and felt if the ABCFM closed their missions, then the United States would lose its Oregon claim. His travels across America during the winter to the board of commissioners elevated his heroic status as the "man who saved Oregon."^[8] In the fall of 1843, Dr. Whitman returned with more than a thousand emigrants from Missouri. The newcomers brought smallpox and trouble to the Cayuse Indians. The Indians, upon observation of this event and previous incidents, had reason to believe the intentions of the Whitmans were for conquest and not peace.



Whitman Saves Oregon!

During the existence of the Whitman Mission, The Cayuse and the Whitmans would conflict in many ways, and the Whitmans did not prove to be tolerant diplomatic leaders. In 1841, Marcus Whitman had an argument with a Cayuse chief who insisted on payment for occupying their land. Whitman was intransigent and the chief struck him and pulled his ears. Narcissa Whitman, Marcus's wife, considered Oregon Trail pioneers unwashed, unchurched, and foul mouthed. During her missionary work in 1840, she felt the Cayuse Indians, "...are an exceedingly proud, haughty and insolent people...We feed them far more than any of our associates do their people, yet they will not be satisfied. Notwithstanding all this there are many redeeming qualities in them, else we should have been discouraged long ago. We are more and more encouraged the longer we stay."^[9]

William Gray who was a member of the Spalding-Whitman entourage tried to punish the Cayuse for their "mischievous behavior." Missionaries, like Gray, put emetics in melons to prevent the Cayuse from stealing from the Whitman farms. This struck the Indians as bizarre behavior, poisoning perfectly good food. Punishments of this kind were met with retribution from the Cayuse. As tensions increased, there were acts of Cayuse vandalism and broken windows on mission properties. Overall the Cayuse disliked the teachings of "agrarian virtue" and viewed the manual labor of farming as beneath their dignity.

The Whitmans and their associates Henry and Eliza Spaulding in Nez Perce country were not very successful missionaries. The Cayuse were resistant to the religious conversion of the Whitmans, whereas the Nez Perce were initially receptive to Christian evangelism. Tuekakas (Old Chief Joseph) of the Nez Perce welcomed baptism, but later renounced his faith when he felt he had

been deceived by government officials and ABCFM missionaries. The Whitmans knew the situation with the Cayuse was bleak since their mission on the Walla Walla River was only twenty-five miles upstream from the Columbia River, and that meant the Cayuse would be exposed to various newcomers trickling into the Oregon Territory bringing diseases with them.

Many who were struck sick along the trail from unsanitary conditions and rampant disease brought epidemics of measles and dysentery into the region. Fifty percent of the Cayuse died in less than two months after contact with the settlers in the Whitmans party. The disease did not affect white children the same way it did Cayuse children, who typically did not recover. Already suffering from a spread of diseases, the Cayuse saw the pioneers as a great uninvited and menacing invasion. Whitman only aroused suspicions further by continually providing food and sanctuary for Euro-American migrants arriving on the Oregon Trail, thus jeopardizing the goals of the mission with the Cayuse.

Letters written to the Hudson's Bay Company conveyed the increasingly tense situation among the Cayuse and the impending doom for the Whitmans:

"I presume you are well acquainted that fever and dysentery have been raging here in the vicinity, in consequence of which a great number of Indians have been swept away but more especially at the Doctor's [Whitman] place, where he had attended upon the Indians. About thirty souls of the Cayuse tribe died, one after another, who evidently believed the Doctor had poisoned them, and in which opinion they were, unfortunately confirmed by one of the Doctor's party."^[10]

In November 1847, a group of Cayuse men attacked the Whitman mission, murdering Marcus and Narcissa, and several others. It was an event known as the Whitman Massacre. Upon hearing of the Whitman attack, James Douglas, Chief Factor of the Hudson's Bay Company, wrote to the provisional governor of Oregon, George Abernethy. He referred to the attack as a gross injustice without justifiable cause and the Cayuse must receive immediate retribution for the murder of the Whitmans who were completely blameless.



The Whitman Massacre of 1847, signaling a tragic shift in Indian relations.

"One of the most atrocious [sic] which darkens the annals of Indian crime. [The Whitmans] have fallen victim to those remorseless savages who appear to have been instigated to this appalling crime but a horrible suspicion which had taken possession of their superstitious minds, in consequence of the number of deaths from dysentery and measles...Dr. Whitman has been laboring incessantly since the appearance of the measles and dysentery...and such has been the reward of his generous labors."^[11]

George Abernethy wrote to the Provisional Legislature of Oregon upon hearing the news from the chief factor, "This is one of the most distressing circumstances that has occurred in our Territory, and one that calls for immediate and prompt action...I have no doubt but the expense attending this affair will be promptly met by the United States government."

Upon knowledge of the letter from Abernethy and the Hudson's Bay Company, the Provisional Legislature in Oregon City adopted the motion of the Jacksonian Democrat, James Nesmith, politically aligned with Joseph Lane, who saw his duties tied solely to the protection of Euro-American settlers, and the immediate prosecution of the Cayuse Indians. "Resolved, that the Governor is hereby required to raise arms and equip a company of riflemen, not to exceed fifty men, with their captain and subaltern officers, and dispatched them forthwith to occupy the mission station at The Dalles, on the Columbia River, and to hold possession of the same until reinforcements can arrive at that point, or other means to be taken as the Government may think advisable." After serving in the provisional government, Nesmith served in the Oregon Volunteers in the Cayuse War as a captain and continued his military career fighting various Indian wars. He also served as a captain in the Rogue River Indian Wars and as the Superintendent of Indian Affairs from 1857 to 1859, where he engaged the southern coastal Indians of Oregon as an inexorable eliminationist that he could "see no way that the settlers can rid themselves of the nuisance, unless they can hit upon some mode for their extermination, a result which would occasion no regrets at this office."^[12]

The first war in Oregon broke out between Cayuse and 500 Oregon volunteers from the Willamette Valley who were soldiers raised by the Oregon Provisional Legislature. Some of the Cayuse had no knowledge of the intention to kill the Whitmans. The settlers

learned that the Cayuse had a law that when one committed murder, one forfeited his own life. George Abernethy offered up a declaration to the chiefs of the Nez Perce and other tribes: “We want the men that murdered our brother Dr. Whitman, and his wife. We want all of these to be given up to us, that they may be punished according to our law.”

The Cayuse tribal leaders turned over five members of their tribe to stand trial. This was the first trial where judicial proceedings were formalized and recorded in Oregon. In 1850, five Indians were hanged in Oregon City on Main Street along the Willamette River in retaliation for the Whitman incident. Public executions in the early stages of Oregon’s history were massive public spectacles, and if the victim was nonwhite, then the crowds in attendance would increase in size with greater fervor and interest. Over 1,000 Oregon settlers attended this spectacle of retributive capital punishment of the Cayuse.

Joseph Meek, United States marshal, used his Indian hatchet to cut the rope and drop the five Cayuses to their death. For Meek, this execution was personal and brought him partial vindication in the legal culture of *lex talionis*. Meek left his daughter under the care of Narcissa Whitman at their mission where she died along with the Whitmans at Waiilatpu. Meek went to Washington D.C. and presented the news to Congress about the Whitman tragedy. He also brought along petitions from Willamette Valley settlers requesting statehood. This spurred Congress to create the Oregon Territory, the first American territory west of the Rocky Mountains.

Joel Palmer and the Nez Perce

Joel Palmer, who became Superintendent of Indians Affairs thought the Nez Perce understood the law of the Christian God which they had welcomed in their community. After the downfall of the Whitman Mission, Piupiumaksmaks, Yellow Bird of the Nez Perce, had assured Palmer and Oregon government officials that they no longer were allies of the Cayuse. The Nez Perce felt the neighboring Cayuse had virtually isolated themselves from any alliances with other tribes. Oregon officials, through diplomatic channels, drew together an enduring chain of allegiance with the Nez Perce, who foresaw that retaining the “power of God and his law” would win them favor in negotiations, and Tuekakas (Old Chief Joseph) and his son Hin-mah-too-yah-lat-kekt (Thunder Rolling Down the Mountains), or Chief Joseph converted (although briefly) to Christianity. After the Civil War, gold was found in Nez Perce country in the Wallowa region. Relations between the Nez Perce and the American government quickly deteriorated, and the alliance they once held was broken.



Chief Joseph of the Nez Perce or Niimípuu, “The People”

For Joel Palmer, he felt peace was attainable, and the settlers of Oregon could reach an agreement with the Nez Perce that “this land will be purified, and in no other way will we have peace.”^[13] Palmer was one of the more sympathetic and diplomatic government agents to the Natives of Oregon, but often his hand was forced by external pressures that were beyond the reach of his authority, especially by the settlers of Oregon. He brokered many of the early treaties with the Oregon Indians including the end of the Rogue River Wars which resulted in the forced relocation of the Siletz and Tolowa tribes to the Grande Ronde Reservation also known as the Oregon Trail of Tears.

Many of the settlers became enraged with Palmer for his empathetic diplomacy because they felt he was too soft with the Indians, and should be more forceful with them. The settlers felt they should not have to accommodate the indigenous people in diplomacy. Manifest Destiny had permeated the minds of settlers and the relocation and extermination of Native peoples proceeded without hesitation.

Kalapuya of the Willamette Valley

The land grab of the Oregon Territory was rapid and extensive in the Willamette Valley. In the early years, settlers of the Kalapuya region would turn their livestock out onto the unclaimed and unfenced open prairies. Stock raising was an important part of settlers' work, and cattle and swine ran free everywhere eating camas bulbs and other tubers the local Kalapuya had traditionally harvested for thousands of years. The arrival of Euro-American settlers and explorers caused the Kalapuyas to experience demographic collapse. Their culture was in shambles, their villages were destroyed, and communal food gathering activities no longer existed. Around the lower Willamette Valley, malarial epidemics in the 1830s killed thousands of Kalapuyas. The traditional means of curing illness by calling on a shaman or going to the sweat lodge did not stop the spread of disease and death. In particular, the sweat lodge proved to be fatal when Indians exposed themselves to high temperatures in the lodge and then immersed themselves in a cold bath afterward. This in turn would exacerbate the illness and become a deadly combination.

The only threat the Kalapuyas posed was in the settlers' minds. Kalapuyas were starving while the settlers from the Appalachia area bore militant attitudes toward Native Americans. President Millard Fillmore created the Willamette Valley Treaty Commission (WVTC) in 1850 to secure the cession of the Willamette Valley to the United States through the Land Donation Act and the removal of all the Kalapuyas and Molallas to east of the Cascade Mountains. The tribes refused to be moved to the Great Basin region of eastern Oregon, where the natural environment was vastly different from their homeland and far less accommodating. The commissioners seemed oblivious to the tenure of the Wasco, Tenino, and Northern Paiute on the Columbia Plateau to the east.

The WVTC tried to encourage the Santiams to move to a tract of swampy country that contained grazing for livestock. The commissioners thought this would be suitable for the Santiams, and offered to pay three times the amount of the value of their Tribal lands. At the Santiam Treaty Council, Alquema, one of the council leaders stated that the commissioners' offering was completely insufficient:

"It would tie us up into too small a space; it is no reserve at all. Some of the whites are foolish. They would whip and kick us and tell us to go Home. We want the whites on the other side of the creek. They would be too close to us if we let them be so near our homes. They would ill treat us...you want us still to take less. We can not do it; it would be too small; it is tying us up into too small a space. We understand that it may be better for us (to move east of the Cascades) but our minds are made up. We do not wish to leave...we would rather be shot on (this land) than to remove."^[14]

The Treaty with the Kalapuya of 1855 forced the remnant Kalapuya and other tribes of the Willamette Valley to cede the entire Santiam watershed to the United States. The Santiam of the Mid-Willamette Valley wished to retain their lands in the north half on the forks of the Santiam River, but they were only given half of their holdings. The land the Kalapuya ceded reached from Champoege and Aurora south along the western side of the Willamette River to the vicinity of Brownsville. It included the valley from the western Cascades to the Willamette River and embraced the drainages of the Pudding, Santiam, and Calapooia Rivers. Eventually the people of the Santiam region would be relocated to the short-lived Umpqua reservation in southern Oregon, and the Kalapuya and Molallas were resettled in the Grande Ronde Reservation in the Yamhill Valley.

GOLD MINING AND VIOLENCE IN SOUTHERN OREGON

Oregonians mined an estimated five million dollars of California's gold. More importantly, California's booming economy provided Oregon with a growing nearby market for wheat, lumber, and beef. The discovery of gold in Josephine Creek created a boom for miners and merchants in Southern Oregon. The gold bonanza in Southern Oregon stimulated the state's economy by expanding commerce and trade in the markets and agricultural sector. The central and northern Willamette Valley, along with the city of Portland, benefitted and experienced tremendous economic growth and development. For gold seekers, Portland did not seem to be so much a city as it was a vast warehouse where goods from the farms and settlements along the Columbia and Willamette rivers were gathered for shipment to San Francisco and foreign markets.

When gold was discovered in the black sands north of the Coquille River of Oregon in Coos County region in 1853, things took a violent turn for the tribes of south and southwest Oregon. More than a thousand miners flooded the region in search of quick wealth and prospects from nearby Rogue River and Gold Beach. They established a town called Randolph near the Nasomah village of the Coquille tribe near present-day Bandon. The miners of Randolph disregarded the Coquille and the other local tribes. The Coquille's land was invaded and exploited and native women were sexually violated. Tensions built between the two sides until the Euro-American miners resorted to extermination of the local indigenous people. The miners of Randolph formed the Coos County

Volunteers and they were led by their captain George Abbott. The miners created bogus complaints to curtail the movement of the Nasomah, and after a clash between a native and a white man, the miners descended upon the Nasomah village while they were asleep. Abbott and the Volunteers killed twenty-one of the Nasomah and burned down all of their homes. The villagers were outnumbered and outgunned and had only three functioning guns. Indian Agent F. M. Smith described the terrorist actions of the Volunteers as “a most horrid massacre ... a mass murder perpetrated upon a portion of the Nasomah.”^[15] The Coos County Volunteers audaciously billed the federal government for services rendered to the state of Oregon.^[16] They felt they were providing security services to allow the commerce of gold mining to flow freely without interference from the indigenous people. The miners of Randolph afterward passed seven resolutions justifying their slaughter.



Joel Palmer, Superintendent of Indian Affairs

Superintendent of Indian Affairs Joel Palmer did not see the incident in the same way, and forwarded a letter to Washington from the Sub-Indian agent F.M. Smith of Port Orford stating, “These miscreants, regardless of age or sex, assail and slaughter these poor, weak and defenseless Indians with impunity as there are no means in the hands of the agents to prevent those outrages or bring the perpetrators to justice.”^[17] Palmer requested the federal government to bring in a military presence to protect the Coquille amidst the opinions of outraged settlers of the community whose “sense of justice and humanity” had been repulsed by the wanton inhumane violence of the miners and their militia. He felt the settlers who deplored the conduct of Abbott and his volunteers were forced into silence. When the reports were published, Palmer and Smith were given death threats from the miners. Smith fled Port Orford and abandoned his position as Sub-Indian agent. The Coquille lost 700,000 acres of their lands, and many were ordered by Palmer to move to the Grande Ronde Reservation in Yamhill Valley. Palmer concluded the Coquilles lives were in danger and needed to be moved for their own safety. The stark reality of American Indian relations with Euro-American settlers frequently was resolved with relocation because otherwise Native Americans’ lives were in danger if they remained.

Before Smith departed from his post in 1854, Benjamin Wright was appointed by state officials to be the next special sub-agent of Indian Affairs at Port Orford. Wright was considered a “hero” from Yreka who according to the white community was feared and respected by the Natives. Wright was the Indian agent responsible for brokering interactions between the federal government and all tribes south of Coos Bay, Oregon. Many Indians considered this a clear indication they were targeted for extermination. Whereas miners and other unsympathetic settlers, saw Wright as the solution to their “Indian problem”. For Ben Wright, alcohol was a precursor to violence revealing his diabolic nature and his murderous intentions towards the indigenous people of Oregon. Under his corrupt leadership, Native American communities suffered. It was well known that he kept Native women captive for his sexual convenience, and took trophies such as scalps, noses, and fingers from the people he and his posse murdered. In 1852, Wright led a party of Yreka residents who massacred and mutilated forty Modoc in southern Oregon. This event would later be known as the Ben Wright Massacre, and it played a major role in the precipitation of the Modoc War, discussed later in this chapter.

According to another account, Wright was drunk and tried to sexually solicit Chetco Jenny, his government-appointed interpreter. She struck him, and Wright scandalized even the miners at Port Orford when he stripped and whipped her as she ran naked through the streets of town. Chetco Jenny would have her revenge later, when she had Ben Wright killed.^[18] Palmer wrote a letter to Oregon governor George Law Curry in 1856 warning him about the bleak situation for the Indians of Southern Oregon.

“You are not ignorant of the feeling . . . which, in many districts looked to the system of extermination as the only available policy to be pursued by the Government. . . a history of the settlement and occupancy by whites, of Southern Oregon and Northern California would be a history of wrong against the red man; and the cunning, the violation of faith, the treachery and savage brutality said to be the characteristics of that people, have been practiced towards them to a degree almost inconceivable, by the reckless portion of whites who have cursed that land with their presence in the last six years.”^[19]

GOLD MINING AND THE ROGUE RIVER WARS

As time went on, settlers moving into Oregon grew more resentful and hostile to Native peoples. The outbreak of the Cayuse War in northern Oregon and the sensationalist press coverage of the Whitman Massacre fueled animosities toward the Indians. Pioneers held to the maxim that “the only good Indians were dead ones”, and it applied to the Rogues as well. The Rogue Indians share a commonality with the Nez Perce: they were given their name by Euro-American settlers. They were labeled “Rogues” or “Rascals” because they resisted trespass and wanted to defend their people from intrusion of Euro-American settlers. The “Rogue” peoples included multiple Athabascan (Tututni) tribes, specifically the Upper Coquille (Mishikwutinetunne), Shasta Costa, Tututni, Taltushtuntede, Dakubetede, Latgawa, Takelma/Dagelma, and Shasta. In 1850, the population was estimated to be about 9,500 people. The *Oregon Spectator* published a letter in 1847 from Charles Pickett, the first Indian Agent for the area, cautioning settlers to:

“Treat the Indians along the road kindly, but trust them not. After you get to the Siskiyou Mountains, use your pleasure in spilling blood, but were I traveling with you, from this on to the first sight of the Sacramento Valley my only communication with these treacherous, cowardly, untameable rascals would be through my rifle....Self-preservation here dictates these savages being killed off as soon as possible.”^[20]

Pickett saw the Rogue Valley people as merely obstacles to Euro-American and settlement and commerce, and thought that elimination was the only viable option for the United States. The *Oregon City Oregon Spectator* stated, “A general disposition appears to pervade the minds of the whites to kill all the Indians they come across [in the Rouge River Valley]. The extinction of the entire race in that region is the most unanimous sentiment.”^[21] When miners reached the Willamette Valley, they corresponded with the territorial governor, Joseph Lane, to help them recover the gold they had lost through encounters with the Native population. In June 1850, Lane assembled a group of fifteen men and headed down to the Rogue River region with the intention of recovering the gold and signing a treaty with the Native groups. The previous year, in a letter to John Gaines, governor of Oregon Territory, Lane complained, “They (the Indians) will cut off our trade with the mines, kill many of the whites traveling in that direction, and seriously injure the prospects and interests of the people of this Territory.”

An all-too-familiar chain of conflict escalated between Natives and whites in the summers of 1851 and 1852 as large numbers of settlers began to pour into the Rogue River Valley. Root and seed fields maintained by the Takelma “(those) along the river” were turned to grazing land, and indigenous animal populations were decimated by reckless hunting. People faced increasing suffering and starvation, questioning why their lives were being destroyed by invaders. Miners on Jackson Creek and the news of gold strike spread during the spring of 1852. Hundreds more men joined the rush to the Rogue Valley, and a new boom town, Jacksonville, began to grow in the foothills. By that summer trouble was brewing in the region of the Klamath and Rogue Rivers. One member of a volunteer militia wrote, “The Cry was extermination of all the Indians by the whites and the company began to break up into small companies to go to different Indian Rancheries to clean them out.”

On July 18, 1852, miners attacked a village at the mouth of Evans Creek, killing several women. The volunteers involved in the incident were honored for their actions at a public dinner of song-making and merriment where over 120 people were in attendance. They were toasted by J.W. Davenport of Jacksonville who proclaimed, “On behalf of those who contributed to this dinner, may your generous acts on this occasion, be honored throughout this Valley; may its emblematic influence excite the independence of our Union, and may you live to see the time when the Indians Rogue River are extinct.” After the toast, the attendees broke out into a song to celebrate their heroic victory over the Rogues: “Rise, rise ye Oregon’s rise, rise rise ye Oregon’s rise, Hark hark, hark, how the eagle cries Rise, rise, ye Oregon’s rise on the Indians.”

Jacksonville became the epicenter of ethnic cleansing of Native Americans. On the 7th of August 1853, miners captured two Shasta men, one on Jackson Creek, and the other on the Applegate Trail. They were brought to Jacksonville and on examination it was found that the bullets belonging to one of their guns were the same size of the one used to kill a miner a few days before. The evidence and circumstances were enough to identify the men as the murderers, and they were hanged before 2 o’clock the same day.

From the diaries of Benjamin Dowell, a packer and a respected lawyer, insights can be gained into the nature of ethnic cleansing in an environment of bloodlust and fanaticism:

“Late in the evening of the day those Indians were executed, a small innocent boy about nine years old was brought to Jacksonville by three men from Butte Creek, with whom the boy had been living. The poor little boy on being discovered by the miners [was]

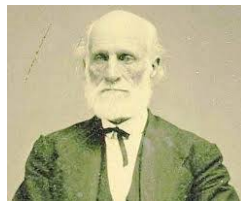
taken to a place near where David Linn's cabinet shop is now standing, and near where the scaffold where the two Indians were still hanging. I mounted a log near by, and called the attention of the vast crowd to the solemnity of the act they were about to perpetrate. I called on them to punish the guilty, but to spare the life of the innocent child. While pleading at the top of my voice the crowd gathered around the hangman's tree. Someone called out "what will you do with the boy." I replied, I will take him to a hotel and feed him. I went to him and took him by the hand and started up California Street when Martin Angel came up on horseback and without alighting commenced to harangue the mob against the murderous Indians. He said: "The war was raging all over Rogue River Valley, we have been fighting Indians all day; hang him, hang him; he will make a murderer when he is grown, and would hang you if he had a chance." The mob at once seized the boy and threw a rope around his neck, which I succeeded in cutting twice.... The excitement was so great that I found that my own life was in danger, and I had to withdraw. In a moment more the boy was swinging to a limb. I turned away with a sad heart at this inhuman conduct towards the innocent child, against whom no crime was charged. No mob ever committed a more heartless murder than this."^[22]

The miners not only hanged the Natives they could find in Jacksonville, but they also decided to attack a Shasta village on Bear Creek. Afterward, a parade of volunteers from the Crescent City Guard marched through Jacksonville "waving a flag on which was inscribed in flaming colors: Extermination."

When the miners experienced a temporary layoff in January 1855, nineteen men from Sailor's Diggings, a large gold-mining settlement a few miles north of the California state line, decided to attack Indian lodges along the Illinois River. At one of the villages, they found only seven women and three children. They shot the pregnant woman nine times and killed the children before returning to camp to get reinforcements. But the other miners wanted no part in this. Lieutenant George Crook sadly recalled, "It was of no unfrequent [sic] occurrence for an Indian to be shot down in cold blood, or a squaw to be raped by some brute. Such a thing as a white man being punished for outraging an Indian was unheard of. It was the fable of the wolf and the lamb every time."^[23]

The Rogue River Wars broke out into waves of violence in 1855 and 1856, where both sides attacked each other, and the level of brutality escalated. An Indian girl fetching water for her employers was shot, and her body was thrown in the river. An Indian boy in his early teenage years was hung from the limb of a tree, and another was caught and had his throat cut. Prominent citizens wrote to Governor George Law Curry, who made a proclamation condemning the violence against "peaceable Indians," but it was he who had sanctioned the violence against the Rogue River peoples in the first place. It was a wave of appointments for office and profits that were enabled by Governor Curry in the extermination of the Rogue peoples.

Few on the Oregon frontier besides Joel Palmer, dared speak on behalf of the Native people for fear of violent retribution, and John Beeson was one of the rare examples. Beeson was a Methodist minister from Illinois who helped fugitive slaves escaping the south on the Underground Railroad and was lured to Oregon because of the Land Donation Act. Beeson felt the settlers of Oregon were in violation of the Table Rock Treaty of 1853 between American officials and the Takelma, Shasta, and Dakubetede Indians of the Rogue Valley. He protested against the hunting down and killing of Natives during the Rogue Indian Wars. Beeson wrote an opinion piece, "Address to the Citizens of the Rogue River Valley," published in the *Oregon Argus* newspaper of Oregon City. Beeson would be forced to leave the Bear Creek area between Medford and Ashland, and lived under government protection. In his editorial, he saw the war as a "cruel injustice" and an "unnecessary waste of the resources of our common country."



John Beeson: Methodist and humanitarian.

"You have sought to destroy the testimony by asserting that it is nothing but the production of a low and depraved intellect. Having come to this country in acceptance of the Governmental offer of land for occupancy, I honestly believed the original owners had received a fair compensation and that the treaty stipulation guarantying [sic] protection and forbidding private war would be promptly fulfilled. When I saw that we had possessed ourselves of the fertile valleys and creeks of the most pleasant homes of the Indian, and exposed him to violence and outrage of the evil disposed and vicious, I could not but feel the injustice we were doing."^[24]

Beeson observed that the Yreka newspapers of northern California were fanning the flames of racial animosity by presenting extermination of the race as the only tangible possibility for miners. Beeson attempted to organize peace talks, but the people of Jacksonville would have nothing to do with it. Wanton vigilante violence continued after the massacre. The local press maintained a stream of propaganda that painted an entirely different picture of the Rogue River Indian situation. Beeson would catch the national attention of social reformers, such as the abolitionist Lydia Marie Child, but to no avail; the killing and dislocation persisted.

Joel Palmer toured the area in the spring of 1855 and became aware of the dismal future that lay ahead for the Rogue Tribes. Palmer saw that the continuing problem between the Indigenous population and Euro-American colonists as a conflict over land rights. It was clear that some of the troubles in the Rogue River Valley stemmed from the mishandling of the Land Donation Act. Even with treaties in place, in several instances, the federal government failed to clear Native titles to land before allowing white settlers to make their claims. Troubles over land claims have historically been a problem in the American frontier, especially in the Appalachia region.

Superintendent Palmer had anticipated these problems and explored possible reservations sites along the north and central coast in the vicinity of the Siletz River and on the east side of the Yamhill River. This is where the Grande Ronde Reservation would be designated. Many within the territorial House of Representatives called for Palmer's resignation. They thought Palmer was giving too much favor to the Indians and depriving the settlers from land in the heart of the Willamette Valley. Palmer began to remove the Umpquas; then the Mollala and Kalapuya Indian bands reached the Grande Ronde Reservation on the Yamhill River. The reservation was established by Executive Order on June 30, 1857. When military protection was obtained, 400 Indians left the Table Rock Reservation in the Rogue Valley, which had been established in 1853 to attempt to quell the conflict, for a 263-mile march along the Applegate Trail, during the winter, through the snow-covered mountains to the Grande Ronde Reservation. The equipment and supplies for the journey was inadequate, and eight people died along the way through the Applegate Trail. There was bad weather and a lack of food. The Rogues were pursued by the "self-styled Indian executioner" Timoleon Love who killed one of the Indians. He was arrested for murder but soon after escaped from prison in Winchester, Oregon.

After their arrival the transplanted Rogues stated the conditions at the Grande Ronde Reservation were awful and sickness was running rampant among them. The reservation was ill-suited for agriculture; the soil was clay-based, rocky, and barren; and shelter, clothing, and subsistence were sorely lacking. Federal legislation did not address the issues of the Grand Ronde Reservation until the 1970s.

THE MODOC WAR



Kintpuash of the Modoc Nation

The Modoc people lived in villages around Tule, Lower Klamath, and Clear Lakes in southern Oregon and northern California. The incursion of Euro-American miners and settlers into the region brought violence into these communities as well. Yreka miners were known for using Native women as prostitutes and boys as servants. An incident involving Benjamin Wright and close to forty Modoc leaders would catch the attention of the nation, and lead into one of the last "Indian Wars" – The Modoc War. There was disagreement between the white pioneers and Natives about the events that triggered the war. It is alleged that Wright and a group of Yreka "volunteers" invited several Modoc to a feast, and several witnesses claimed that Wright intended to poison them with strychnine, but the leaders declined their invitation. Instead Wright planned to ambush them and surrounded the Modoc village at night. The following day Wright and his posse attacked the village, and killed Kintpuash's (Captain Jack) father. The fleeing Modoc "were searched out from the sagebrush and shot like rabbits. Long poles were taken from the wickiups and those taking refuge in the river were poked out and shot as they struggled in the water". Forty-one of the forty-six Modoc there were killed, including many women, and none of the attackers were injured. Schonchin John was one of the five survivors of the massacre.

Wright's men scalped and mutilated the bodies of the dead. When they returned to Yreka with their trophies, they were proclaimed heroes.

Settlers moved into Modoc territory during the Civil War, and in 1864, the Modoc yielded to pressure and signed a treaty that committed them to giving up land in the Tule Lake country near the Oregon-Californian border and relocating to the Klamath Indian Reservation. It provided the Modocs be placed on a reservation located north of what was then Linkville, Oregon, and is now called Klamath Falls. The Modocs were to share the Klamath Reservation with the Klamath Indians, their archrivals, along with the Yahooskin band of Paiutes. In the treaty, the three Tribes, known collectively to this day as the Klamath Tribes, ceded their title to approximately 22,000,000 acres of aboriginal lands to the United States. In return, they retained 1,900,000 acres for a reservation. It was expressly stated that the Tribe would be secured "the exclusive right of taking fish in the streams and lakes, included in said reservation." The Klamath Tribes ceded all of their land in exchange for \$8,000 worth of supplies for five years on the Klamath Reservation. Modocs were outnumbered by the Klamath, who demanded that the Modocs return a certain portion of their cut timber as rent for living on their part of the reservation. Life would become particularly intolerable for the Modoc. The Klamath would harass Modoc women, and their property was destroyed. The reservation was on Klamath land, not Modoc, and the Modocs were treated as interlopers. Conditions were poor, and promised supplies never materialized. White officers seized Klamath women as concubines, and agency employees smuggled in whiskey to the Natives.

Captain Jack (Kintpuash) of the Modoc stated, "I do not want to live upon the reservation, for the Indians there are poorly clothed, suffer from hunger, and even have to leave the reservation sometimes to make a living."^[25] Many Modoc worked off the reservation as house servants for Yreka miners. Alfred B. Meacham, Superintendent of Indian Affairs in Oregon in 1869, was stunned to have one of his agents comment that the solution to the Indian problem was to "wash the color out," implying that intermarriage between Euro-Americans and Native Americans was the best idea, and perhaps an early iteration of a government authorized eugenics. American soldiers took in Native American women, causing Meacham to issue regulations across Oregon forbidding plural marriage in Oregon. Oregon had banned racial intermarriage in their state constitution in 1866 with a particular focus between whites and Native Americans, or Hawaiians, Chinese, and African Americans.^[26]

As frustrations mounted, there was a split in Modoc leadership. Schonchin John, who had survived the Ben Wright massacre, tended to cooperate with reservation authorities, while Kintpuash, whose father likely died in the massacre, did not. Shortly after the Modoc started building their homes, the Klamath began to steal lumber from the Modoc. After the Indian agent responded that they could not be protected against the Klamath, Captain Jack's band moved to another part of the reservation. Several attempts were made to find a suitable location, but the Klamath continued to harass the band. Jack left with his followers to live along the territory north of the California border. The federal government interceded again. It responded to complaints by settlers near Tule Lake by sending out a detachment of cavalry in 1872. After continued exploitation by the Klamath Indians and American soldiers, Captain Jack led the entire Modoc Tribe—371 men, women, and children—off the reservation and returned back to their homeland. Kintpuash and his men fled to the Lava Beds, where they held off a U.S. military force of a thousand soldiers equipped with mortars and howitzers.



U.S. soldiers inspecting Kintpuash's Cave. Presently it is a part of Lava Beds National Monument in Southern Oregon.

On April 11, 1873 a meeting was arranged between Kintpuash and General Edward Canby by Toby Riddle, a Modoc interpreter working for the U.S. government. General Canby was warned by Riddle to not trust Kintpuash during their negotiations with the Modoc. Canby confidently thought the Modoc would not dare violate a flag of truce or attempt an assassination with soldiers surrounding their position. He underestimated Kintpuash who ambushed the meeting and shot Canby in the face, killing him.

Reverend Thomas was mortally wounded in the attack, while Riddle the other peace commissioner escaped. Canby was widely popular Union general and known for his efforts in quelling the draft riots in New York City during the Civil War. The press boiled in outrage over the murders of Canby and Reverend Thomas. The Modoc no longer had the support of mainstream Americans, who had sympathized with their cause until then. General Tecumseh Sherman ordered the troops surrounding the Lava Beds to attack the Modoc, advising, “You will be justified in their utter extermination.” Kintpuash, along with his wife and daughter, were captured by Army scouts on June 1, 1873, marking the end of the war and the in the minds of many Modoc, their tribal sovereignty.

The Modoc War was the costliest Indian war in United States military history, in terms of both lives and money. Many settlers were shocked by the ability of such a small group of Modoc to hold back their position for over six months against U.S. Cavalry troops. According to historian Doug Foster in recent historical memory, it was a “David and Goliath War”. However, American newspapers at the time felt compelled to stick to the narrative of the “primitive” culture of Native peoples so that the aggressive tactics of the military could be justified. This attitude is portrayed by the opinion of the Attorney General, submitted to the *New York Tribune* in 1873:

“[The Indians] were mere outlaws and marauders, no more entitled to belligerent rights than so many ruffians escaped from Sing Sing. There can be no war except between independent nations, or a government and its revolted subjects. To recognize the sovereign character of a band of two-score Digger Indians is preposterous; to treat their plundering and scalping expeditions as a rebellion is not less so.”^[27]

The Justice Department sided with the opinion that the Modocs could not be considered as an independent foreign nation and they were comparable to “Digger Indians.” The Modocs responsible for Canby’s death, however, would be tried as war criminals, which would imply their foreign sovereign status. The trial and conviction would mark the first time that Indians were tried in a court of law as war criminals rather than as murderers. The retribution against the Modocs was swift. On October 3, 1873 an estimated two thousand people attended the hanging of the four men. Every member of the Modoc Tribe, including children, were forced to watch as a show of disciplinary force. Afterward, the rest of Kientpoos’s band were exiled to Indian Territory, now the state of Oklahoma.

According to Lynn Schonchin, former chairman of the Klamath Tribes, forcing the tribe to watch the hangings “was a lesson in power”, and a way of telling them “they had no rights, no freedoms...if you stand up this is what we’re going to do to you”. When the bodies of Schonchin John and Kientpoos were taken from the scaffold, an army surgeon cut off their heads for shipment to Washington, D.C. For over a century, their skulls sat on the shelves of the Army Medical Museum, and later the Smithsonian Institution, before finally being returned to the Klamath Tribes in the 1990s. Few knew that Kintpuash had filed applications with the federal government to receive legal title for their ancestral homeland along Lost River. But the Modoc were not allowed to acquire any lands this way because as Indians, they were not considered to be citizens of the United States.^[28] Recently in historical memory, State Senator Fred Girod of Stayton passed Senate Concurrent Resolution 12 in the Oregon Senate in 2019. It was an official apology to the Klamath Tribes: “that we, the members of the Eightieth Legislative Assembly, commemorate the Modoc War of 1872-1873, and we recognize and honor all those who lost their lives in that costly conflict; and be it further resolved, that we express our regret over the execution of Kintpuash, Schonchin John, Black Jim and Boston Charley in October 1873 and for the expulsion of the Modoc tribe from their ancestral lands in Oregon.”

NEZ PERCE WAR

The Nez Perce War in the Wallowa Country of Oregon marked one of the closing chapters of Indian wars in Oregonian and American history. The Nez Perce treaty of 1855 had restricted the Wallowa Nez Perce band to northeastern Oregon giving up their ancestral lands and some were forced to move to the Umatilla Reservation along with the Cayuse, Umatilla and Walla Walla tribes. The treaty allowed the Nez Perce to remain on their homeland but with a catch, they had to relinquish 5.5 million acres of their land of their 13 million acres holdings for a minimal cash payment.

But miners discovered gold along the Clearwater in 1861, and the resulting rush brought money, alcohol, and violence to the reservation Nez Perce. It also reduced the Indians lands. In 1863, trespassing whites discovered gold within Nez Perce boundaries. A new agreement was reached that shrank Nez Perce holdings to about 750,000 acres. The treaty stipulated that each family would get but twenty acres. Hin-mah-too-yah-lat-kekht (“Thunder Traveling to Loftier Mountain Heights”), also known as Chief Joseph, inherited a leadership role from his father, Tuekakas (Old Joseph). Aware of the aggressive posture of the United States government in its reduction of Nez Perce lands, he insisted the treaty did not apply to his band of Nez Perce because his father never signed it. The treaty, now located in the National Archives, was never seen by Young Joseph, and he was unaware that his father had signed

the treaty after negotiations with Isaac I. Stevens, Governor and Superintendent of Indian affairs for the Territory of Washington, and Joel Palmer, Superintendent of Indian affairs for Oregon Territory.

President Grant initially agreed with Chief Joseph and set aside the land for the Nez Perce in 1873. Land-hungry whites pushed the issue, and the government changed its mind. Whites would not let the Nez Perce remain in the Wallowa Valley. The residents of northeastern Oregon were dead set against it. An article in a *La Grande* newspaper summed up the white people's attitudes. The piece remarked on a pair of "splendid Indians" who "unlike any others of their race" were "calm, quiet and considerate," who "even refuse whiskey though offered to them." What was the secret of their exemplary manners and habits? They had for "many days" been hanging from "a tree with a rope around their necks."^[29]

General Oliver Otis Howard, Civil War hero, Commissioner of the Freedmen's Bureau and founder of the black college Howard University, ordered Chief Joseph and his tribe to move out of the Wallowa Country in 1877. Howard humiliated the Nez Perce by jailing their old leader, Toohoolhoolzote, who spoke against moving to the reservation. The other Nez Perce leaders, including Chief Joseph, considered military resistance to be futile; they agreed to the move and report to Fort Lapwai, Idaho Territory. General Howard gave them the unreasonable ultimatum to evacuate the Wallowa Valley in thirty days. In the end six hundred men, women, and children, along with 2,000 horses, headed across the Bitterroot Mountains to the plains of Montana, where the Crow tribe lived. The Nez Perce were hoping to form an alliance to resist against the United States Army, but the Crow did not want to sacrifice their good standing with the federal government. The Nez Perce then decided to head to Canada to meet with Sitting Bull and his people as they were hotly pursued by General Howard and his troops.

With Howard and his men in hot pursuit, the Nez Perce would scatter frightened tourists in Yellowstone, which had been established as a national park a few years earlier, on their mad dash to the international border. Just forty miles from their goal, the Canadian border, the Nez Perce were overtaken by Colonel Nelson Miles in Bear Paw Mountain, Montana. The 418 Nez Perce who surrendered, including women and children, were taken prisoner and sent by train to Fort Leavenworth, Kansas.

Chief Joseph's famous words upon surrender to General Howard on October 5, 1877 were captured by Charles Erskine Scott Wood, who was party to the negotiations with the Nez Perce. Arthur Chapman, who was married to a Nez Perce woman and fluent in the Nez Perce language, was the interpreter who later accompanied Joseph:

"Hear me, my chiefs! I am tired. My heart is sick and sad. I will fight no more forever! Tell General Howard I know his heart. What he told me before—I have it in my heart. I am tired of fighting. Too-hul-hul-sit is dead. Looking Glass is dead. He-who-led-the-young-men-in-battle is dead. The chiefs are all dead. It is the young men now who say 'yes' or 'no.' My little daughter has run away upon the prairie. I do not know where to find her—perhaps I shall find her too among the dead. It is cold and we have no fire; no blankets. Our little children are crying for food but we have none to give. Hear me, my chiefs. From where the sun now stands, Joseph will fight no more forever."^[30]

Chief Joseph appealed to the federal government several times. He spoke at Lincoln Hall in Washington, D.C., to a receptive audience including President Rutherford Hayes. The speech, "An Indian's View of Indian Affairs in 1879," gave an interpretation of "equal protection of the law", as described in the Fourteenth Amendment of the U.S. Constitution, and as it should have applied to the Nez Perce:

"If the white man wants to live in peace with the Indian he can live in peace. There need be no trouble. Treat all men alike. Give them the same law. Give them all an even chance to live and grow. All men were made by the same Great Spirit Chief...Let me be a free man—free to travel, free to stop, free to work, free to trade where I choose, free to choose my own teachers, free to follow the religion of my fathers, free to think and talk and act for myself—and I will obey every law, or submit to the penalty."^[31]

A charismatic leader, Chief Joseph became an international sensation when he resisted forced removal to the Nez Perce reservation in Idaho. The Nez Perce War seemed wrong to many, and Joseph insisted, "It is still our land. It may never again be our home, but my father still sleeps there, and I love it as I love my mother." Nez Perce prisoners were exiled to Oklahoma in the Quapaw Reservation and not allowed to return to the Pacific Northwest until 1885 where they resettled at the Colville Reservation.

The United States government had forcibly and violently relocated most of the Native peoples of the Pacific Northwest to reservations by 1880. While the period of disease, warfare, extermination, and forced migrations was coming to an end, the words of Republican Senator William John McConnell in his 1913 book *Early History of Idaho* sum up the tragic reality of Manifest Destiny in the Pacific Northwest:

“As the crickets and jack rabbits sometimes over-run and destroy the crops in these valleys today, without asking leave, so we of the Anglo-Saxon race in those days over-ran and destroyed the hunting grounds of the original owners, and without asking leave took forcible possession thereof. Not having the time to spare from our other pursuits to sufficiently punish the Indians for presuming to bar our progress, we appealed to the government to support us in holding the country we had entered.”

[1] It is a common thread in world history of migrating peoples of European descent displacing indigenous inhabitants as seen in South Africa, Australia, and Patagonia.

[2] Fortunately Native American tribes and nations rebounded from the nadir in American Indian policy. Some tribes have overcome poverty and suffering with entrepreneurship and winning key judicial battles such as the Seminole Nation who own the Hard Rock Café entertainment franchise. While others like the Oglala Sioux Nation on the Pine Ridge Reservation face challenges with some of the highest poverty rates in the country.

[3] Peterson, del Mar: *Oregon Promise*, p. 83.

[4] Diane L. Goeres-Gardner: *Necktie Lynchings: A History of Legal Executions in Oregon: 1851-1905*, (Caxton Press: Caldwell, 2005) p. 22.

[5] Beckham, *Oregon Indians*, p. 53.

[6] Ibid. p. 58

[7] Beckham, Stephen Dow (ed.), *Oregon Indians*, (Oregon State University Press: Corvallis, 2006) p. 5

[8] There is a vast hagiography of the Whitmans and their ensuing demise. Many historians of the West and authors of missionary literature have painted a picture of the Whitmans as the martyr saints who brought civilization to the “heathens of the West” and were canonized for their missionary work in the Oregon Territory. An example of this type of traditional historiography, can be found in Clifford Merrill Drury’s *Marcus Whitman M.D.: Pioneer and Martyr* published in 1937.

[9] Schwantes, p. 83

[10] Beckham, *Oregon Indians*, p. 61-65.

[11] Ibid.

[12] “Campfire Orations,” with J.W. Nesmith. Hubert Howe Bancroft Papers [microform], 1837-1886. Microfilm 176. OHS Research Library Archives.

[13] Beckham, Stephen Dow, *Requiem of a People*, p. 143.

[14] Beckham, *Oregon Indians*, p. 121-122.

[15] Beckham, *Requiem of a People*, p. 103

[16] The liquidation of Indians in California followed a similar path.

[17] Palmer, Joel: Annual Report for the Commission of Indian Affairs, March 11, 1854.

[18] James, Cheewa: *Modoc: The Tribe that Wouldn't Die* (Naturgraph Publishers: Happy Camp, 2008) p. 32.

[19] David G. Lewis and Thomas J. Connolly: “White American Violence on Tribal Peoples on the Oregon Coast,” *Oregon Historical Quarterly*, Vol. 120, No. 4, White Supremacy & Resistance (Winter 2019), pp. 368-381.

[20] Beckham, Stephen Dow, *Requiem for a People: The Rogue Indians and the Frontiersmen* (Oregon State University Press, Corvallis, 2002) p. 41.

[21] Lewis and Connolly, p. 371.

[22] *Ashland Tidings*, October 25th, 1878.

[23] Dorband, Roger: *The Rogue: Portrait of a River*, (Raven Studios, 2007)

[24] Beckham, *Oregon Indians*, p. 157-158.

[25] James, Cheewa, *Modoc: The Tribe that Wouldn't Die*, p. 35.

- [26] The states of Washington and Idaho had passed similar laws during this time period barring whites from racial intermarriage.
- [27] Foster, Doug: "Imperfect Justice: The Modoc War Crimes Trial of 1873" *Oregon Historical Quarterly*, Vol. 100, No. 3 (Fall, 1999), pp. 246-287.
- [28] The Army Medical Museum had a vast collection of osteological remains and well over a thousand Indian skulls before they ceased their operations. Physical anthropologists during the late nineteenth century used cranial evidence to prove racial theories that the Indians were barbarians and "must grow toward civilization." This form of early racial science helped build the rationale behind a state-authorized eugenics program which will be explored in a later chapter in this book.
- [29] Peterson del Mar: *Oregon Promise*, p. 67.
- [30] C. E. S. Wood became a prominent attorney known as one of the radical-progressives of the left. He defended Marie Equi, feminist advocate and Portland progressive, who was charged under the Sedition Act during World War I, which curtailed the freedom of speech during wartime.
- [31] Cited in Calloway, Colin: *First Peoples: A Documentary Survey of American Indian History*, (Bedford St. Martin's: New York, 2012) p. 396.

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1.5: Statehood- Constitutional Exclusions and the Civil War

During the Civil War, racial anxieties affected the nation when Oregon became a state. Many pioneers who came to Oregon originated from border states split over slavery and bitterly divided between Democrats and Republicans and their allegiance to the Union and Confederacy. African Americans had first arrived in Oregon in 1788 and Portland in 1850. The migrations of the 1840s and 1850s established a black presence in Oregon. There were only 150 black residents during this era, and African Americans lived in fourteen of the nineteen counties of Oregon. They were involved in an array of occupations in the early Industrial Revolution, including agriculture, business, mining, seafaring, personal service and domestic labor.[1]

The Civil War and its Effects

Throughout the Northwest the Civil War was an intense, immediate, and ongoing concern. Bitter debates over states' rights, slavery, and emancipation turned neighbor against neighbor. Between the years 1840 and 1860, the African-American population in Oregon never rose above one percent, and yet the issues of slavery and free blacks dominated the political debates of the period and defined the Civil War experience in Oregon. The communities of southern Oregon migrated from the upper South (cis-Appalachia) and the Ohio River Valley, from states like Missouri and Kentucky, and the southern tiers of Illinois, Ohio, and Indiana. Many of the white residents of these states escaped the economic and political domination of the aristocratic slaveholders. They disliked slavery, but harbored fear towards blacks.

Whites of the Old Northwest (the Ohio River Valley) shared the idea that blacks were not only racially inferior, but a threat to free white society. Settlers from these regions held similar negative views toward the sovereign rights of Native Americans. They thought Native Americans impeded their access to free land, and sympathized with the political platform of the Confederates who emphasized small government and states' rights. Named after Democratic heroes President Andrew Jackson and Senator Stephen Douglas, Republicans of Oregon started to identify Douglas, Jackson, and Josephine counties as the "Dixie of Oregon." [2] Democrats and Confederates were intent on establishing a Jacksonian reign of the "common (white) man" in the Northwest. Settlers from New England populated the northern counties of the Willamette Valley, giving a political contrast to the southern part of the state.

Early settlers also sought to prevent an unfair competitive labor market from being established in Oregon. A farmer from Missouri during the antebellum period in 1844 stated, "Unless a man keeps [slaves] he has no even chance; he cannot compete with the man who does...I'm going to Oregon where there'll be no slaves, and we'll all start even." Slavery controlled the labor market in the South dominated by plantation economies and involuntary servitude. White emigrants from the south shaped labor markets in the American West cornering the profits to be shared only by themselves.

In addition to economic concerns, white settlers brought their prejudices with them, including the threat of whipping of black people who tried to enter the state. Many settlers of Oregon wanted to bar blacks from entering the territory partly due to racial antipathy and fearing their competition in job markets. The threat of blacks uniting with Natives in revolt was a rampant fear among whites. Ultimately, federal constitutional amendments overturned Oregon state laws that barred blacks from residing in the state, but those laws remained in the books until 1926. In a similar distortion of states' rights, the state of Oregon did not re-ratify the Fourteenth Amendment (equal protection of the law) until 1973 after it had been rescinded in 1868, and the Fifteenth Amendment, the right to vote, was not ratified until 1959.

The first exclusion law was proposed and passed on June 18, 1844, and it required all blacks to leave the territory within three years (males had two years to leave, and women had three). Slave holders were required to free their slaves, and those freed slaves could not remain in the state. Any African-American found in violation of this law were subjected to a Lash Law, a form of corporeal punishment by public whipping, and was to be repeated after six months if they refused to leave.[3] Voters rescinded the law in 1845.

Peter Burnett

Oregon pioneers like Peter Burnett from Missouri helped create the 1844 racist exclusion law. "The object is to keep clear of that most troublesome class of population. We are in a new world, under the most favorable circumstances and we wish to avoid most of those evils that have so much afflicted the United States and other countries." [4] His letters were published in Missouri newspapers, and his descriptions of Oregon encouraged many others to move west. Burnett came to Oregon with his family in

1843 and settled on a farm near Hillsboro, where he eventually represented the district of Tualatin on the Legislative Committee and in 1844 introduced the exclusion law.

Burnett considered emigration to be a privilege for whites rather than a right for all; therefore, freedom of travel and commerce was to be a protected space of prosperity for whites. This stance was envisioned by the “Free Soil” principles introduced into the settlement of the American West. Based on historical and judicial precedent, Burnett felt denial of these freedoms could be achieved without denying people of color their constitutional rights. Since blacks were not permitted to vote, he argued, it was better to deny them residence as well since they would have no motive for self-improvement.[5] Burnett is correct about constitutional protections as of 1844; the amendments that abolished slavery and offered equal protection of the law didn’t exist yet.

A minority of citizens who detested the Exclusion Law signed petitions in favor of repealing the law. The pioneer Jesse Applegate who founded the Applegate Trail that helped settlers arrive into southern Oregon from California was opposed to the law. Applegate came to Oregon in 1843 and was elected to the Legislative Committee where he supported the repeal of the Exclusion Law of 1844.[6] He also opposed slavery but still used slave labor for his agricultural fields when labor was scarce. Applegate was a Whig Republican who showed no interest in politics or office holding but helped organize the Republican Party in Oregon.



Jesse Applegate

Oregon Divided Over Slavery

Oregon newspapers were divided over the issue of slavery. On the Democratic side of the political aisle, the *Table Rock Sentinel* of Jacksonville was proslavery, and wanted property ownership in slaves to be constitutionally protected as well as the *Occidental Messenger* of Corvallis declared, “We have not begun to fight” for the protection of slavery in the state constitution. William T’Vault was a Tennessee-born attorney and editor of the *Table Rock Sentinel*. He intended to form a “slavery tolerant Territory of Jackson” out of the mining regions of the Siskiyou Mountains of Oregon and California. The *Oregonian* of Portland and the *Oregon Argus* of Oregon City editorialized on the issue of slavery in line with more mainstream Republican Party views and felt personal property in the form of slavery was unethical and should not be a right protected by the State. The *Oregon Argus* looked at the proposal of slavery as “a huge viper, with poisonous fangs at its head, a legion of legs in its belly and a deadly sting in its tail.”

The *Oregonian* signed an 1851 petition requesting repeal of the 1849 Exclusion Act. They wanted to “call attention to the severity of the law and the injustice often resulting from the enforcement of it.”[7] At the 1857 Oregon Constitutional Convention, slavery was anathema to most delegates, but so too was the idea of racial equality. The Convention adhered to the popular sovereignty doctrine which put the decision in the hands of Oregon voters. Oregon Democrats were united in their opposition to African Americans, and the great majority believed that slavery did not belong in Oregon. The state of Oregon was neither dominated by proslavery advocates or abolitionists. Many Oregonians detested slavery but not on moral grounds. Instead, African-Americans would be seen as economic competitors and social intruders.

Exclusion Laws

Oregon created three exclusion laws in 1844, 1849, and 1857. While not widely enforced, these discriminatory laws, along with restrictions on land ownership and voting, help explain why there were so few African-Americans in Oregon. Slavery existed in Oregon in parts of the Willamette and Yamhill Valleys, even though it was prohibited by law. Exclusion laws designed to prevent black people from coming to Oregon were passed twice during the 1840s, considered several more times, and finally passed as part of the state constitution in 1857. In 1860, the year after Oregon achieved statehood, its black population was just 128 in a total population of 52,465, and those numbers included several dozen enslaved African Americans.

An exclusion clause to be included in the Oregon State Constitution was approved by popular vote on November 9, 1857 and remained a part of the state constitution until 1926, long after nullification by the Civil War amendments to the federal constitution.

The Exclusion Clause stated:

“No free negro or mulatto not residing in this state at the time of the adoption of this constitution, shall come, reside or be within this state or hold any real estate, or make any contracts, or maintain any suit therein; and the legislative assembly shall provide by penal laws for the removal by public officers of all such negroes and mulattoes, and for their effectual exclusion from the state, and for the punishment of persons who shall bring them into the state, or employ or harbor them.”

Oregon’s exclusion laws entailed barring African-Americans from entering Oregon, even on seafaring vessels. There was a \$500 fine for any negligent ship owner. Any black or mixed race person in violation of the law was to be arrested and ordered to leave. Exclusion laws similar to those enacted in Oregon were passed in Indiana and Illinois and were considered, though never passed, in Ohio. Settlers who brought racist attitudes with them across the plains saw legal restrictions as the best solution to the problem.

On the Oregon Trail, enslaved Africans traveled with their owner’s families, and census takers listed them as “servants” since there was a territorial prohibition on slavery. Samuel Thurston, delegate to the Congress who breathed life into the Donation Land Claim Act, repeated the same fears of collusion by people of color in his efforts to secure the restriction of land grants to white people unleashing a pattern of realty laws favoring whites for several decades in Oregon.

“The first legislative assembly...passed another law against the introduction of free negroes. This is a question of life and death to us in Oregon, and of money to this Government. The negroes associate with the Indians and intermarry, and, if their free ingress is encouraged or allowed, there would a relationship spring up between them and the different tribes, and a mixed race would ensure inimical to the whites; and the Indians being led on by the negro who is better acquainted with the customs, language and manners of the whites than the Indian these savages would become much more formidable than they otherwise would and long and bloody wars would be the fruits of the commingling of the races. It is the principle of self-preservation that justifies the action of the Oregon legislature.”

Petitions were filed by several black residents of Oregon requesting the repeal of the Exclusion Laws, but all were defeated. One state legislator sponsored another exclusion law to replace the 1849 exclusion law, claiming black settlers had no right to stay in Oregon because they had taken no part in settling the area and displacing the native population. Aside from the illegitimacy of such a litmus test for settling, there is an overwhelming amount of evidence that proves this was false. George Washington Bush was an important black pioneer on the Oregon Trail and Moses Harris was a black mountain man and wagon train guide who had escorted the Whitman and Spaulding families. Harris also assisted stranded settlers in Central Oregon and the Oregon Desert. Clearly, people of color assisted in the settlement of Oregon, but proponents chose to ignore the evidence. Opponents of the bill saw the legislation as endangering a source of cheap labor and suggested there would be a lack of menial laborers if it was passed. “What negroes we have in the country it is conceded are law abiding, peaceable, and they are not sufficiently numerous to supply the barber’s shops and kitchens of the towns...If a man wants his boots blacked, he must do it himself.”^[8] To some Oregon lawmakers, that scenario seemed beneath them.

In the end, the exclusion clause was overwhelmingly approved by voters, with 8,640 in favor and 1,081 opposed. Oregon became the only state admitted into the union with such a clause in its constitution. A slavery clause was rejected during this time as well. There were 2,645 who voted in favor of slavery and 7,727 who were opposed to permitting slavery in Oregon. If slavery had been voted for by the people, such a clause would have stated:

“Persons lawfully held as slaves in any state, territory or district of the United States under the laws thereof, may be brought into this state; and such slaves and their descendants may be held as slaves within this state and shall not be emancipated without the consent of their owners.”^[9]

Jacob Vanderpool

According to the census taken in Oregon in 1850, 207 people were identified as black or mulatto. Of this number, three-quarters were actually Hawaiians or mixed ancestry Indians, as the census takers tended to put all non-whites in the same category. There were only fifty-four black people included in the census of 1850. The first and only successful attempt to enforce a racial exclusion law was made against a former sailor, Jacob Vanderpool, in 1851, who was an Afro-Caribbean business owner near Salem. Vanderpool owned a saloon, restaurant, and boarding house. His neighbor, Theophilus Magruder, manager of the City Hotel of Oregon City in 1847, was also a proprietor of the Main Street House in Oregon City in 1851. Magruder sued Vanderpool in court for “being black in Oregon”, and was arrested and jailed. Perhaps Magruder could not face a healthy competitive marketplace when

a man of color challenged his business interests. Vanderpool's defense lawyer argued that the law was unconstitutional since it had not been legally approved by the legislature. The prosecution offered three witnesses who gave vague testimonies. The following day, Judge Thomas Nelson ordered Vanderpool to leave Oregon within thirty days. The *Oregon Spectator* of Oregon City celebrated the outcome as a victory for law and order: "A decision was called for respecting the enforcement of that law; [Nelson] decided that the statute should be immediately enforced and that the negro shall be banished forth with from the Territory."^[10]

Slavery in Oregon

Former slaves who resided in Oregon resisted enslavement through the legal process or left the state. Chief Justice of the Territorial Supreme Court George Williams presided over a case in 1853 involving Nathaniel Ford, who refused to manumit (release from slavery) four of the children of Robin and Polly Holmes, who were freed in 1850. Holmes demanded the return of their children, but Ford refused and threatened to return the entire family back to Missouri as slaves. Holmes proceeded to file a *habeas corpus* lawsuit against Ford for holding his children illegally. Williams, a "Free Soil" Democrat appointed by President Franklin Pierce, opined slavery could not exist in Oregon unless there was specific legislation to protect it:

"Whether or not slaveholders could carry their slaves into the territories and hold them there as property had become a burning question, and my predecessors in office, for reason best known to themselves, had declined to hear the case. I so held that without some positive legislative [act] establishing slavery here, it did not and could not exist here in Oregon, and I awarded the colored people their freedom. Where slavery does not legally exist, [slaves] are free."^[11]



Justice George H. Williams of the Territorial Supreme Court

The children could have been sent back to Missouri under the Fugitive Slave Law that was passed by the U.S. Congress on September 18, 1850. *Holmes v. Ford* was the final judicial attempt to maintain slavery by proslavery settlers in Oregon. There were many proslavery men who found Williams's decision to be very distasteful. The polarization of beliefs on slavery that split the national Democratic Party took more time to develop in Oregon, but as it developed, the local party fostered a planned policy of silence on slavery in order to maintain party unity. It was strengthened by the presence of Joseph Lane, the appointed territorial governor and a Democrat himself, who had adapted himself to local interests. Lane was an honored veteran of the Mexican War which was a battle premised upon the expansion of slavery, the cotton industry, and plantation economy in Texas.^[12] Well-known as a southerner, he was sympathetic to slave-owning interests, but in the 1850s, he remained silent on the subject of slavery.

In June 1855, an anti-slavery convention was held in Albany, Oregon. During the convention, the group adopted eight resolutions that condemned the Fugitive Slave Law and the repeal of the Dred Scott Decision. They vowed to fight any attempt to introduce slavery into Oregon. The *Oregon Statesman* was particularly vicious in its outlook supporting the cause of slavery. The newspaper condemned people in Oregon working for the civil rights of black people in the state, and referred to them as abolitionists. They reprinted a racist diatribe from the Examiner of Richmond, Virginia that put black enfranchisement into the realm of animals being given a political voice in America:

"Their assertions that Negroes are entitled to approach our polls to sit in our courts to places in our Legislature are not more rational than a demand upon them that they let all adult bulls vote at their polls all capable goats enjoy a chance at their ermine, all asses the privilege of running for their General Assemblies and all swine for their seats in Congress."^[13]

Asahel Bush, the editor of the *Oregon Statesman*, opposed slavery in Oregon, but held the racist view popular among the Democratic party that slavery was a way for African people to "better" their economic and social position. He held racially inflammatory views about cultural plurality and the inclusion of African-American people in the state of Oregon: "We have but few n*****s here, but quite as many of that class as we wish to ever see." He was opposed to white people bringing blacks into the state, and sought to prevent blacks from buying real estate, bringing a suit to court, or enforcing any contracts or agreements.

Essentially, this is what Jim Crow policies would look like after the Civil War. “We are for a free state in Oregon,” Bush wrote.^[14] In his vision, a free state was monochromatic in terms of political power and influence, and this traditional view would persist after the Civil War among some Oregonians.

MATTHEW DEADY, GEORGE WILLIAMS AND SLAVERY

Oregon statehood occurred in the midst of the judicial turmoil that followed the Dred Scott Decision in March 1857. In the landmark case, Chief Justice Roger Taney of the U.S. Supreme Court ruled that Congress had no power to exclude slavery from territories like Oregon and by rule of popular sovereignty, the people could choose slavery through the vote. Oregon Supreme Court Judge Matthew Deady was elected President of the Oregon Constitutional Convention that same year. Deady initially was an advocate for slavery, and considered popular sovereignty a constitutional right of the people. Popular sovereignty concerned the settlement of western states and how the people could decide by vote to include or exclude slavery in their state constitutions.

Joseph Lane, who served as territorial governor of Oregon at the time, supported the idea of popular sovereignty, which for pro-slavery advocates seemed a politically safer route by freeing government authority from the onus of creating prohibitive legislation regarding slavery. In other words, those voting in favor of allowing slavery in Oregon saw it as a defensible stance. “Our motto was, in the late canvass, and in our platform, and it is the true principle of the Kansas-Nebraska bill, ‘leave it to the people.’”^[15]

The idea of slaves as a form of personal property was debatable in the political divide during the years leading up to the Civil War. Judge Deady insisted that slavery was an inviolable right of property ownership, and a transferable right held by individuals. Deady asked, “If a citizen of Virginia can lawfully own a Negro...then I as a citizen of Oregon can obtain the same right of property in this Negro...and am entitled to the protection of the Government in Oregon as in Virginia.”^[16]

Lane and his political constituencies would support the constitutional exclusions of a white free state. Justice George Williams submitted his legal perspective on the issue in a racially inflammatory piece called “The Free-State Letter” which was addressed to Asahel Bush, the editor of the Oregon Statesman. Williams warned that Oregon should “keep as clear as possible of negroes,” slave or free. According to his opinion, slave labor was involuntary, and black people were lazy and would degrade the labor market. “One free white man is worth more than two negro slaves in the cultivation of the soil,” he said. He framed the issue of race in the establishment of Oregon as a “free labor” state that would not be prone to the same troubles the Southern states had pulled themselves into through the “economic necessity” of slavery. Williams’ racial sympathies nevertheless were quite clear, especially concerning his wishes to keep Oregon as white as possible, “consecrate Oregon to the use of the white man, and exclude the Negro, Chinaman, and every race of that character.”^[17]

Williams shared the prevailing sentiments among Oregon Democrats that disliked abolitionism and the idea of black equality. “Negroes are naturally lazy, and as slaves actuated by fear of the whip are only interested in doing enough to avoid punishment.”^[18] In the letter, he states he has “no objections to local slavery. I do not reproach the slaveholders of the South for holding slaves. I consider them as high-minded, honorable and human a class of men as can be found in the world, and throughout the slavery agitation have contended they were ‘more sinned against than sinning.’”^[19] While playing to the political base of the Democratic Party of Oregon in his “Free-State Letter,” Williams conjured the fears brought on during the critical year of 1857, when the Dred Scott decision negated Congress’s power to control slavery in the American states. The vision of a “Free Soil” American West and the viability of the Republican Party were all critically in jeopardy. “Can Oregon, with her great claims, present and prospective, upon the government, afford to throw away the friendship of the North—the overruling power of the nation—for the sake of slavery?”^[20]

Bush feared the political consequences of slavery after reading Williams’ “Free-State Letter,” calling it “an impossible institution for Oregon.” Bush wrote that “the African is destined to be the servant and subordinate of the superior white race...that the wisdom of man has not yet devised a system under which the negro is as well off as he is under that of American slavery.” Former governor of Oregon Oswald West viewed Bush as anti-democratic, “through his sagacity and the power of his pen, was to become dictator in Oregon politics for many years.”^[21]

Oregon would enshrine the exclusion of African-Americans from living in the state in the state constitution. Jesse Applegate left the Oregon Constitutional Convention in disgust and wrote in a letter to Matthew Deady, “The free Negro section is perfectly abominable, and it is hard to realize that men having hearts and consciences, some of them today in the front ranks of the defenders

of human rights, could be led so far by party prejudice as to put such an article in the frame of a government intended to be free and just.”

Barely two months after voters rejected slavery in 1857, bills to protect slave property were proposed in Oregon. William Allen, a Democrat from Yamhill County, introduced a resolution:

“It has been decided by the Supreme Court of the United States that Congress has no power to prohibit the introduction of slavery into the Territory...slavery is tolerated by the Constitution of the United States; Therefore, Resolved, that the Chair appoint a committee of three, to report what legislation is necessary to protect the rights of persons holding slaves in this Territory.”

In defense of his resolution, he stated:

“I don’t see any reason why we should not have laws protecting slavery. There are slaves here, but no laws to regulate or protect this kind of property. There are some in Benton, Lane, Polk, Yamhill, and I know not how many other counties. Slavery property is here! It then becomes our duty to protect that property as recognized by the constitution of the United States.”^[22]

Several members of the legislature admitted they knew people who owned slaves, and they thought slaveholders should have protections. Former governors of Oregon John Whiteaker and Lafayette Grover, both Democrats, were outspoken in their support of slavery. It indicates there was a proslavery faction in Oregon politics that refused to admit defeat.

Governor John Whiteaker and The Civil War

“Have a care that in freeing the Negro you do not enslave the white man,” was one of Whiteaker’s guiding principles as Oregon’s first governor. As America descended into the Civil War, his political opponents used his anti-Union sympathies against him. Governor John Whiteaker, whose anti-immigrant sentiments were well known, said Union meetings being held throughout the state were causing disorder and maintained that those opposed to the war were not disloyal. He was a Southerner who believed in state supremacy and in the divine right of slavery. He issued a manifesto warning people against getting mixed up in the political divisions of the Civil War, declaring that the Southern states had rights that should be respected, and interference from the state would not be tolerated. Judge Matthew Deady, once said of Whiteaker, “Old Whit is a good specimen of a sturdy, frontier farmer man, formed by a cross between Illinois and Missouri, with a remote dash of a something farther Down East. Although wrong in the head in politics, he is honest and right in the heart.”

Whiteaker also sought to purge the Chinese population from Oregon and prevent others from coming into the state. “An act to tax and protect Chinamen mining in Oregon,” was approved in 1860 by the Oregon House and signed into law by the governor, and it levied a \$50 per month tax against an individual man of Chinese descent. The law was designed to curtail immigration of Chinese miners and laborers in the state, and encourage their removal. Whiteaker and the Democrats of Oregon wanted to curb cheap labor in the mines, and claimed the law was intended to prevent people from exploiting the Chinese. State officials believed placing a poll tax on Chinese miners would guarantee their protection, but this was unenforceable. With a large number of Chinese immigrants working on the railroads, mines and other heavy labor, many Oregonians were opposed to their presence. Abuse of Chinese miners was at times impossible to curb or police effectively.

In actuality, this legislation was designed to limit the Chinese presence in Oregon mines. The law stated, “No Chinaman shall mine in this state unless licensed to do so as provided by this act.” Section II of the law also stated, “Every Chinaman engaged in mining in this state shall pay for such mining privilege the sum of two-dollar tax per month.” Included within these provisions were exclusion clauses focused on Native Hawaiians or “Kanakas”: “All Chinamen or Kanakas engaged in livestock trade or trading in general shall pay for such a privilege at a rate of fifty dollars a month.” The Chinese also had to pay a quarterly poll tax of six dollars. If they did not pay the poll tax, license fee, or prohibitive business tax, the sheriff had “permission to seize all the Chinamen’s property and sell [it] at a public sale to the highest bidder at one hour’s notice.” Mine employers had to make sure the laborers paid their fees. The State Treasury got 10 percent of the gross revenue collected, the sheriff skimmed 15 percent, the clerk or auditor got 15 percent. The rest of the fees and taxes went to the counties where Chinese people were working or residing. The licensing fees and poll taxes—as elsewhere in the United States, including California—involved a tremendous network of financial graft and stuffing the pockets of government officials.^[23]

Knights of the Golden Circle

Spurred by the increase of abolitionism during the tumultuous 1850s, the Knights of the Golden Circle an underground national society, and a precursor to the Ku Klux Klan was established. The Golden Circle had a plan to create a separate territory called the Pacific Coast republic during the Civil War, which would annex a “golden circle” of territories in Mexico, Central America, Confederate States of America, and the Caribbean as slave states. Their object was to “put down the present administration [Lincoln], to resist the draft if an attempt should be made to enforce it, and to improve the first favorable opportunity of erecting a Pacific Republic.”^[24] Between 1863 and 1864, there were roughly 2,500 members in at least ten groups in various towns in Oregon, including Portland, Salem, Scio, Albany, Jacksonville, Dallas and Independence. They met at the Cincinnati House in Eola, Oregon, and distinguished members could authenticate their arrival through secret handshakes, “give two shakes downward”, or “stroked the mustache twice with the first two fingers against the thumb.” Members, as part of their duties as a paramilitary group, were required to be armed with a least 40 rounds of ammunition at all times.

Joseph Lane was rumored to have been a part of this organization along with southern Oregon Democrats, who openly supported the Confederacy and suggested the North surrender. Lane returned from Washington D.C. in disgrace, accused of smuggling guns for the Knights. The Portland Oregonian exposed the organization and its members, some of whom were running for public office. In the vision of the Knights, universal voting rights would be discarded and manual labor would be provided by Chinese and Hawaiian immigrants, and slaves would continue to be imported from Africa and remain in slavery.



Hobson's Choice: Anti-Chinese violence in the American West

CHINESE IMMIGRANTS

After Oregon achieved statehood in 1859, the plight of Chinese immigrants in the state of Oregon would overlap with the African-American experience. Racial hostility was vented toward the new arrivals from mainland China. It was particularly pronounced in cities like Portland, which had the second-highest population of Chinese immigrants in the country, behind San Francisco. A House bill was prompted by a petition signed by 293 residents of Multnomah County, where Portland is located, who complained that black and Chinese people were becoming an intolerable nuisance, crowding in and taking over jobs that poor whites had held. The petition stated, “We ask to provide by law for the removal of the negroes and such provisions in reference to Chinamen as to cause them to prefer some other country to ours.” The Chinese immigrant community would be the targeted by nativist rhetoric and animosity producing populist anger and hysteria toward the Asian newcomers.

The political and economic situation in mainland China was in shambles due to British imperial exploits from the Opium Wars. As early as the 1850s, Chinese laborers, mostly from Guangdong province on the coast of southern China, settled in the southern and eastern parts of the Oregon Territory and northern California to mine gold. Chinese men built the railroads of Oregon, and they

composed the largest percentage of cannery workers in Astoria. Chinese laborers, predominately men, were welcomed by many due to their willingness to work for low wages. By 1890, males constituted 95 percent of the 9,540 Chinese immigrants who lived in Oregon. Many factors inhibited women's immigration. Women were discouraged from emigrating because of rumors that the United States was a dangerous place with depraved people. The passage fees on ships were exorbitant and the conditions on board were ghastly with hundreds overcrowded in the steerage class of the ships. Some women had been promised jobs or husbands that never materialized, and the ratio of men to women made them vulnerable to sexual exploitation. Some could only find work as prostitutes in Chinatown brothels.

The two major ports for disembarkation for Chinese immigrants were Portland and San Francisco. They usually borrowed forty dollars from hiring agents in the U.S. to pay for their passage across the Pacific. The money would be deducted from their wages, a process known as the credit-ticket system. They often came alone, leaving their families behind. Chinese people have been in Portland since its founding, encouraging many others to arrive in the 1850s. Immigration from Hong Kong to Portland was in full swing in 1868 to meet a demand for railroad workers. In 1882, the last year of unrestricted immigration, 5,000 Chinese arrived in Portland by ship. By 1890, there were 4,740 Chinese people and 20 Japanese people living in the Portland area.



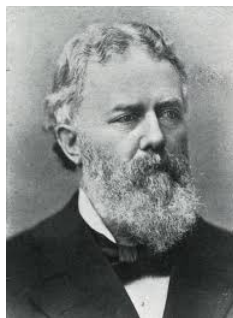
Chinese track maintenance workers patrol Oregon Pacific R.R. in their handcar.

There was a shortage of cheap labor until the Panic of 1873 and land speculation by railroad companies, among other things, put a massive strain on bank reserves triggering an economic depression. Many Chinese who had come to mine for gold in California moved up to Portland or other areas in the Pacific Northwest, where they took up employment as cooks or offered laundry services. Some became gardeners for the wealthier residents. For the Oregonians who opposed Chinese immigration to the U.S., the newcomers were seen as an impoverished class that was the object of racial stereotyping based on assumed lawlessness, gang violence, addiction to opium, and the proliferation of prostitution in Chinese women. Racial antagonism towards the Chinese people was common. Some of the stereotyped claims against the Chinese entailed that they did not make long-term contributions to America and they practiced slave labor. There was also a distaste for Chinese religion and customs. Chinese immigrants were willing to settle for lower wages than white laborers in Oregon, thus disrupting the vision of a free labor market that prioritized white business transactions. Once Chinese men were able to establish themselves with wage-paying work or find wealth in the gold mines of Oregon, they often returned to China or some remained in coastal towns, eastern Oregon, and the Willamette Valley.

ANTI-CHINESE HYSTERIA and MATTHEW DEADY

Fortunately for the Chinese community of Portland, race riots did not explode in Portland as they did in Tacoma, Washington, and Los Angeles. Historians have felt that Judge Matthew Deady played a critical role in providing judicial protections to the Chinese community, which may have staved off the waves of wanton violence that affected other Chinese communities in the American West. In 1871 in Los Angeles, California, nineteen Chinese were murdered, and seventeen of which were lynched in race riots. The *Morning Oregonian* of February 8, 1886, called the anti-Chinese violence in Tacoma and Seattle "a gross and extreme outrage." The editor of the *Oregonian*, Harvey Scott, stood in partial defense of Chinese people:

"To attempt to expel the Chinese of Portland by force would be mere madness. Such a number can only go by gradual departure... As the *Oregonian* has so often said, the Chinese when they can no longer find work will rapidly take their leave. The Chinese came here in pursuance of [Burlingame] treaty and *while they are here are entitled to all protection of the laws* [emphasis added]." [25]



United States District Judge of Oregon Matthew Deady

One of the strongest judicial advocates of the Chinese community in Oregon was Judge Matthew Deady, who defended the rights of the Chinese people according to the Fourteenth Amendment's equal protection clause. Deady is the same man who actively promoted the exclusion of free blacks and Chinese from Oregon at the Oregon Constitutional Convention in 1857 and believed that the right to vote should only be held to "pure white men." "The negro was superior to the Chinaman, and would be more useful."^[26] During the course of the Civil War, Deady experienced a substantive political and legal transformation. In the aftermath of the Civil War, he denounced the Confederacy as treasonous and wholeheartedly supported the Fourteenth and Fifteenth Amendments to the US Constitution, providing for the emancipation of slaves, full civil rights to freedmen, and the right to vote for all men. Deady's judicial decisions shielded innocent and vulnerable people from harassment, discrimination, and violence. He invoked the Fourteenth Amendment and the equal protection of the law particularly with Chinese Oregonians. This is stunning considering the Oregon legislature's rescission of its initial ratification of the 14th Amendment in 1868. Democrats in the Oregon legislature seized upon the intertwined issues of interracial marriage and ratification of the 14th Amendment and successfully voted for its rescission.^[27]

However, the Oregon Constitution in 1859 forbade any "Chinaman, not a resident of the State at the adoption of this Constitution" from holding "any real estate, or mining claim, or work[ing] any mining claim therein." Local mining districts also passed discriminatory laws against the Chinese. One was passed in the John Day mining district in 1862: "No Asiatic shall be allowed to mine in this district." It is apparent that these laws were not enforced, since Chinese bought and sold mining claims.^[28]

There was a lot of fury over the Burlingame Treaty of 1868, which provided for "free and unrestricted immigration between China and the United States." The Burlingame Treaty also entailed opening Chinese retail markets to American exports, and served to attract more Chinese laborers, still much in demand to work on the railroads. The treaty included security guarantees for immigrants, but denied them the right to become naturalized citizens, including a restriction on Americans seeking Chinese citizenship.

Racial animosity boiled over in places like Oregon against the Chinese people. Raids, beatings, and arson fires were common in the Chinese experience in Oregon. Conflicts over labor and its accompanied nativist hysteria was the main culprit. Public animosity was inflamed by politicians such as Sylvester Pennoyer, who supported the Confederacy and slavery, ran for governor, and won on an anti-Chinese populist plank. Oregon State Senator John H. Mitchell, who accepted political graft from a land fraud scheme, gave demagogic speeches on the Senate floor against the Chinese community.

The Oregon City Woolen Mill employed many Chinese among its workers. The white workers struck to force the mill to discharge the Chinese, but the strikers were replaced by more Chinese, who were met with violence. When the Panic of 1873 devolved into economic depression, there was a more intense wave of intense anti-Chinese hysteria. The flames of hatred were fanned by working class unemployment, and the perceived threat of Chinese workers to their interests.



Sylvester Pennoyer: Governor of Oregon from 1886 to 1895 ran on Anti-Chinese campaign.

CHINESE EXCLUSION

The United States was unprepared to provide protection to Chinese workers—and unwilling. Chinese people were being jailed on made-up charges, and town ordinances banished the freedom of movement for the Chinese in American cities. Under intense pressure from western politicians, President Rutherford Hayes negotiated with the Chinese a new immigration treaty. This was the Angell Treaty of 1880, which unilaterally restricted Chinese immigration, and the Chinese government received protections for its citizens on American soil. Congress implemented the treaty by enforcing the Chinese Exclusion Act of 1882, which barred further immigration of Chinese laborers, although it permitted those in the country to remain. The exclusion did not include students, professionals, or merchants. Many of the worst outrages against the Chinese occurred after 1882. The Chinese Exclusion Act was given an extended life for another ten years by President Chester A. Arthur. It was the first national act that restricted immigration based on race and national origin. The Chinese Exclusion Act failed to protect the 132,000 Chinese who remained on American soil, removing the protections of the Angell Treaty.

Portland mayor W. S. Newbury exemplified the populist feeling against the Chinese people of Portland on the concerns of Chinese laborers pushing whites out of the labor market:

“I feel it is our duty and mine, on all proper occasions, to give expression to the sentiment which is becoming so universal on the coast, of opposition to further Chinese immigration to this country. There is a deep seated, growing feeling of hostility to them in the minds of the working class of this community which cannot be overlooked or go unheeded with safety to the future...Law and Order must and should be maintained. The true method would be to remove the cause...In the meantime, allow no Chinaman to be employed or any contract let by the city. Let the memorial show in the infamous state of slavery that exists among them, their filthy and indecent practices and habits; how the rich companies own not only the labor of the men but the bodies of the women.”^[29]

Portland’s Chinatown was located along Second Avenue between Pine and Taylor Streets. Chinese ambivalence or antipathy to assimilation made them a target of American animosity. Most of the Chinese stayed in Chinatown because they were subjected to harassment, mostly from young white males, if they travelled elsewhere. In sections of Portland, businesses had signs in their windows that advertised that they employed no Chinese people, and they catered to “white trade only”.

THE KNIGHTS OF LABOR AND CHINESE IMMIGRANTS

The nation was suffering from an economic depression, growing labor militancy, and a nationwide debate over free labor while the Northwest experienced rampant anti-Chinese fervor. Most of the anti-Chinese rioters were transients living in the city. Railroad workers fanned the flames of racial animosity, anti-socialism, and the Chinese. Daniel Cronin a leader of the anti-Chinese crusade in Portland convinced many of the unemployed affected by the depression of 1873 to join his vigilante group. Cronin used his connection with the Knights of Labor to achieve legitimacy for his cause. He, along with B. G. Haskell, came down from Seattle to Portland in 1886 to force the Chinese population to depart from the city. In a speech he made in east Portland, he stated, “You must drive out the Chinese, peaceably if you can, forcibly if you must; if necessary, shed blood.”

Among state officials, Senator John Mitchell, a Republican from Oregon, fanned the flames of populist hysteria by stating the Chinese Exclusion Act had not gone far enough. He had supported the ouster of Portland’s Chinese during the 1886 agitation. Mitchell was quoted as arguing, “If he had his will, he would make exclusion apply not only to the four hundred million Chinamen in China, but to those now in the United States.”

The week after Cronin's speech, an anti-Chinese demonstration with torches and music moved along the streets of Portland with about 3,500 people shouting, "The Chinese must go!" On that same day, members of the Knights of Labor and the Anti-Coolie League in Oregon City forcibly removed Chinese men sleeping at the Washington Hotel, and between forty and fifty-five workers were corralled onto a steamboat in Oregon City and sent to Portland. Twelve men were arrested in association with the crime, one being Nathan Baker, who was associated with the Knights of Labor. The Knights notoriously excluded Asians from their union throughout the nation, and spearheaded the expulsion of the Chinese. They were one of the main moving forces behind the Chinese Exclusion Act of 1882. They wove together the social ills of unemployment and anti-Chinese prejudice.

THE LEGAL DEFENSE OF THE CHINESE PEOPLE OF OREGON

Many Jewish-owned businesses and influential leaders of Portland did not resort to racist discrimination. Historically they had been targeted as outcasts in American and European societies and held empathetic views towards minorities who were oppressed like themselves. In June 1873, Portland Mayor Bernard Goldsmith vetoed a city council effort to prevent Chinese laborers from being employed on city contracts. He, along with previous mayor Phillip Wasserman, cited the recently passed Fourteenth Amendment to the US Constitution and the Burlingame Treaty with China in defense of its Chinese residents. In 1886, Goldsmith and Wasserman joined others as special deputies to successfully defend the Chinese quarter from mobs threatening to expel them from Portland. These two men were more concerned about the civil liberties of the Chinese and other minorities than their colleagues.

In 1884, the Portland City Council passed an ordinance purporting to license and regulate wash houses and public laundries. It was a transparent effort to harass Chinese laundries that required extensive record keeping, sanitation measures, and a quarterly \$5 licensing fee. Portland Police convicted laundry proprietor Wan Yin for failing to pay the licensing fee, and petitioned Deady for a writ of habeas corpus (a court order demanding that a public official deliver an imprisoned individual to the court and show a valid reason for that person's detention). Deady ruled on the fee as a tax and further stated a federal judge's obligation to protect due process of law under provisions of the Fourteenth Amendment as a bulwark against local oppression and tyranny. The 1888 cases of *Ex parte Chin King* and *Ex parte Chan San Hee* demonstrated the barriers to full citizenship experienced by American born, second-generation Chinese women. They were sisters born of immigrant parents in Portland and San Francisco. When they returned from a trip to China in 1888, they were forced to remain on a British ship. The Portland collector of customs insisted they present certain certificates required under the Chinese Exclusion Act. They had no such documents and filed a writ of habeas corpus in the federal district court of Oregon. The sisters argued that as American citizens the Chinese Exclusion Act did not apply to them and they did not need any certificates for re-entry. Judge Deady agreed, finding that the collector had unlawfully detained them in violation of their constitutional rights. As King and Hee had all the privileges and immunities of citizenship, Deady called for their immediate discharge.

In Portland, nearly 200 so-called delegates convened an anti-Chinese "Congress" on February 10, 1886, with the aim of setting a thirty-day deadline for the ouster of all Chinese from Oregon. Portland's Chinese population at the time was estimated at 4,000. Portland Mayor John Gates joined with state and county authorities to protect Chinese immigrants by organizing a security force of more than 1,000, including 700 volunteers. In February 14, 1886, notice was given that all Chinese must depart from Portland within forty days. The *Oregonian* stated, "This means riot or it means nothing...Those that are here will be protected of course. They will not be maltreated, looted, ejected from their homes, expelled from the city or murdered." The editor Harvey Scott went on to defend the Chinese and stated, "[those] who are concerning measures for the expulsion of the Chinese are proposing rebelling against the United states...Portland is a law-abiding city...If they persist the actors will be arrested if possible and if not will be shot to death."

RISE OF SYLVESTER PENNOYER

An anti-Chinese front was established where Chinese were viewed as pawns of corporations that would deny whites a living wage. Sylvester Pennoyer won the gubernatorial election with the help of labor prejudice and nativist hysteria, and the anti-Chinese issue became the dominant issue in the gubernatorial campaign which helped get him elected. Preceding the passing of the Chinese Exclusion Act in 1882, waves of violence and propaganda came through newspapers portraying the Chinese as an unwanted class in Oregon well before the election of Pennoyer. An advertisement was posted in the *Oregonian* in 1867 stating,

"We protest as follows against the introduction of Chinese in our midst, either by companies or individuals. Resolved, the introduction of Chinese as laborers or residents has proved a scathing blight upon every town, or hamlet where they have been

introduced on this coast. Chinese laborers seen as “totally intolerable”. We cannot regard the introduction of Chinese labor in our midst with the least toleration. We think the Oregon Iron Company should remember the Anglo-Saxon race not the Mongolian, make a market for their iron.”[30]

Another attack against Chinese immigrants happened in the Albina district of Portland at the flour mill. White men disguised themselves by blackening their faces and wearing masks made of sacks with holes for eyes. Three days after the attack at the flour mill, fifty masked and armed men drove 200 Chinese woodcutters out of the Mt. Tabor district and forced them to take the ferry across the Willamette River to Portland’s Chinatown. The *Oregonian* described the mob as a “ku klux” mob.[31] Chinese merchants were constantly being attacked inside the city of Portland. Chinese laundries had stones thrown through their windows, and one was blown up with dynamite.

Mayor John Gates called for a vigilance committee to protect the Portland Chinese community. During the mass meeting, he called for vigilance against populist-infused racism and violence towards the Chinese community and “to consider the alarming growth of lawlessness in our midst consequent upon the agitation of the question of unlawfully driving out of the country a class of foreigners who are here in pursuance of treaty and are entitled to the protection of the law.” The meeting was taken over by a large anti-Chinese crowd with soon-to-be-elected-governor Pennoyer as its chairman. He issued edicts declaring that “the presence of the Chinese in our state is an unmixed and unmitigated evil.”[32] He also called for a boycott of the *Oregonian* newspaper for its “pro-Chinese sentiments.” The *Oregonian* opposed Pennoyer: “[Those] who have known him the longest never knew him to entertain sound opinions on any important public question.”[33] The vigilance meeting was relocated, and Mayor Gates and 1,200 other members of the community vowed to “pledge our means and if necessary our lives” to maintain peace and order to protect the rights of the Chinese people to live and work in the community.[34]

The assailants who had attempted to purge the Chinese from Portland were apprehended, and cases were heard against persons charged with mobbing and driving out the Chinese. Judge Deady gave instructions to a Portland grand jury: “If you find that any of the parties have maltreated, menaced or intimidated the Chinese for the purpose or with the intent to compel or constrain them to leave the country...it will be your duty to present them to the court for trial.”

Deady went on to give an impassioned speech to the jury:

“An evil spirit is abroad in this land—not only here, but everywhere. It tramples down the law of the country and fosters riot and anarchy. Now it is riding on the back of labor... Lawless and irresponsible associations of persons are forming all over the country, claiming the right to impose their opinions upon others, and to dictate for whom they shall work, and whom they shall hire; from whom they shall buy, and to whom they shall sell, and for what price or compensation.”[35]

The perpetrators of this “evil spirit,” Deady continued, were those members of the laboring class who justified violence because “the Chinese are taking the bread out of the mouths of their assailants by working for less wages and living cheaper than the latter can.”[36] The grand jury responded by indicting thirteen persons at a time when few Oregonians considered violence against Chinese people an indictable offense. During Deady’s career on the bench, he would go on to defend Native tribal leaders of Oregon, including the sovereign rights of Chief Joseph and the Nez Perce. Years later, in his retirement, he wrote in his diary about his exasperation with the relentless white intrusion on Native lands: “To what manifold uses Indians can be put, and how many uncivilized and unchristianized white men have made their fortunes pretending or attempting to civilize and Christianize them.”[37]

Anti-Chinese agitation figured into the gubernatorial election of 1886. Sylvester Pennoyer, in his inaugural address to the legislative assembly, stated his position quite clearly on the “Chinese Question”:

“The unanimity of the people of Oregon on the undesirability of the presence of the Chinese amongst us was very clearly demonstrated by the fact that both political parties at the last election avowed their hostility to any further immigration of that most undesirable population within our borders. At this stage of our experience in regard to this class of pauper slave labor, no argument need to be used to stimulate the Legislative assembly to exhaust every constitutional means by which to rid the state from the corrupting and paralyzing influence of their presence...procuring their removal from the state...Our state would be rid of their baneful presence and the places they now occupy would be filled with laboring men of our own race and blood.”[38]

Pennoyer felt compelled to address his political base that voted for him. Pennoyer claimed to be a supporter of the common man and attacked foreign immigrants who he claimed were taking away jobs from Oregonians. Pennoyer was an “irascible and intensely

independent sort”; Judge Deady referred to him privately as “Sylpester Annoyer.”[39]

Pennoyer exalted the Populist Party as the party of the common man. He was stentorian in his political squabbles with adversaries, and he was zealous about the Chinese Exclusion Act. With expected troubles on the West Coast with Chinese people, President Cleveland sent telegrams to the governors of all western states alerting them to the possibility of trouble. The telegram sent to Pennoyer read, “Apparently reliable reports indicate danger of violence to Chinese when exclusion act takes effect and the President earnestly hopes you will employ all lawful means for their protection in Oregon.” Pennoyer was offended by this advice and wrote back, “Let the President attend to his own business, and I will attend mine.”[40] Pennoyer pressured President Cleveland to extend the life of the Chinese Exclusion Act, and stated the President should be impeached if he couldn’t enforce it.

CHINESE MINERS

By 1870, half the population of Grant County was Chinese, and in 1879, a law was passed forbidding marriage among Chinese immigrants in the hope that it would slow their population growth. The *Grant County News* went on the offensive and disseminated negative propaganda about the Chinese. The newspaper claimed that Chinese labor was inadequate and incompetent compared to white labor:

The policy of the Union Pacific discharging white hands and filling their places with Chinese should be frowned down all over the state. That company whose lines in Oregon scarcely contain a sound tie or a safe trestle or bridge, will soon be utilizing Chinamen for engineers and conductors on their trains. Plenty of accidents happen on the lines now, but then look out.[41]

Some of the propaganda became intensely violent. The following was printed the same year as the Hells Canyon Massacre in 1887: “The only way to swear a Chinaman so as to get the entire unadulterated truth out of him is to cut off a chicken’s head and swear the Chinaman by this process...As far as getting the truth is concerned, it would have as good effect to cut off the Chinaman’s head, and swear the chicken.”[42]

The people of John Day sabotaged Chinese businesses in eastern Oregon. The Chinese use of opium raised the white people’s ire in the town, who referred to the Chinese as “monkeyed denizens.”[43] At the time, smoking opium was legal. The drug was not prohibited until the Food and Drug Act in 1906. For Chinese people, smoking opium was seen as a harmful social ritual that encouraged addiction. It also provided themselves and white settlers with an escape from the reality of living in a harsh frontier land. Living under the threat of deportation or local violence as well as the poverty they experienced led to suicides. Several incidents of insanity were also observed among Chinese living in this difficult environment, where they were intimidated and bullied.

HELL’S CANYON MASSACRE

The worst act of violence committed by whites against the Chinese in Oregon, in terms of lives lost, was the Hells Canyon Massacre. Thirty-four gold miners were robbed and killed on the Oregon side of Hells Canyon on May 25, 1887. The killers were a gang of rustlers and schoolboys from northeastern Oregon in what is now Wallowa County. Some of them were tried for murder and declared innocent, but the leaders of the crime fled and were never caught. The incident was never fully investigated. All the evidence pointed to a cover-up that lasted for more than a century. Bruce “Blue” Evans, one of the perpetrators of the crime, has his name commemorated on an arch of Wallowa County pioneers in front of the Wallowa County Courthouse in Enterprise, Oregon. The plaque on the commemorative arch was commissioned in 1936, and the truth about Evans was not revealed until a dossier of documents exposing his role in the murders was discovered in 1995.

As the gold fields played out, the Chinese looked for other work. Sizable Chinese communities grew up on Canyon City, John Day, and Baker through gold prospecting. They also lived around Jacksonville and Ashland for similar reasons. In Jacksonville, the Chinese did backbreaking work and had discriminatory taxes levied against them. An example of their oppression can be seen in the *Oregon Sentinel* of Jacksonville, on September 1, 1866:

“It seems an unwise policy to allow a race of brutish heathens who have nothing in common with is to exhaust our mineral lands without paying a heavy tax for their occupation. These people bring nothing with them to our shores, they add nothing to the permanent wealth of this country and so strong is their attachment to their own country they will not let their filthy carcasses lie in our soil. Could this people be taxed as to exclude them entirely it would be a blessing.”

The sections of towns where Chinese lived were highly restricted because of white laws and prejudices, but the Chinese also preferred to live in communal groups, and as a result Chinatowns developed in many towns in Oregon, and elsewhere around the United States. The elements of discrimination in this state serve as a foundation for the enduring contest for civil rights and inclusivity among the people of Oregon. There is a strong political and legal precedent among the will of the people of Oregon to insist upon their constitutionally protected rights as citizens in a democratic republic. The people's will is a struggle for autonomy and self-determination that would continue into the Progressive Era at the turn of the twentieth century, when social and political reformers advocated for women's suffrage, birth control, direct democracy, and the freedom of speech.

[1] Taylor, Quintard: "Slaves and Free Men: Blacks in the Oregon Country, 1840-1860

Oregon Historical Quarterly, Vol. 83, No. 2 (Summer, 1982), pp. 153-170

[2] Jeff LaLande: "Dixie" of the Pacific Northwest: Southern Oregon's Civil War."

Oregon Historical Quarterly, Vol. 100, No. 1, (Spring, 1999), pp. 32-81.

[3] Section 6 of the 1844 exclusionary law by the Provisional Government of Oregon reads: "That if any such free Negro or mulatto shall fail to quit the country as required by this act, he or she may be arrested by some justice of the peace and if guilty upon trial before such justice, shall receive upon his or her bare back not less than twenty or more than thirty-nine stripes, to be inflicted by the constable of the proper county."

[4] Peculiar Paradise, p. 30

[5] Ibid, p.35

[6] Ibid, p. 33

[7] Jepsen, David: *Contested Boundaries: A New Pacific Northwest History*, (John Wiley and Sons: 2017)

[8] Oregon Statesman, January 13, 1857

[9] Nokes, Gregory R., "The Exclusion Laws," COLUMBIA: THE MAGAZINE OF NORTHWEST HISTORY WINTER 2014-15 – VOL. 28 NO. 4

[10] Oregon Spectator Sept. 2, 1851

[11] Williams, George: *Free State Letter*, p. 254-273

[12] Ulysses S. Grant, who fought in the Mexican-American War, privately opposed the war in his memoirs in 1885. He labeled the Mexican War "the most unjust war ever waged by a stronger against a weaker nation...an instance of a republic following the example of European monarchies."

[13] Oregon Statesman, June 13, 1851

[14] McLagan, p. 46

[15] E. Kimbark MacColl: *Merchants, Money and Power*, (The Georgian Press: Athens, 1988)

[16] Malcolm Clark, Jr., *Eden Seekers: The Settlement of Oregon, 1818-1862* (Boston: Houghton Mifflin Company, 1981) p. 289.

[17] Brooks, Cheryl, "Race, Politics, and Denial: Why Oregon Forgot to Ratify the Fourteenth Amendment," 83 Oregon Law Review 731 (2004)

[18] George H. Williams: "The "Free-State Letter" of Judge George H. Williams."

The Quarterly of the Oregon Historical Society, Vol. 9, No. 3 (Sep., 1908), pp. 254- 273

[19] Ibid.

[20] Ibid.

[21] Oswald West Papers, Box 2 Mss 589, Oregon Historical Society.

[22] Journal of the Ninth Regular Session of the House of Representatives p. 51

[23] *Oregon Statesman*, March 17th, 1963.

- [24] Knights of the Golden Circle, Original Documents, MSS 468, Oregon Historical Society Research Library.
- [25] Morning Oregonian, February 8th, 1886.
- [26] Charles Henry Carey, ed., The Oregon Constitution and Proceedings of the Constitutional Convention of 1857 (Salem, Ore., 1926), p. 326.
- [27] The pro-South Democratic Review newspaper from Eugene, Oregon bitterly opposed the rights of citizenship for African Americans, and channeled racist hysteria towards interracial marriage. Democrat Joseph Smith of Marion County during his election campaign for U.S. Congress asked voters: “Do you want your daughter to marry a nigger?” and “Would you allow a nigger to force himself into a seat at church between you and your wife?” Brooks, p. 744
- [28] *Blue Mountain Eagle*, June 25th, 1981, p. 2.
- [29] Annual Message of the Mayor; Portland City Directory, 1879.
- [30] Daily Oregonian, April 10, 1867.
- [31] *The Oregonian*, March 13, 1886.
- [32] Nokes, Richard: *Massacred for Gold*, p. 77
- [33] Ibid.
- [34] Ibid.
- [35] In re IMPANELING AND INSTRUCTING THE GRAND JURY (1886), 11 Sawy. 522.
- [36] Ibid.
- [37] Clark, Malcolm (ed.): *Pharisee Among Philistines: The Diary of Matthew Deady*, (Oregon Historical Society Press: Portland, 1971) p. 62.
- [38] Pennoyer Inaugural Address 1887 pp.20-25
- [39] Oswald West Papers Box 1 MSS 589
- [40] Vertical File: *Oregon Population: Chinese Race Discrimination*, Oregon Historical Society Archives.
- [41] Grant County News, August 11, 1877.
- [42] Grant County News, July 28, 1887.
- [43] Grant County News, February 19, 1885.

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1.6: Oregon at the Turn of the Twentieth Century

Oregon was a land of promise for settlers who came from the Eastern and Southern states of America. Official and popular discourses framed the West as a land of limitless opportunity. It was a narrative that had resonance in American nationalism. The idea of opportunity aligned with the making of the West and within popular imagination it was periodically viewed as a place of refuge for those suffering economic hardship, or political and religious persecution such as Russian Jews who established the New Odessa commune in Roseburg, Oregon. The acolytes of Oregon Fever professed people could start anew in Oregon, enjoy the fruits of the earth, live off the land, and claim their legacy. Frederick Jackson Turner and other American historians from the turn of the twentieth century perpetuated the cultural discourse of an unsettled “primitive and savage” West eagerly awaiting for the march of progress and development by a civilized society. They prophesied a golden age of rugged frontier individualism and industrialization conquering nature and unlocking its vast riches and resources. Not all American intellectuals shared a vision of authentic diversity nor the pioneers who came to work in the extractive industries of Oregon. Diversity was rejected for an assimilationist worldview based on 100% Americanism. But with immigration American identity underwent a seismic shift that resonated through the West and Oregon. There was no longer one racial stock who could claim supremacy over American progress and development. This erosion of the dominant group triggered cultural and social clashes in the modernization of Oregon during the twentieth century.

From the middle of the nineteenth century many workers and their families came to Oregon. As immigrants arrived in America, many were willing to “brave the conditions” of the West similar to the rugged pioneers of the frontier. Many came to Oregon to work in the extractive industries of timber, mining and European-styled agriculture, incentivized by private industries like the railroads that were subsidized by the federal government through millions of acres in public land grants. The menial laborers of the “modern era” were part of a new frontier of economic growth and expansion. Frontier ideals of individualism and personal advancement clashed with dependency inherent in working for wages breaking the phantasmic vision of self-reliant pioneers who lived off the land, prospering from their own blood, sweat and tears. Promoters of western opportunity and the rewards out West gave people the idea they were entitled to those successes.

Manifest Destiny and Oregon Fever took on a new narrative fueled by promotional pamphlets put forth by the railroad industry and real estate speculators, and immigration bureaus that cast their labor recruitment nets into Eastern and Southern Europe. The Union Pacific Railroad distributed a pamphlet called *The Wealth and Resources of Oregon and Washington* which continued the message from the pioneer days that Oregon was a land bonanza ready for the taking by settlers. The Union Pacific told prospectors, “[The Pacific Coast Real Estate Company’s lands] have been selected and classified, and embrace some of the finest lands in the State now open to settlement...the country is in process of rapid development. This open and extensive region offers unequalled opportunities for colony settlements.”^[1]

Colony settlements were part of the speculative wave of a real estate boom furnished by generous land grants obtained by the railroads from the federal government and financed by banks. Settlers could establish themselves within forty miles of railroad access, enabling distribution and shipping of commodities and resources across the country. Land grants from the federal government were beyond generous in scope, and the continual annexation of Native lands were part of those claims. The Umatilla Indian Reservation near the town of Pendleton agreed to have their land portioned off in severalty whereby they would retain 120,000 acres, and the remainder was granted to the federal government to be sold off to investors like the Union Pacific Railroad and its real estate affiliates. The Union Pacific sought to establish farming families by which 148,000 acres were to be sold from the Umatilla Reservation, and gave outlandish promises to incoming settlers that they would become wealthy. “A very large portion of this is fine agricultural land, and the remainder valuable for timber and pasture. Any one person can buy only 160 acres of agricultural, and 40 acres of timber land...Remember now the man who comes here and exercises the same frugality...will in five years be well off and in 10 moderately rich.”^[2]

The Union Pacific pamphlet reported agricultural yields so vast and abundant in size that it boggled the imagination. Oregon was conveyed through a utopian vision as a place that had virtually no unemployment or labor unrest. Immigrants came to the Northwest guided by misinformation they had faithfully digested from salesmen and propagandists. Migrants continued to arrive into the state thinking they had arrived in a land of Eden. A clash between unrealistic expectations and harsh reality brought to life radical movements and violence, and encouraged the growth of progressive politics and social reforms. Oregon, still carrying the

frontier worldview, went through a difficult social and economic transition from a rural-agrarian to an urban-industrial based economy.

New Odessa Commune

The New Odessa commune, named after the port city in Ukraine, was a colony settlement established near Roseburg that ushered in the changing face of immigration into Oregon and the United States. Under the reign of Czar Alexander III, Russian Jews of Kiev and Odessa succumbed to waves of violent pogroms during a period of increasingly rabid Anti-Semitism. The czar was a reactionary politician who blamed the Jews for the assassination of his father Czar Alexander II. In 1882, a group of Russian Jews from Odessa sought to establish agricultural colonies in America, and to escape violent persecution of their people. They were called Am Olam or The Eternal People a reform-minded organization shaped by a socialist utopian vision. There were other Russian Jewish groups also looking into establishing agricultural communities in North Dakota, Louisiana and Connecticut as well. About sixty members of Am Olam found their ideal spot near Glendale in southern Oregon.

Am Olam's emblem was a plow and the Ten Commandments, they were socialists dedicated to common property, shared work, harmony and brotherhood. Henry Villard, the Oregon railroad magnate, suggested they build their commune between Roseburg and Ashland. He also promised to arrange transport for the entire group. On March 8, 1883, the commune settled on 768 acres which included part of the present-day City of Glendale. In remembrance of their former homes in Odessa, Russia, they called their new home on Cow Creek, New Odessa. As many as 65 people lived on the commune, and a Communal Hall was built alongside a farm and outbuildings. They spoke Russian and wore traditional eastern European clothes.

One of the challenges for the group was that they were inexperienced in agriculture. Their neighbors helped them plant their first crops. Within their communal home, married couples had private rooms and everyone else slept in a large room upstairs in the Communal Hall. They established a large community garden and were mostly vegetarian. There was a disproportionate amount of men to women in the community by 1884. Funds were raised for essentials and farm payments, and they sold timber to the Oregon and California Railroad for ties and fuel. There was harmony in the first year the commune was established. They had a little library of philosophical works and its favorite form of entertainment was discussion and debate.

But New Odessa would not last very long broken apart by political divisions leading to the commune's demise. They had invited an older charismatic non-Jewish émigré from Russia named William Frey, to join the commune. He became a polarizing force, and fifteen followers left with him to London. A fire destroyed the library in 1885, and some of the younger members were searching for a return to the world of learning, careers and marriage. In 1887, the commune was declared bankrupt and some members moved to New York. By 1888 the land was foreclosed and returned to its original owners.^[3] The commune at New Odessa signifies two larger trends within Oregon history, the gradual acceptance and integration of Jewish people within the community, and how different self-appointed leaders of utopian communities took root on Oregon soil such as Rajneeshpuram in Wasco County, or hippie communes that blossomed across the state during the 1960s.

Populism and Labor Unrest

Financial panic swept through the United States, including Oregon in 1893. Similar to the Panic of 1873, it was marked by the collapse of railroad overbuilding and shaky financing, setting off a series of bank failures and the collapse of 15,000 businesses, including two of the country's largest employers. Many Portland businesses were going bankrupt, and about 4 million were unemployed nation-wide. Since the state social welfare system did not exist yet, charities were completely strained to the breaking point. Farmers were not adequately paid for their products and were being gouged by prohibitive shipping rates on the newly established and politically dominant railroads. Oregon's economy was mostly situated in the agricultural sector with the exception of Portland and a few other cities. Racial tension continued in Oregon during the depression of 1893. Anxieties over job competition swelled and resulted in the burning of the city of La Grande's Chinatown in northeast Oregon and the expulsion of its residents by a white mob.

Labor union prospects dimmed during the mid-1890s as the depression undercut their bargaining power. Many workers were disenfranchised and impoverished and sought out populism as a political cure to their ills. Unemployed workers of Portland resorted to street work to pay their rent. Some unemployed men joined Jacob Coxey's army of protestors to demand that the federal government act immediately and address their grievances. Such jobless men became known as "Coxey's Army" named after the Ohio businessman Jacob Coxey, who organized a movement to protest the widespread lack of jobs and encouraged monetary

reorganization and government sponsored public works projects. Coxey and his “army” called for a “march in boots” to petition Washington D.C. to meet its demands. Coxeyism was similar to the Populist and the Grange movement among Oregon farmers, who insisted that the state had an obligation toward its unemployed citizens, and every citizen had “a right to face up to their boss” and petition the government for a redress of their grievances. Portland rallies enlisted several hundred members.

American populism developed during the latter part of the nineteenth century and held the idea that the common people were oppressed by an elite class. In Oregon, the farming sector and the Granger movement protested against the unfair business practices of the railroad industry. The ideas of populism merge with political ideologies like liberalism or conservatism. Coxey’s Army was situated politically with a developing liberalism that the government is obligated to support the well-being of individuals. Also within this vision is the people have a voice to create political change and reform society. Critics in Oregon, depending on their political ideology and social class, saw populists as “opportunistic demagogues who also appealed to nativism and fears of conspiracy to build support.”[4] Governor Sylvester Penneyer seized upon populist appeal and nativist antipathy toward Chinese immigration. He was a populist whose views aligned with the Knights of Labor and viewed Asian immigration as an existential threat to Oregonians. Penneyer agitated support for the common worker and was critical of the business establishment but ironically was an intricate part of the corporate elite. Critics of Penneyer referred to Coxeyites as “lowest grade Populists” and chastised politicians like him who stirred up turmoil to win over voter’s in the ballot box.[5] The *Oregonian* newspaper seized upon the idea that the Coxey Army was a corrupting influence from California shipping its undesirable elements to Oregon.[6] Social class issues blurred criticism of Penneyer and Coxey populism as woven from the same fabric. Penneyer was an ethnic nationalist advocating for a racially monochromatic Oregon whereas Coxey was a wealthy man and an exceptionally rare individual who fought for unemployed workers.

Oregonians formed their petitions in boots for Coxey’s Army at train stations in Ashland, Roseburg, Cottage Grove, and Salem. Many people of Portland sympathetic to their cause, provided food for Coxey’s army. During their stay in Portland, the protestors were camped at Sullivan’s Gulch in Northeast Portland (which is now occupied by the light-rail train and Interstate 84), where five hundred additional men joined their ranks. Harvey Scott, the editor of *The Oregonian*, scathingly referred to “Coxey’s Army” as “tramps” and “beggars”, but in reality the Army, according to observers, were well-mannered and disciplined and posed no threat to the city of Portland.[7] The conservative press viewed the Coxeyites as “the lowest grade of Populists,” such as Harvey Scott:

“The American tramp is the product of the American system of indiscriminate almsgiving ... The Coxey army shows us what the effect has been. The national vice of indiscriminate almsgiving has fastened upon us the national disease of professional mendicancy, organized and inclined to demand rather than supplicate relief from want and salvation from work.”[8]

The Coxeyites made their way to Troutdale where they took over the telegraph office and the train station. When the Coxey Army successfully occupied the train station, the federal marshal urged the Multnomah County sheriff to respond to protect private property there. The Union Meat Company, together with merchants in Troutdale, supplied meat, flour, and potatoes to the men and allowed them to live in vacant homes. The Coxeyites seized a train in defiance of a federal injunction and headed eastward. Their train was stopped in Arlington, Oregon and five hundred were taken into custody and brought back to Portland. Several other armies of unemployed men made the journey to Washington D.C. and when Coxey’s army arrived at the nation’s capital, Jacob Coxey was arrested for walking on the grass in front of the Capitol Building. Although Coxey’s proposal for government jobs was radical for its time, it gradually became part of American federal policy that established a partnership with state government to improve roads for the fledgling automobile and trucking industries. Later President Dwight Eisenhower enabled the federal government to subsidize the development of the interstate highway system which made transportation and the flow of commerce more efficient.

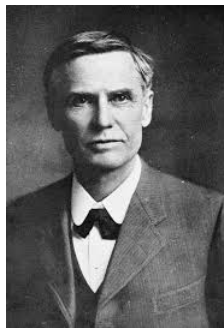
William S. U'Ren: Father of the Oregon System

A People’s Party was formed in the Pacific Northwest and they aligned with Jacob Coxey’s vision: government ownership of the railroads and utilities, and supportive policies for farmers. They anticipated the Oregon System by calling for the initiative, referendum and recall, and the direct election of U.S. Senators. The initiative and referendum, which would be known as the Oregon System, helped accomplish several reforms: women’s suffrage, Prohibition, improved working conditions, and stronger regulation of corporations. Reformers began advocating for the system in the 1880s. As the Populist movement was gaining momentum in the Plains states, U’Ren hoped to make constitutional changes to Oregon laws. William S. U’Ren felt the initiative and referendum were protections against the passing of any revolutionary laws. He forced state legislators to initiate legislation by

petition and subject new laws to referendum (which many states have adopted since). The initiative amendments in the Oregon State Constitution allowed registered voters to place on the ballot any issue that amends the Oregon Constitution or changes to the statutes. The referendum permitted registered voters to reject any bill passed by the legislature by placing a referendum on the ballot. U'Ren also created the Voter's Pamphlet which contained proposed amendments and measures with official supporting and opposing arguments that were, and still are, distributed to every registered voter in Oregon.

U'Ren and his fellow radicals founded the People's Power League. It was said Oregon had two legislatures, one at the capitol and "one under William S. U'Ren's hat" according to Harvey Scott of *The Oregonian*. These reformers sought to make the capitalist economic system more humane and fair. Once in place the Oregon System was a tool of moderate, not radical reform. U'Ren drove legislation like the Corrupt Practices Act, the presidential primary, the direct election of senators, and the recall, which other states adopted. William S. U'Ren was feared by many politicians in the state of Oregon. In an editorial in the *Oregonian* in 1906, by Harvey Scott, editor of *The Oregonian*, commented on U'Ren's presence in Oregon politics:

"In Oregon, state government is divided into four departments: the executive, judicial, legislative and William S. U'Ren...and it is still an open question which exerts the most power. Mr. U'Ren has boldly clipped the wings of the executive and legislative departments, and when he gets time will doubtless put some shackles on the Supreme Court...the indications are that Mr. U'Ren outweighs anyone, and perhaps all three of the other departments."



William Simon U'Ren: founder of the Oregon System

The Corrupt Practices Act was an effort allied with Jonathon Bourne, Jr. that targeted political corruption by limiting expenditures by corporations to influence political campaigns. It was patterned after Britain's Corrupt and Illegal Practices Act of 1883 which criminalized bribing of voters and placed limits on campaign expenditures. Each candidate running for office was limited to spending fifteen percent of their salary in their primary campaign, and ten percent in the general election. U'Ren was determined to change public participation in Oregon government. Later in historical memory, he was referred to as "Oregon's modern Thomas Paine."^[9] Perhaps it is a historical exaggeration, since U'Ren and Paine share very few similarities in their background, but both supported natural rights, and the idea that government should represent the interests of the people. Paine was a product of Enlightenment thinking and the abdication of monarchical rule in America, and U'Ren was a product of reformist Populism, but both sought to improve the lives of the common man. The populist movement would fade, but the reform movement grew stronger and empowered U'Ren's intentions, with him famously stating he would "go to Hell for the people of Oregon."

William S. U'Ren was a strong proponent of the single tax which was the most contentious legislative issue at the time. The single tax involved government appropriation of all "unearned" increases of land values. Tax revenues would have been directed to fund state government, encourage development and break up the concentration of wealth in landholding. "Single taxers" believed inequity in landholding was the primary cause of poverty and inequality in the United States. The intention of the single tax was to simplify the tax system by removing all the other forms of taxation. Charles Erskine Scott Wood and Will Daly were advocates of the single tax crusade. Single taxers believed property ownership would reduce poverty, political corruption and unearned wealth. "Single taxers" thought it was unjust for speculators to purchase land and then hold it idle, waiting to cash in only after others had improved their nearby properties and increase the value of their own land. For the single taxers, appreciation in the value of landholdings belonged to the public and should be collected as a tax. According to single taxers, the tax dollars would be enough to support government, and it would force speculators to sell their land, enabling more people to own property.

Political corruption was another target of U'Ren's efforts. He objected to the practice of buying out voters, bribery, and intimidation of delegates attending political conventions. He was also concerned about the amount of influence wielded by

lobbyists at the State's Capitol. The standards of political morality had, in some cases, devolved into openly lewd behavior; this was particularly true of the legislature. "Members were brought on the floor so drunk that it took two sober men to get them to their seats...It was not unusual for members to retire for a season...to recover after a term in the Oregon legislature"[10] Most legislators who were successfully elected to the Oregon Senate did so through their "gentleman agreements" with the wealthy businessmen involved with railroads, oil, textiles, iron and steel, mining and sugar.

Despite the best efforts of lobbyists representing the industrial sector, U'Ren curbed the political grasping of the timber and transportation barons. Many within the railroad industry had deep influence in the transportation sector in Oregon. For example, Ben Holladay of the Southern Pacific Railroad had a large home in the town of Seaside for entertaining Oregon legislators, Henry Villard with the Northern Pacific, Edward Harriman with the Union and Southern Pacific, and James Hill of Great Northern were also "hospitable for their benefit". Harriman regarded Oregon as his private estate boasting, "I have eastern Oregon bottled up and I'll pull the cork when I'm ready." [11] Railroad developers and operators showed little interest in the public, and neither did the public's representatives in the legislature. Judge Henry McGinn told the Republican Club in Portland in 1909 that he had never seen an honest election in Oregon under the old system. It was well known that homeless and unemployed Oregonians were paid as much as \$2.50 to vote for specific candidates, and many qualified citizens were kept from voting by the police, who were part of the effort to deny voters access to the polls.

LAND FRAUD TRIALS

The practice of obtaining land under false pretenses had been going on since the arrival of the first settlers of Oregon, ostensibly framed for the benefit of small homesteaders.[12] Under the Timber and Stone Act, huge areas of land were bought by timber companies through real estate agents like Stephen Douglas Puter. He and other agents rounded up "dummies" to file private homestead claims on tens of thousands of acres of valuable federal timber lands given to the Oregon and California Railroad. Every claim was for 160 acres and timber land could be sold for a profit. Lumbermen and their agents were operating throughout the West, but only Oregon cracked down on this practice. While Puter was considered the kingpin of the operation, several Oregon politicians benefitted from the scheme, including U.S. Senators John H. Mitchell and Binger Hermann. According to Puter, "our idea was to locate as many persons as possible in a township under the homestead law, and to furnish them the money with which to make final proof and cover incidental expenses, to have them deed the land to us at a price agreed upon in advance." The State Land Office indicated in their records a great deal of speculation in lands of the Indian reservations; the Klamath, Umatilla, Siletz, and Warm Springs reservations together lost approximately 133,564 acres of land through these alleged settlers under the Homestead Act.

The Republican Party of Oregon fell in influence after 1905 as a direct result of exposures to land fraud trials, and their own internal strife. Puter fled to Berkeley, California with his family, and was indicted that same year. He co-wrote the book *Looters of the Public Domain* in collaboration with Horace Stevens a former land office clerk. Puter confessed his role in the land fraud scheme and pointed out others who had a role in the scandal. Portraits of collaborators and incriminating documents were provided which was later used in court. He served as witness for the prosecution who successfully brought charges against Senators Hermann, Mitchell and John Williamson along with other prominent Oregonians and federal officials.



Stephen Douglas Puter writing *Looters of the Public Domain* in his jail cell.

The politicians involved in the scandal were indicted under U.S. Revised Statutes that states "no senator or representative in the employ of the government shall receive or agree to receive any compensation for any services rendered." American constitutional law prohibits members of Congress from receiving emoluments or remuneration for their performed services. According to Stephen

Puter, “John Mitchell who had so long controlled political affairs of the state with such supreme autocratic power,” tried to cover up his involvement in the scandal. Mitchell accepted a \$2,000 bribe from Puter. The Senator was a close associate of Ben Holladay of the Southern Pacific Railroad, and worked with him in controlling the legislature. He was sentenced to six months in Multnomah County jail in Portland and imposed a fine of \$1,000, pending appeal. Mitchell died soon after sentencing, perhaps due to complications from a tooth extraction, though many feel it was from the stress of the exposure from a dose of Oregonian “muckraking,” and the national exposé of an elected leader with racial proclivities like Mitchell, who was an anti-Asian crusader during his political career.[13] The movement for direct legislation after the Land Fraud Trials was looked on by an increasing number as a cure all for government illness.

The direct election of senators is the most important instance of the nation following Oregon’s lead when it comes to election reform during the Progressive era. The Oregon System was a widely discussed topic in muckraking journals during the early part of the twentieth century, and was just one manifestation of a nationwide liberal movement to make elections, and the legislative process, more democratic. U’Ren could only reach so far into his democratic vision for Oregonians and in turn, for Americans. One of the bills he proposed that did not successfully pass was one that would have made it virtually impossible to be unemployed. The purpose was to provide for every citizen at all times an opportunity for voluntary, cooperative and self-supporting employment in producing the necessities and comforts of life. The work and products would have been for the benefit of members of a United States Volunteer Workers’ Executive Department and their families. This can be seen as an early model of New Deal style policies that would create federal departments and organizations to coordinate labor and enable completion of massive public works projects such as the Bonneville and Grand Coulee Dams on the Columbia River of Oregon.

WOMEN’S SUFFRAGE

Another impactful legacy of the Progressive Movement in Oregon was the extension of the political franchise, or the right to vote to women. Western states passed women’s suffrage in their state constitutions earlier than the Nineteenth Amendment was enacted in the Federal Constitution. The progress for women’s suffrage was much more sluggish in the eastern states, and nearly non-existent in the American south. One of the first states to give women the right to vote was Wyoming in 1869. The history of women’s suffrage in Oregon dates back to the formative years of the Oregon State Constitutional Convention in 1857. One of the provisions it carried was on suffrage and elections in Article II Section 2: “In all elections, every white male citizen of the United State of the age of 21 years and upwards who shall have resided in the state during the six months immediately preceding any such election.” In other words, you had to be white and male in order to vote in Oregon. When the report on Suffrage and Elections was being considered by the Convention, in the Committee of the Whole, David Logan moved to strike out the word male in Section 2. [14] This would have resulted in giving women the vote, but the motion failed to carry, and women remained disenfranchised for several more decades. African American men gained their voting privileges in 1868 when the 15th Amendment of the United States Constitution nullified the restrictions imposed by Oregon’s Constitution. Many officials in Oregon opposed the ratification of the 15th Amendment, and it was not officially ratified by the state until 1959.

National figures in the American suffrage movement, Susan B. Anthony and Elizabeth Cady Stanton, pushed for the inclusion of universal suffrage, or unrestricted voting rights for men and women in a Constitutional amendment. Congressmen Thaddeus Stevens, leader of the Radical Republicans in the House, presented petitions signed by Anthony and Stanton advocating for universal suffrage or the right to vote for men *and* women to be included in the Civil War amendments. According to the historian Eric Foner, Stevens was not an advocate for women’s suffrage unlike other Radical Republicans. Perhaps if he had backed a voting amendment that included women then this would have impelled states to abide to federal law, but for Stevens, he was primarily focused on establishing equality before the law for all citizens in the United States, not women’s suffrage.

ABIGAIL SCOTT DUNIWAY

One of the greatest and most influential activists for women’s suffrage in Oregon was Abigail Scott Duniway.[15] Her sustained suffrage agitation began in 1871 after facing bitter disappointment when women were not granted the right to vote in the Fifteenth Amendment. That same year, Duniway moved from Lafayette, a small town in the Yamhill Valley, to Portland, Oregon, and started *The New Northwest*, a newspaper embracing women’s suffrage and equal economic and social rights for women. At the time, the renowned suffragettes Susan B. Anthony and Elizabeth Cady Stanton were traveling on a speaking tour through the West Coast. Duniway invited both of them to come to Portland and Anthony accepted her invitation. Anthony arrived by steamship into Portland, and used the city as her base. Duniway and Anthony along with the Oregon State Equal Suffrage Association wanted to

air their grievances in public speeches in Portland, but soon they discovered “no church was open to us anywhere, and the old Orofino Theater was our only refuge.” The group established the Multnomah County Woman Suffrage Association at the Orofino Theater. From Portland they continued their lecture tour into Salem where Duniway and Anthony camped at the Oregon State Fair. There was no assembly hall, so they held an open-air meeting “under the shade of the pavilion”. Eventually they travelled to The Dalles and Walla Walla, Washington on their lecture circuit.



Abigail Scott Duniway voting

Duniway then became the president and founder of the Oregon State Equal Suffrage Association (OSEA) in 1884. On their letter head it stated, “Women pay taxes, women should vote,” a harkening back to the American Revolution when the Stamp Act Congress jump-started the rebellious cause of the colonists declaring “no taxation without representation.” Duniway had “favorable mention” of Bethenia Owens-Adair of Roseburg, a devoted social reformer and one of the first female physicians in the state of Oregon (she will be mentioned later in this chapter). Owens-Adair arranged a meeting at the Douglas County Court House on behalf of the OSEA. Duniway was a gifted orator and writer, but often struggled with building coalitions with other reformers. At one point, Owens-Adair and other members of the OSEA asked Duniway to step down as president of the group stating her stubborn attitude was impeding the progress of the organization. Eventually the Oregon State Equal Suffrage Association succeeded in getting suffrage on the ballot in 1884, but 72 percent of the electorate rejected it. The OSEA pursued similar arguments in their Declaration of Principles as the Women’s Social and Political Union of the British suffrage movement: “The mother half of the people is rated in law with idiots, insane persons and criminals from whose legal classification we are looking to you, voters of Oregon, to release us, your wives...” Suffrage narrowly lost by a margin of 2,000 votes. Duniway formed a rift with the Women’s Christian Temperance Union (WCTU) who supported prohibition and women’s suffrage. She blamed the temperance movement for the loss, and feared well-financed brewing and liquor interests associated suffrage with prohibition. Rather than building an alliance with a national organization with far-reaching influence, she was unable to work with the WCTU. She branded its leaders as impractical elitists who had “sat in the sanctuary singing, ‘Where is My Wandering Boy Tonight’, when the little hoodlum was kicking up a rumpus at my suffrage meetings.” Suffragettes in Oregon rarely played the race card of nativist hysteria, unlike other states that sought out to diminish the influence of Southern European voters who were considered “racially inferior”. Instead the suffragettes of Oregon laid the blame on the saloons, brothels, trusts, railroads, career politicians, and the high society women of Portland.

Duniway felt compelled to challenge the status quo as a woman in American society. In her autobiography she stated from an early age, “[she] had been led to believe that women who demanded rights were man haters, of whom I certainly was not one.” Early in her career as an activist, she had a humiliating experience in an Oregon court of law when an attorney told her, “Of course, Mrs. Duniway, as you are a lady, you are not expected to understand the intricacies of the law,” to which she deftly responded, “but we are expected to know enough to foot the bill though.” At the time of the incident, court houses in Oregon were known as “a place for men.” American women were held to limited professional opportunities in nursing and teaching at the end of the nineteenth century. Exposing the contradictions of antiquated Victorian culture that framed women as nurturing educators purveying the values of republican motherhood and the virtues of the domestic sphere, Duniway pointed out that there were over 10 thousand teachers in California schools, and 85 percent of them were women. Among them the teaching of civics was obligatory. If women were not qualified to vote or run for office then, “How can she teach the great truths of democracy...and [at the same time] explain the non-representation of women to clear-sighted boys and girls?” In a campaign letter from May 1906, Duniway stated: “We believe the mothers, wives, sisters and daughters of Oregon are as intelligent and patriotic as women of [other states and nation’s that have passed women’s suffrage]. We appeal to every liberty loving man in Oregon...for all to prove his faith in the mothers and wives of Oregon.” Abigail Scott Duniway’s brother Harvey Scott, the long-time editor of *The Oregonian*, defended his sister against critics who blamed her for women’s suffrage not getting enough votes in a ballot initiative in 1906:

“This newspaper has not supported, but has opposed women’s suffrage; and it will not take no part in the dispute between women supporters as to why women suffrage was defeated in the recent election. The agitation was begun by Mrs. Duniway and has been carried on by her unceasingly; and whatever progress it has made has been due to her. The progress it has made is an extraordinary tribute to one woman’s energy.”

Duniway was a gifted orator, and in public speeches, she channeled the right to vote as a foundational right to all citizens dating back to the American Revolution. She compared the enfranchisement of women to the last vestige of taxation without representation since women had to pay taxes but had no voice in the political establishment. Confidently she felt a majority of Oregonians would fulfill their civic duty and grant women the right to vote as the “earnest prayer of every patriotic pioneer.” The historical reality for Duniway and the suffrage movement was challenging since women had to appeal to men and their sense of social justice, allowing them permission to have a political voice in Oregon like masters declaring the freedom of their slaves. The right to vote for women was on the ballot in 1908 and again in 1910, but would not pass until 1912. At that point, Washington gave women the right to vote in 1910, and California had the following year. For Oregonians the issue became a “local grievance,” and voters grew impatient.^[16] Another factor that made 1912 different from other years, was a greater presence of coalition building and unity that took place between suffrage groups, and the diversity of the movement that extended into the African American and Chinese communities who created equal suffrage leagues. When women’s suffrage finally passed, Duniway in celebration, spoke in honor of past suffragettes, “Elysian fields! Our dear ones are not dead but risen. We shall surely meet again. Heaven is near us.” Duniway passed away three years later, having been able to live to see her long-awaited goal achieved.

Policing of Sexuality in Portland

The women’s suffrage movement was a critical bookend to the social reforms of the Progressive era and the anxieties of the modern age. Women were entering the public sphere, and sexual codes of conduct were being loosened between men and women, no longer under the pseudo-scientific guise of the Victorian era. While Oregon and America experienced a vast economic transformation, a sexual revolution was transforming the middle and working classes: the flapper girl. During the Victorian era, the middle classes adhered to a strict social code that separated the genders into their respective spheres limiting women’s political and economic power and sexual autonomy. A sexual double standard favored men’s promiscuity and scandalized feminine sexuality as degenerate and amoral. This transcended into the public sphere where men controlled the political stage, but the suffrage movement upended this cultural worldview.

Oregon served as an exceptional example of the social anxieties of the modern age. A sex scandal erupted in the city of Portland, occurring amidst growing concerns of prohibitionist reformers and activists that social vices like gambling, prostitution and “sexual degeneracy” have deteriorated the health and morality of American cities. Owners of properties in which “vice activities” were conducted had profited by an incredible 84 percent to 540 percent return on their investments. Venereal disease accounted for at least 25 percent of all diseases treated by city doctors, without counting any unrelated cases or occurrences treated only with home remedies. The social concerns over sexual vice in the cities is not a new development in the story of Oregon, or for that matter in the frontier societies of the American West. Many women worked as prostitutes in cities, towns, and frontier outposts around the country, serving gold miners, cowboys, lonely bachelors, and unfaithful husbands.

Under public pressure, the city of Portland created a Vice Commission in 1911 to investigate. It was revealed that liquor, gambling and prostitution flourished in part thanks to the “better” families who controlled the city’s economy and politics. In Portland, as in the majority of larger cities in the United States, power was exercised predominately by white men who possessed wealth, social standing and political authority. They constituted “a patrician class” that gained the support of the masses through propaganda and empty promises. This power also historically discouraged newspapers from conducting thorough investigative reporting. In the 1890s, the ever-present Harvey Scott of the Oregonian “absolutely declined” to use his newspaper to help enforce vice laws, admitting that “the persons most concerned in the maintenance of these abuses were the principal men of the city – the men of wealth whose patronage the paper relied and it could not afford to alienate them. It would ruin this paper.”^[17]

In response to pressure from the Young Men’s Christian Association (YMCA), Governor George Chamberlain founded the Oregon Social Hygiene Society in 1910, and initially it focused on heterosexual relations. The YMCA promoted physical fitness and disseminated information about medical issues. Their intent was to limit the spread of sexually transmitted infections, combat “social vices” like prostitution and gambling, and prevent childhood immorality. Oregon legislation banned prostitution and Portland’s “red-light district” was outlawed. As a result, the prostitution industry was driven underground. Few publications in the

city of Portland's history attracted the degree of attention that was afforded the famous 1912 vice report that the commission published. Portland was the only city in the Northwest to create a Vice Commission to curb what reactionary reformers called "morally profligate" behavior.

The concern about the prevalence of vice activities in Portland came to a head when a nineteen-year-old white male was arrested for a petty crime. During his interrogation, he confessed to belonging to a local homosexual subculture and connected it to other individuals who were involved in similar groups in major cities. More stories of sexual scandal started to roll in by 1913 and the progressive reformers reacted fiercely. Few publications in the city of Portland's history attracted the degree of attention that was afforded the famous 1912 vice report, and in 1913, after reviewing the report and in light of the recent concerns about homosexual behavior in the city, Governor Oswald West, a Democrat, announced his intention to clean up the perceived moral depravity of Portland. The vice commission investigated for nine months before reporting that Portland contained some 431 establishments devoted to prostitution, and Portland City Council agreed that the public had a right to know who owned the buildings that housed the prostitutes.

Sexual promiscuity and homosexuality were considered unfortunate byproducts of modernism according to social reformers. Homosexuality and the sexual revolution were diagnosed as "degenerate" or deviant behaviors and a moral threat to Western Civilization. *The Oregonian* warned "certain signs of race decay, or national degeneration...have preceded the downfall of every great empire from Athens to Bourbon France." Male degeneration would indicate a loss of masculine attributes and a decline into femininity. Degeneracy during this historical time referred to those who were deemed abnormal because they were perceived as deviant according to official and public discourse on sexuality and social mores. Public imagination at the end the nineteenth century came to associate male-to-female cross-dressing and male effeminacy more generally with people of color. Chinese theaters in Portland, Oregon featured men who cross-dressed as women, including the San Franciscan Chinese performer, Lee Hoo. Into the twentieth century, female impersonators became the favorite among audiences. Many performers including Chinese, African Americans and whites, regularly appeared in cross-dress on western American stages.[18]

Social reformers began efforts in the 1920s to strengthen existing laws and promote legislations designed to punish severely those participating in same sex relationships. Local newspapers had been obsessing over reports of same sex affairs among the working class, racial minorities and immigrants, but Oregonians at the time were surprised that the homosexual subculture extended to the white middle class. When newspapers published stories identifying native-born middle class male homosexuals in Portland, many fled the city. Some were arrested in Salem, Medford, Vancouver, Washington, and Forest Grove, Oregon. The American Social Hygiene Society would be used to tackle the problem of the "homosexual subculture". Governor Oswald West adopted the measure of the American Social Hygiene Society by promoting sterilization as the solution to "sexual degeneracy" in Oregon. Some of the state's most determined reformers favored the sterilization of people deemed unfit to have children. "Degenerates and the feeble minded should not be allowed to reproduce their kind," asserted Governor Oswald West. The state's sterilization law included "habitual criminals, moral degenerates and sexual perverts", and eventually the "feeble-minded." Forced sterilizations, the most radical demand of the eugenics movement in the United States, was considered an acceptable solution to many Oregonians at the time.

Bethenia Owens-Adair



Bethenia Owens Adair and the Eugenics movement in Oregon

The physician, suffragette and social reformer, Bethenia Owens-Adair, adopted a political agenda supporting eugenics and recommended the sterilization of the "feeble minded" or developmentally disabled people of Oregon. Myths were widely accepted

that people with cognitive disabilities were oversexed, irrational, prone to violence and a threat to society. In the United States and Oregon, families were told by medical professionals and government authorities that institutionalization of developmentally disabled people was the best solution for their own interests and livelihood since they were not fully accepted in society.[19] Owens-Adair believed that heredity was a directing force of all life, and the inexorable laws of nature must be understood to protect the nation from the unfit and degenerate. It was a Social Darwinist belief the continuation of progress and the preservation of civilization was endangered by “sexual perverts” and members of “inferior races” who allegedly propagated at a faster pace than the “higher races”. As a result of degeneration theory propagated by racial science and Social Darwinists, concluded that homosexuals, “inferior races”, and those with developmental disabilities should be the target of sterilization. The practice of forced hysterectomies and ovariectomies continued well into the 1970s with women of color, particularly Native Americans, African-Americans and Puerto Ricans often targeted. As part of a hardened Malthusian worldview, the justification for performing the operations was the notion that if a woman could not care for herself, the medical establishment was helping them lower the costs of raising more children.[20]

LEFTISTS IN THE PROGRESSIVE ERA

Emma Goldman, prominent socialist and one of the founders of modern American feminism, came to the Rose City to speak in 1915. Before her arrival into Portland she changed the topic of her speech from “The Intermediate Sex: A Study of Homosexuality” to the topic of birth control. Several Portland residents lodged a protest with the mayor since Goldman was a socialist and discussion and dissemination of information on birth control was considered obscene material according to the Comstock Laws. The Comstock Laws were passed under the Grant administration in 1873 in response to reports that soldiers during the Civil War possessed pornography creating a national scandal. Anthony Comstock was an activist advocating for Victorian social mores and chaste sexual behavior. He founded the New York Society for the Suppression of Vice and gained political influence with the passing of anti-obscenity laws colloquially named after him. The *Act for the Suppression of Trade in, and Circulation of, Obscene Literature and Articles of Immoral Use*, forbade even the possession of any article intended for prevention of contraception. Violations subjected offenders to fines up to \$5,000 and/or five years in prison. Portland police arrested Goldman and her colleague Dr. Ben Reitman for the crime of distributing literature on birth control at the Turn Verein Hall in downtown Portland. Goldman was charged for speaking on the topic of birth control while several plainclothes police were among the audience in attendance. Eventually her birth control case was dismissed by Portland Circuit Judge William Gatens who stated, “There is too much tendency to prudery these days.” Goldman was released on a \$500 bail provided by Charles Erskine Scott Wood who became a legal advocate of progressive and leftist activists including Margaret Sanger and Marie Equi.



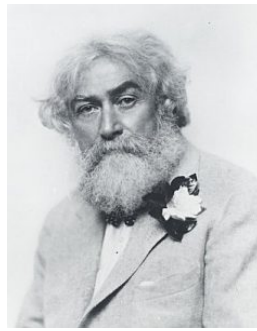
Dr. Marie Equi political activist and defender of sexual autonomy

Another “radical” activist standing up for the reproductive rights of women was Margaret Sanger, who embarked on a seventeen-city lecture tour instructing girls and women on hygiene and sanitation. She began publishing literature in 1911 that spoke frankly about sex, with titles like “What Every Mother Should Know”. She stated to the *Oregonian* that she had seen the misery of poverty and sickness in her visits to primarily working class and poor families as a nurse stating “poverty and large families go hand in hand”, and she made up her mind to “get at the cause of the trouble.” Sanger was not going to fight the uphill battle against mainstream perceptions of moral degeneracy. Instead, she tried to argue that birth control among couples would enhance the “moral health” of American society and the condition of the working class: “I am of the opinion that a greater knowledge of birth control will raise the standard of morality instead of lowering it and I am making an appeal to the Western women voters to help in my campaign to repeal the puritanical laws [Comstock Laws] as they exist. They are a relic of the dark ages.”

During her visit to Portland, Sanger met with another advocate for women's reproductive freedom, Dr. Marie Equi. She was an open lesbian and one of the few women who practiced medicine in the state of Oregon providing access to contraception and abortions, which were illegal at the time, to working class women. She was a widely respected caregiver and affectionately known as "Doc". A wild demonstration ensued the night of June 19, 1916 when Sanger spoke at the Heilig Theatre on Southwest Broadway. Several labor leaders attended the lecture and asked if they could sell copies of Sanger's pamphlet *Family Limitation* that evening. Portland police arrested the men that night for "selling and distributing obscene literature" The arrests were not made until a large number of the pamphlets were distributed, and the activists were prepared for police intervention. A crowd of 30 or 40 persons, most of them women, followed the patrol wagon to the police station where policemen barred them outside. "I was selling the books too!" cried one woman.

Sanger left for Washington State to complete that phase of her tour and asked Equi to revise her pamphlet. Dr. Equi was an expert in the field and a member of the Birth Control League. She added an introduction and closing statement to *Family Limitation*. She brought attention to birth control as an issue for women's emancipation and the betterment of the working class of Oregon. During Sanger's trip to Washington, the Portland City Council held an emergency session and declared the pamphlet *Family Limitation* indecent and obscene. They passed an ordinance making it a crime to distribute the pamphlet.[21] On June 29, local women organized a rally at the Baker Theater in support of the arrested men. Margaret Sanger and Marie Equi, and two other women distributed pamphlets on birth control until they were arrested and put in jail for the night. On July 7, all seven defendants were found guilty, and Judge Arthur Langguth stated the pamphlet was indecent. He did not take offense to the subject of birth control and saw scientific value in the pamphlet, but felt it should only be read or studied in a more controlled setting like a bookstore or a clinic. "[It] becomes obscene when circulated publicly if it is of a nature calculated to excite lascivious thought in youthful minds." He then fined the men ten dollars (the fines were later suspended), with no fines for the women. Sanger upon returning from her speaking tour opened a birth control clinic in Brooklyn, New York. Her organization the American Birth Control League would be renamed Planned Parenthood Federation of American in 1942.

Dr. Equi directed her energies towards imperialism and mass mobilization of war support by protesting against America's entrance into World War I. Since the Spanish-American War, the United States became hyper-militaristic and bore the "White Man's Burden" and annexed Puerto Rico, Guam, the Philippines and led the so-called liberation of Cuba. Under the administration of President Woodrow Wilson, the United States clamped down on civil liberties and the freedom of speech and assembly which was primarily directed against people who were opposed to American foreign policy and the communist threat. Wilson walked a fine line between avoiding entrance into a war with Germany and supporting demonstrations for war preparedness as a cultural and political mandate. The American Preparedness Movement was initiated by President Theodore Roosevelt. Under the Wilson administration, fellow Democrats like William Jennings Bryan was opposed to it, and Wilson remained silent on the issue. Dr. Equi spoke out during Patriotic Preparedness Day events in Portland, calling the war an "imperialist" venture of war profiteering for munitions manufacturing and the financial sector. American cities like Portland, with the support of local businesses, hosted a War Preparedness Day in Portland. On June 3rd, 1916 a War Preparedness Parade was held that night in the streets of downtown Portland to a mass of spectators estimated at 20,000 people. Equi driving her automobile onto the parade route with an American flag mounted on the front of her car and on the side of her vehicle unfurled a banner proclaiming "Prepare to Die, Workingman – JP Morgan & Co. Want Preparedness for Profit – Thou Shall Not Kill." [22] She was physically assaulted by local attorneys in the parade who felt her actions were unpatriotic and treasonous. She and two men were arrested but later released. Charles Erskine Scott Wood defended Equi in court and rationalized the public speeches she made against the preparedness movement. Wood was an advocate for radical leftists and progressive thinkers during his career as an attorney. He defended both Equi and Sanger, and maintained friendships with them. Wood served in the United States military with General Oliver Otis Howard and recorded Chief Joseph's surrender speech in the Wallowa country of Oregon, and became personal friends with the leader of the Nez Perce tribe. Wood was disillusioned by the Nez Perce affair and the government's treatment of Native Americans. He pursued a career in law defending the freedom of speech of reformers and activists during the turbulent phase of the federal government's suppression of civil liberties in the early twentieth century.



Charles Erskine Scott Wood

In court, Wood felt the government wanted to try Dr. Equi for her speeches because Americans were not only emotionally aroused by war, but pointing out her association with the Socialist Party before a jury, would inflame them and make a conviction more likely. For Wood, “that was the Government’s deliberate purpose.”^[23] During his comments, he described the scene of preparedness events as jingoistic displays of imperial bravado:

“Fences, walls, windows, hotel lobbies and banks were decorated with posters inspiring fear and hate. Fear hate and intimidation was the purpose of every headline and news item and editorial in the great press and of every “Liberty” loan campaign. Truth was suppressed and lies deliberately and knowingly published, atrocities that never happened, fears of invasion foolish and groundless. Falsities fostered by Government because bonds must be sold and soldiers conscripted till finally sauerkraut became “liberty cabbage” German pancakes “Victory” pancakes, and American noodles refused to eat German ones. This was the atmosphere: the news rigidly censored, and books on the war were prohibited.”^[24]

When the United States entered World War I in the spring of 1917, Equi was bitterly disappointed with President Wilson, and officials in both parties thought American involvement in a European war was a terrible mistake, especially the Republican wing of Progressive senators Hiram Johnson and George Norris. The United States Congress passed into law the Espionage and Sedition Acts which criminalized American citizens who spoke out against the war. Critics and historians viewed these acts as a form of coercive patriotism. One of the more famous historical figures who was incarcerated for violating this law was the leader of the American Socialist Party, Eugene Debs. He was arrested in Canton, Ohio for speaking out against the war, and Dr. Equi was also indicted under the Espionage and Sedition Acts for making an anti-war speech, and charged with sedition in 1918.^[25] The Sedition Act gave the government power to remove people who posed a security threat to the United States, but it also stamped down the influence of socialism on American soil. Her defense lawyers felt federal investigators demonized her because she was a lesbian and seen as “morally degenerate”. Previous to her incarceration, Dr. Equi had been living with Katherine “Kitty” O’Brennan an Irish nationalist and journalist. Officials had wiretapped her home and office. During her trial the prosecution objectified Equi as the “unsexed woman”, and referred to the doctor as “her kind.” She served part of her one year sentence at San Quentin Prison and was later pardoned by President Woodrow Wilson.

EUGENICS AND STERILIZATION IN OREGON

The movement to “clean up Portland” and improve the moral health of Oregonians would pose as an obstacle to reforms in birth control, and created legislation that barred “sexual deviance.” Concerns over moral degeneracy influenced the passing of laws barring sodomy. Oregon House Bill 145 barred sodomy, and described it as equivalent to bestiality: “Every person who shall commit sodomy, or the crime against nature, either with mankind or any beast, shall, on conviction be punished.” Governor Oswald West advocated for sterilization of homosexual men after the exposé by the Portland Vice Commission. Governor West put homosexuals in a category apart from murderers and thieves who were permitted to work on road crews around the state, but recommended that homosexuals be kept in isolation while in prison. In his mind, politically backing sterilization bills would put the protocol into effect to prevent homosexuality from spreading. For Eugenicists and social reformers focused on homosexual relationships, “emasculatation” was “an effective remedy”, implying that discipline could, and should, be used to change peoples’ sexual identity. In 1913, the State Legislature passed the Oregon Sterilization Act with little debate from legislators. For the first time in the history of Oregon, the people who society represented as homosexual, or of an “undesirable class” were singled out for state-sanctioned sterilization.

Later that year William S. U'Ren and Charles Erskine Scott Wood formed the Anti-Sterilization League along with influential physicians, clergy and societal elites. The League and critics of sterilization felt the Oregon Sterilization Act was “cruel and inhuman”. Wood thought the bill was dangerous and anti-democratic, “I disapprove of the law because it accomplishes nothing, may be an engine of tyranny and oppression and is ROT.” Portland reformer, Lora Little, was the vice-president of the organization. Little was an ardent crusader against orthodox medicine, and brought a populist approach to health care reform. Little thought the medical profession was tyrannical and was an antivaccine agitator. She desired to put the medical profession on trial, and thought a “necessity for open, uncompromising hostility toward the [medical] profession as a whole,” was necessary for health care reform in Oregon.[26] She used the legislative power of the Oregon System, the initiative and referendum measures, and collected signatures for a voter referendum on the sterilization bill of 1909. Little was blunt about her opinion on Eugenics, “Eugenics laws are asked for by persons who think they can set themselves apart from their kind and make themselves dictators over their less fortunate fellows.”[27] In the next few years, more legislation was passed to promote sterilization, and accepted procedures were expanded to include castration. The 1917 bill “To Prevent Procreation of Certain Classes in Oregon” created the Oregon State Board of Eugenics, empowering the Board to conduct hearings about patients at state institutions. This is precisely what the Anti-Sterilization League feared that secret surgeries could be planned by a small handful of officials with no oversight of the process. The Oregon State Board of Eugenics also gathered data to identify ethnic and racial minorities, people from working class backgrounds, and the developmentally disabled.

By 1920, two Oregon sterilization laws were on the books. However, both were declared unconstitutional by the Circuit Court of Marion County in 1921, and the decisions were not appealed. Bethenia Owens-Adair campaigned for new eugenics laws in 1922. Owens-Adair is considered the person most responsible for promoting sterilization. She believed the scientific and systematic sterilization of the “mentally deficient” would improve the (white) race. In a letter to the Oregonian she stated, “The greatest curse of the race comes through our vicious criminal and insane classes.” She proposed legislation requiring mental and physical examinations before marriage. Owens-Adair argued for a Eugenic Marriage Law that would determine the fitness of couples to enter into marriage contracts. If either were deemed “unfit” then one or both would have to be sterilized to receive a license. She proposed vasectomies for men and salpingectomies (removal of the fallopian tubes) for women. On the other hand, for rapists, “sodomists” and other “perverts”, she advocated for castration. In 1923, the Oregon legislature passed a new sterilization law that was later amended but remained law until revisions were made in 1967.

Governor Walter Pierce signed the nation’s second sterilization bill allowing sterilization of the “feeble-minded” and criminally insane residing in state institutions. He was a long-time advocate for eugenics. As a state senator, he supported the sterilization of the “unfit” when legislation went into effect in 1917 and 1919. Pierce saw sterilization as a necessary means to birth control since the children of working class families were ignored by Americans and that put unnecessary strains on welfare and social services. In defense of birth control, he stated the law:

“deals with human lives and if the country as a whole had as much regard for the welfare of mothers and children as they do for the proper rearing of hogs, there would not be six million children in the United States on public relief and the mother deprived of the legal right of securing proper medical information regarding the deferring of bringing children into the world during her period of ill health or economic stress.”[28]

Among the residents of Oregon who had been sterilized were abandoned children living in state institutions, people with epilepsy, and “wayward” teenage girls. Meeting minutes of the State Board of Eugenics reflect the casual discussion of, and justifications for, the sterilization of inmates and residents of state institutions. The 1923 sterilization law gave the State Board of Eugenics draconian powers, with part 8450 of the law stating,

“It shall be the duty of the State Board of Eugenics to examine into the innate traits, the mental and physical conditions, the personal records, and the family traits and histories of all persons so reported so far as the same can be ascertained...then it shall be the duty of said board to make an order directing the state health officer to perform or cause to be performed upon such person a type of sterilization as may deemed best by such board.”

The prejudices promoted by the Eugenics movement also influenced Dr. R.E. Lee Steiner, superintendent of the Oregon State Hospital and a council member of the State Board of Eugenics, who emphasized the need for sterilization as a public health concern, “No one now doubts the possibility of inheriting tendencies to mental and moral weakness and to physical frailty.” In the U.S. Supreme Court case of *Buck v. Bell* in 1927, the court ruled that sterilizations were constitutional. Justice Holmes, as part of his closing arguments, stated that “Three generations of imbeciles is enough.”

The Oregon Youth Authority discovered that at least 100 teenage girls were forcibly sterilized while they lived at the state training school for delinquent girls before 1941. The girls sterilized ranged from delinquents to runaways to those who had simply misbehaved or were considered “wayward”. Until reforms in 1967, sterilization was often used as a condition of release from state institutions or to punish people who acted out. In the early 1900s intelligence as perceived by social class, education, income and race became the primary focus of the Eugenists. For fifty years five men ruled as the Board of Eugenics in Oregon. Their prejudices, personal opinions, political affiliations, economic status, and gender governed the lives of thousands of powerless Oregonians.

Eugenics was embraced by many in the mainstream public, and became a spectacle where superior genetics were judged and showcased at county fairs and other arenas. Better Baby Shows were celebrated across Oregon and the winners’ photos were displayed in newspapers giving an appearance similar to livestock shows. A Eugenics contest was held at the Multnomah Hotel in 1913 and featured first through third prize winners in three categories. County fairs were especially popular for baby contests right next to the stock and vegetable contests. A Eugenics baby contest was held at the Yamhill County School Fair in McMinnville in 1913. The Oregon State Fair sponsored a Eugenics contest as well. Winners of the Oregon State Fair Eugenics contest went on to the International Eugenics Contest held in San Francisco. John D. Rockefeller, Theodore Roosevelt, and Andrew Carnegie were the major financiers of the American Eugenics Society, which was officially established in 1926. The organization proposed to sterilize 92,400 individuals in the United States within the next year. Scientists rose up to oppose the movement and bring common sense to the subject, but the practice continued with government support into the 1970s.

Sterilizations and the Developmentally Disabled

Sterilizations were performed at the Oregon State Hospital, Eastern Oregon State Hospital in Pendleton, and the Institution for the Feeble Minded in Salem. The Oregon State Institution for the Feeble-Minded was opened in 1907, later to be renamed Fairview Hospital and Training Center in 1965. A pamphlet distributed by the Institution for the Feeble Minded stated that, “feeble-minded children living with a family of normal children is both a detriment to the sisters and brothers and a handicap to himself. Living in the company of his own kind he is far more contented for the reason that he is quite unable to compete with those mentally superior, and various problems are presented as a result.” For the Institution and the prevailing thought on the health of the race, “the segregation of the feeble-minded” was necessary and important for the health of Oregonians.[29] The Anti-Sterilization League was strongly opposed to segregation of developmentally disabled people. Compulsory sterilization became a part of the protocol for patients in state institutions. According to the Institution for the Feeble-Minded, those with “feeblemindedness” could procreate and according to Board of Eugenics findings, this would “produce a child or children having an inherited tendency of feeble mindedness and who would probably become a social menace or ward of the state.”[30]

Section 1 of chapter 354 of the General Laws of Oregon, 1917, was amended in 1920 to read: Those who are “by reason of feeble-mindedness, is criminally inclined, or is unsafe to be at large, or may procreate children, cause such person to be brought before him at such time and place as he may direct” to the county judge for placement. Two physicians and the county judge would thereby appoint the applicant to the Institution for the Feeble-Minded for “indeterminate detention.” In the case of sterilization, the Board of Eugenics was a board comprising the State Board of Health, the superintendents of Eastern Oregon State Hospital, Oregon State Hospital, State Institution for the Feeble-Minded and the Oregon State Penitentiary. Essentially, the State Board of Eugenics was a synthesis of the Oregon criminal justice system and the state’s mental health services. All cases appeared in person in front of the State Board of Eugenics and, before any operation was performed, written consent was obtained from a parent or a custodial guardian. The State Board indicated the urgency of sterilization of developmentally disabled people as a necessary public health and safety concern: “Sterilization of a feeble-minded person is for the protection of society from the acts of such person, or from the menace of procreation by such person and not in any manner as a punitive measure.” Many people who underwent the medical procedure certainly felt it was punitive as revealed later in newspaper articles.

By 1929, more than 300 residents in the Oregon State Institution for the Feeble Minded had been sterilized, for the “protection of society” according to a manual. Medical logs registered pages of sterilization procedures among tonsillectomies and dental surgeries. “Those recommended for sterilization are nearly always patients at the state mental hospital or Fairview (Oregon State Institution),” the state Board of Health Director told the *Oregon Journal* in 1960. Oregon did not officially abolish its State Board of Eugenics, later called the State Board of Social Protection, until October of 1983. State legislator John Kitzhaber pushed for the termination of the sterilization program. In response to the termination of the program between 1987 and 1988 a nonprofit contractor in Portland shredded hundreds of documents of the Board of Eugenics work at the request of the state, according to

employees at the Portland Habilitation Center. The shredding of the last twenty years of Board of Eugenics records was in violation of a state law. Mary Beth Herkert of the Oregon State Archives stated, “Nobody here would have ever scheduled those things for destruction.” From 1960 until 1983, the destruction of historical documents, an unfortunate trend in world history, was suspicious considering the legal implications and victims seeking judicial retribution. In December 2002, Governor John Kitzhaber apologized on behalf of the state for the forcible sterilization of over 2,600 Oregon residents between 1917 and 1981. Oregon was one of thirty-three states that passed sterilization laws in the United States, although scholars have noted it was one of the few states where the policies were met with public opposition.

The Progressive period in the history of Oregon was an era of social and political reform, an opening for direct democracy among its citizens, and a time of protest for autonomy and human agency. In the spirit of reform, a positive attribute of Progressive ideas promoted the self-determination of peoples, but at times their ideas were limited by ignorance. Part of the essence of the Progressive movement was to push humanity towards enduring change and elements of perfection in the age of modernity. Like the myth of Icarus, in the strive for perfection, people forget their own flaws and limitations. Nevertheless, the Progressive era should be recognized for bringing positive changes to many Oregonians. While the Progressive agenda had completed some of its goals, tensions arose over the presence of immigrants partly stoked by political demagogues and propagandists.

The next period in Oregon history will look into the World War II era as a period of growth and change, and a fight against nativist hysteria that sought to cordon off the politically and socially marginalized. The spirit of reform endured and brought attention to discrimination practices in the labor markets and residential sectors of Oregon. The state experienced rapid industrial growth and urbanization with the onset of World War II. The mass mobilization of the war effort brought tens of thousands to Oregon, and limited job opportunities opened up for African-Americans and other minorities in war industries. Oregon gradually embraced its diversity through struggle, protest and awareness.

[1] Union Pacific Railway Company, *Wealth and Resources of Oregon and Washington, the Pacific Northwest, A Complete Guide Over the Local Lines of the Union Pacific Railway*, (CN Miller, 1889) p. v

[2] *Ibid.*, p. 46.

[3] Steven Lowenstein, *The Jews of Oregon*, (Jewish Historical Society of Oregon: Portland, 1987), p. 89

[4] Peterson del Mar, p. 120. There has been a resurgence of global populism especially among the far-right in many nations and has entailed a grievance culture against liberal elites. Many of today’s populists are prone to unfounded conspiracy theories and have cultivated a subculture in social media circles such as QAnon and 8chan.

[5] Voeltz, Herman, “Coxey’s Army in Oregon, 1894,” *OHQ*, Vol. 65, No. 3 (Sep., 1964), pp. 263-295

[6] From this point, a political precedent was established in the mentality of some Oregonians that the migration of peoples from California was a potential threat, danger, and unwanted presence in the state. Simmering populist-minded animosity had resurfaced during the tenure of Governor Tom McCall who stressed Oregon did not need more people living in the state (but they could visit as often as they wish). Californians are scorned even today. They are seen as the cause of gentrification and the escalation of real estate prices. Automobiles have been vandalized by anti-California fanatics on the streets of Portland. *The Oregonian*, July 12, 2017.

[7] Lansing, Jewell: *Multnomah: The Tumultuous Story of Oregon’s Most Populous County*, (Oregon State University Press, Corvallis, 2012) p. 33

[8] *The Oregonian*, April 12, 1894, p. 4.

[9] *The Oregonian*, Oct. 6th, 1946. Others like Richard Neuberger likened the reforms instituted by U’Ren and the Oregon System as equal in significance and importance as the Oregon Trail.

[10] William S. U’Ren: *Oregon Voter*, January 15th, 1916.

[11] *Ibid.*

[12] Scott Reed: *William S. U’Ren and the Oregon System*, Bachelor of Arts Degree, Princeton University, 1950.

[13] The Progressive period in American history is remembered for its efforts with labor reforms and journalist exposés by Lewis Hine and Upton Sinclair who were known as muckrakers because they brought out issues like child labor and corporate corruption

in American society. Muckrakers helped bring legislative change to American politics like the Food and Drug Act. After people read Sinclair's *The Jungle*, Americans were horrified by the lack of hygienic and health safety in the meat packing industry.

[14] Oswald West Papers: "Woman Suffrage in Early Oregon," Box 1 MSS 589.

[15] During the presidential election of 1916, there were many Americans who considered repealing the Nineteenth Amendment, women's ability to exercise their right to vote, as potentially great idea.

[16] Jensen, Kimberly. "'Neither Head nor Tail to the Campaign': Esther Pohl Lovejoy and the Oregon Woman Suffrage Victory of 1912." *Oregon Historical Quarterly* 108:3 (Fall 2007), 350-383.

[17] Boag, Peter: *Same Sex Affairs: Constructing and Controlling Homosexuality in the Pacific Northwest* (University of California Press: 2003) p. 158.

[18] Boag, Peter: *Redressing America's Frontier Past*, (University of California Press: Berkeley, 2011)

[19] Near the end of the twentieth century, Americans started to learn that hospitals and institutions were no longer a safe haven or equitable housing option for people with developmental disabilities. Exposures rippled through the newspapers that conditions were squalid with abusive caretakers who violated the residents. Fairview Training Center experienced uprisings from the residents, but the press maintain relative silence about them during the 1960s.

[20] Thomas Robert Malthus wrote an essay in the eighteenth century on the principles of population. His theory states that higher population numbers will exhaust natural resources, and curbs in human reproduction are necessary for the survival of societies. Malthusian theory was a foundational tent of the ideas of the Social Darwinists. They sterilization as the "amelioration of the human race," and later it was adopted as a solution to the perceived economic dependency of the welfare state.

[21] Helquist, Michael: "Lewd, Obscene and Indecent": The 1916 Portland Edition of Family Limitation," *Oregon Historical Quarterly*, Vol. 117, No. 2, Regulating Birth (Summer 2016), pp. 274-287

[22] There is historical truth to her argument implicating John Pierpont Morgan the banking magnate as gaining profit from the war. Morgan had significant portions of investment tied to British markets, and he was a critical force in pressuring the American government to participate and engage in World War I. Not everyone was excited about this war since America had rested on a tradition of isolationism, and waves of European immigration made national ideological conformity of the war effort more difficult for lawmakers. Senators of the Midwest like George Norris and Hiram Johnson demanded taxes be placed on war munitions industries since it was they who were making excessive profits in his mind. *The Oregonian*, June 3rd, 1916.

[23] Julia Ruuttila Papers, MSS 250 Box 2, Oregon Labor Press, 1918.

[24] Ibid.

[25] As a result of the Espionage and Sedition Acts and the ensuing Criminal Syndicalism Acts, police in Portland organized a "Red Squad" to conduct surveillance and harassment of radicals. This police group stayed through the 1970s.

[26] Robert D. Johnston, *The Radical Middle Class : Populist Democracy and the Question of Capitalism in Progressive Era Portland, Oregon* (Princeton University Press, 2006) p. 199-203.

[27] Dinane Goeres-Gardner: *Inside Oregon State Hospital, A History of Tragedy and Triumph* (History Press: Charleston, South Carolina, 2013) p. 133.

[28] Schwartz, Gerald: "Walter M. Pierce and the Birth Control Movement," *Oregon Historical Quarterly*, Winter, 1987.

[29] General Information State Institution for the Feeble Minded, pamphlet, 1929. OHS Archives.

[30] Ibid.

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1.7: The Dawn of the Civil Rights Movement and the World Wars in Oregon

World War I: Americanization and Immigration

During World War I, Oregon had the highest enlistment rate in the country. Oregon also led the nation in per capita sales of war bonds. The state's war effort produced remarkable economic development in shipbuilding, timber and agriculture. The Northwest experienced job growth and development in the industrial sector, and in extractive industries such as the timber industry. This growth was in part due to the mass mobilization of wartime production in areas such as airplane manufacture.

Since the United States allied with the Entente Powers during World War I, there was a great need for lumber exports to fulfill the insatiable need for airplanes in Britain, France, and Italy. The United States Congress created a Spruce Production Division of the U.S. Army, as part of the Aircraft Production Board under the Council of National Defense to meet the high demand for spruce, an ideal wood for building aircraft. The U.S. Army sent thousands of soldiers into the forest to cut timber, and a large number of civilian employees as well. Eventually there would be over 30,000 loggers, of which about 3,000 worked in Lincoln County on the Oregon Coast.

Government authorities and private interests whipped up war enthusiasm in the United States and racial hostility toward people of German descent. The ultrapatriotic feelings of the era were a by-product of jingoist saber-rattling of the media and government officials and assimilationist Americanization programs. The main crux of the argument among supporters of Americanization was for the necessary amalgamation of newly arrived immigrants into society according to specific cultural values. War production during World War I was partly incentivized by fanning the flames of racial hatred, "It is estimated there are around 3,000 soldiers in this county at the present time engaged in railroad building, logging and saw milling, but primarily all are working to increase the spruce production...When the Hun is licked, the work that is being done there now as a war measure will aid in the development and growth of our country."^[1] Americans slapped on the racial stereotype of the "Hun" to signify the German people as barbaric rapine baby killers who were a moral threat to American society.



Anti-German propaganda

Another factor that led to Anti-German hysteria was a brewing nativist response to European immigration into the United States, and the ensuing Americanization movement. Pressure came from various states and the federal government to suppress "Germanism" which was perceived as a threat to American security. German identity was mistakenly associated with Communist Bolshevism and unbridled imperialism. City officials, responding to public demands, changed Germanic-sounding street names; and German Lutherans, Mennonites, and other German religious sects faced threats of injury and damage to their churches and property. The State Council of Defense for Oregon took no formal action against newspapers or speaking or teaching in German, but it did issue restrictions related to church services: "That the sermon shall be preached in English; all songs shall be sung in English; all Sunday school classes [sic] shall be conducted in English except a Bible class for old people who can not speak or understand English, may be conducted in the German language."^[2]

The American Protective League was a hyper-patriotic organization and a collection of 25,000 hacks or amateur spies that received tacit approval from the federal government and helped the Justice Department identify leftist radicals and ferret out German sympathizers. It was started by Chicago advertising executive A.M. Briggs. The League had a network of branches in 600 cities, conducted slack raids, opened mail, wire tapped phone conversations, and conducted raids on bookstores and newspapers. Government and media sponsored fear mongering and suppression had a harmful impact on German communities. In the census of 1920, there was a drop of about 25 percent of respondents who claimed they were of German descent. Concerns over American

patriotism and a national desire to create unified support for the war effort, altered the social and cultural landscape and built increasing hostility and paranoia toward European and Asian immigrant populations and their cultures. Henry Ford and wealthy industrialists along with non-profits like the YMCA funded Americanization programs and created academic programs at American universities and colleges. Henry Ford, The Dupont and Harriman families all promoted what they called “the civilian side of national defense”. The University of Oregon started an Americanization department aimed at “perfecting plans for the Americanization and education of all immigrants in the State.” The intention of Americanization programs was for the United States to win the war overseas and creating a conformist patriotic home front in support of the war especially among newly arrived immigrants. An unfortunate by-product of Americanization vigor was a rise in nativist sympathies and distrust towards immigrant populations.

Early Tensions with Japanese Americans

The first generation of Japanese immigrants came to Oregon in the mid-1880s, following the Chinese Exclusion Act, to fill the resulting labor void from the absence of Chinese people. Many of the Japanese immigrants were single men who thought of themselves as sojourners who were in the U.S. to make their fortune and then return home. They would prove to be a perfect fit for the lumber industry. After the end of World War I, timber markets continued to thrive, and there was an increasing need for lumbermen.

The Pacific Spruce Corporation of Toledo, Oregon, hired twenty-five Japanese laborers at their lumber mill in 1925 for less than what it cost to hire white workers. Rosemary Schenck, the wife of Toledo City Marshal George Schenck, protested to a representative of the company, Dean Johnson, about the introduction of Japanese laborers into the town of Toledo. Johnson believed the Japanese workers were competently skilled for this work. Rosemary Schenck told an assembled crowd in Toledo that the Japanese were not wanted there and their presence would cause property values to go down. Frank Stevens, general manager at Pacific Spruce, explained that the Japanese laborers were not being brought in to replace current employees, but simply to meet a labor shortage. He insisted it was only a small crew of Japanese people and they would live in a segregated section of the town on mill property, which would be called the Tokyo Slough. “Not a single white man will lose his job. The Japs are not being brought in to take any one’s place, but simply to meet an emergency.”^[3] The Tokyo Slough complex was built to house about sixty people. Employees living in the complex rarely came into contact with the local population, and they worked the graveyard shift. The complex was located next to the railroad track, and a communal outhouse was provided with multiple holes that dropped directly into the slough.

The Toledo Chamber of Commerce held a meeting to create a more restrictive declaration barring Japanese, Chinese, black, Hindu, and other “oriental” labor at the Pacific Spruce mill, but eventually the Businessman’s League no longer opposed the integration of Japanese labor since Toledo heavily relied on lumber exports. The chief of police and his wife, and a few business owners remained in opposition to Asian workers at the mill. They formed a nativist organization called, “The Lincoln County Protective League.” Their purpose was to “use all honorable means to protect our communities from the employment of Japanese and Chinese labor.” They delivered copies of a petition for the removal of the Japanese of Toledo to Governor Walter Pierce and the Japanese Council in Portland.

Things started to turn for the worse for the Japanese community in Toledo when a Japanese woman was told by the Chief of Police Schenck to leave town the next day or they would be thrown out or killed if they did not leave. Schenck denied this and stated “I warned the fellows to stay off the street for their own safety.” More speeches were organized by the Lincoln County Protective League and demonstrators were urged to action, “I appeal to every man who respects his flag to join the line.” The people of Toledo moved in for the attack on the Tokyo Slough housing development and chanted, “Down with the Japs,” “Out with the Japs,” and “Hang the Japs.”

Tamakichi Ogura later recalled in court in 1926, “They were pulling my shoulder and everywhere was a great noise, and I was falling down.” Ogura was horrified and stated to the deputy, “If we knew how unwelcome we would be...[and] if we had enough money, we would get out.” In all, twenty-two Japanese laborers, four Filipino employees, one Korean worker, two Japanese women, and three Japanese-American children were loaded into cars and trucks and taken to Corvallis. Following the riot, the Yaquina Bay News wrote, “Mob law resorted to and the Stars and Stripes desecrated is resented and deeply deplored by all law-abiding citizens.” The Oregon Voter also castigated the chief of police of Toledo for failing to perform his duties, which was “morally and legally indefensible.” The Great Northern Daily News, in an article on the “Japanese Expulsion Incident,” exposed

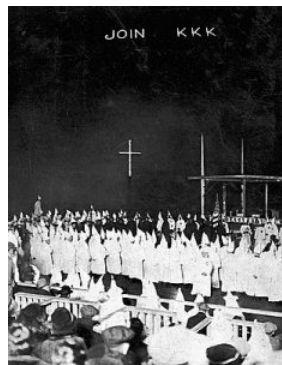
what seemed to many a lack of due process of law. “We Japanese residents in the Pacific Rim and other regions have already been denied by law from working in agriculture [due to Alien Land Laws]. Now we are being denied the right to work in factories by intimidation. How will we make a living in the future if they limit how we live?”[4]

The Issei, or first-generation Japanese immigrants, hired by Pacific Spruce sued for damages, and the five lawsuits would establish a precedent for resident alien rights in the United States. The trial wasn’t held in Toledo since jury members were threatened with their lives if they indicted the accused, and the case was transferred to Portland. The jury awarded the plaintiffs \$2,500 in damages, and the case established, for the first time in a federal civil suit, that foreign-born people living in the United States who were not citizens had civil rights that could not be violated by the will of local populations without consequences. In the end, the defendants were also required to pay the court costs.

Historian Eckard Toy indicated the trend among Pacific Coast states once regarded as progressive eventually “become less famous for reform than for repression...against religious, racial and political minorities.”[5] A general consensus grew in the region in deep opposition to “aliens” who could not be assimilated. White racists, some of whom were reformers and academics, on the West Coast played on fears of a “Japanese menace” that worsened and grew more apparent after the world war, and their hatred became institutionalized in the formation of the Ku Klux Klan in Oregon.

Americanization, “Aliens”, and the Ku Klux Klan in Oregon

Professor F. J. Young at the University of Oregon was appointed the chair of the Americanization department in 1918, which was aimed at perfecting plans for the assimilation and education of all immigrants in Oregon. Americanization was a form of coercive patriotism that took root in the intelligentsia of Oregon and trickled into nativist ideology held by the Ku Klux Klan and spread among the popular masses. Frederick Dunn, the chair of the Latin Department at the University of Oregon, became the leader, or “Exalted Cyclops” of the large Eugene “klavern”. Eventually the Klan’s presence at the university would diminish as they were met with student inertia and faculty resistance, but many in the city embraced the racist tenets of the hate group.[6] The Klan had a prominent position in Eugene based on a historical past linked to Klan principles and ideology. During the Civil War era in Eugene, many sympathized with the Confederate cause, resisted against Reconstruction and the 14th and 15th Amendments, and the *Eugene Herald* and the *Democratic Review* were pro-South newspapers that opposed racial integration.



Ku Klux Klan Meeting in Lane County, Oregon

After World War I, there were mounting fears over the Red Scare and the perceived deterioration of moral standards during the early part of the modern age, with its purported excess in sexual profligacy and alcohol consumption. General economic troubles and runaway inflation created a ripe situation for the KKK to arrive on the political scene nationally, and in Oregon, with the mission of fixing the problems brought on by the modern age. The Klan zealously pursued a “morality crusade” in an effort to reverse the political and social gains of the Progressive era and to defend law and order, including the enforcement of the Eighteenth Amendment (the prohibition of alcohol) with vigilante and coercive tactics.

The political atmosphere of Oregon during the post-war period was replete with patriotic and nativist sympathies, and receptive to Klan ideology. The Oregon Congress wanted to combat what they called “German and Bolshevik propaganda” and unanimously passed a bill restricting “aliens” from owning land and mandated English translations to be attached to any printed materials written in foreign languages.[7] Land ownership among Japanese people was a crusading point of contention for the Klan of Oregon. Governor Ben Olcott conducted an investigation of Oregonians’ opinion of Japanese land ownership, and it revealed “strong antipathy against the Japanese among small farmers, mechanics, laborers, and salaried classes in general. A large part of this

antipathy is racial and does not depend on economic facts.”[8] The Oregon legislature was ripe for the political takeover led by nativism. Both political parties were influenced and shaped by the Klan whose power reached into the Oregon legislature and governorship.



Governor Walter Pierce

Governor Walter Pierce harbored nativist sympathies and received support from the Ku Klux Klan. The extremist group achieved its peak popularity during the 1920s in the state. Many cities around Oregon developed Klaverns focused on Americanization, openly opposing Catholics and nonwhites, and spreading anti-Semitic hate speech. After the Oregon Congress passed Alien Land Law legislation in 1920, Governor Pierce signed the Oregon Alien Land Law in 1923, disallowing Chinese and Japanese nationals from buying and leasing land in Oregon, and banned them from operating farm machinery. The legislation was passed with the backing of the American Legion and the Oregon Grange, the farmer-populist social reform group that feared the possibility of Asian immigrants gaining a foothold in the agricultural sector. Chinatown and other Asian quarters in towns in Oregon were affected by anti-alien measures. Established Chinese and Japanese businesses were confronted with heavy regulatory and financial burdens due to the Alien Land Laws. Special monthly leases were written for Asian business owners that prevented alterations from being made by any merchant, building owner, or tenant. Anti-alien laws were contested by the Portland Chamber of Commerce, which contended there had not been an increase in that “type of population” in the state in recent years and that Asian people “constituted no menace.” The Portland Chamber felt there was no need to enact legislation that was an affront to the city’s Asian residents that “might prove detrimental to the interests of the port [and commerce].” In order to obtain a business license, Issei had to first appear before an examining board, which was the city council typically, in order to determine whether they were qualified to receive one. Issei were the only aliens who were required to go through this procedure. Alien land laws were passed in other western states like California, during the dizzying spell of anti-immigration animosity in the United States. After World War II, the United States Supreme Court barred alien land laws that prohibited Asian people from owning property as unconstitutional in 1952.

Klan organizers, sent from Atlanta, Georgia, did especially well in Oregon where they amassed a membership of 15,000. Maj. Luther I. Powell crossed the California border to start the Oregon Klan. In Southern Oregon, the town of Medford was the first to establish a klavern, or Klan chapter. “Kleagles” (Klan recruiters) from Texas and Louisiana fanned across the state, along the coast and into the Willamette Valley spreading their “moral crusade” of nativism and racial hysteria. Portland was the center of Klan activity west of the Rocky Mountains. Fred T. Gifford pushed Powell out of the state and became Grand Dragon of the Oregon Klan. The second formation of the Klan (the first started after the Civil War and was put to rest after the Congress’ Enforcement Acts) confined membership to white native-born Protestant males. Historian Stanley Coben described the Klan of the 1920s as “guardians of Victorianism.” The appellation addressed the other aspect of their moral crusade, the enforcement of Prohibition laws and policing of prostitution and sexual mores.

Klansmen, like Gifford, supported what they called “100 percent Americans” and opposed “hyphenated Americans”, especially people from Southern and Eastern Europe. Gifford insisted that their Americanization was the only solution, [these] “mongrel hordes must be Americanized, failing that, deportation is the only remedy.” The Klan’s racism was born among a paranoia among small-town Protestants against Bolsheviks (including any radicals like labor organizers), Irish-Catholics, Eastern Europeans, Jewish people and southern Europeans who arrived into America around the turn of the century.[9]

Lem Devers, the editor of the Portland-based Klan newspaper the *Western American*, echoed the sentiments of state politicians and felt materials printed in foreign languages was antithetical to “100% Americanism,”

“Americanize the aliens, winning their high regard for true patriotism, by precept and example. Somehow must be assimilated the several groups which now wrangle their foreign jargon in preference to English, and who mistakenly keep aloof from American

affairs...thousands remain who regard America as merely a land of refuge and place for money making. The best way to Americanize all foreigners is to develop leadership among their own people thus to make all understand our institutions of liberty and their individual rights under the Starry Flag-especially teaching them that foreign rights end where American rights begin that the native born, bona fide, unhyphenated Americans are determined never to abdicate rule to their adopted brothers.”[10]

The Klan’s 100% Americanism was based on Protestant ideals, and drew converts from ministers of the Protestant faith. An Astorian clergyman praised the organization, “I can merely say that I have a deep feeling in my heart for the Klansmen... and that I am proud that men of the type these have proven themselves to be are in an organized effort to perpetuate true Americanism.” Rev. Reuben Sawyer of Portland spoke before a crowd at the Portland Auditorium November 18th, 1922, “I pledge my time, my influence, my vote and every honorable means at my disposal in forwarding the great work of keeping America a white man’s country founded by our Pilgrim fathers who were noble representatives of that imperial white race entrusted by Almighty God with the solemn mission of bringing forth a nation that should be the means of blessing all the families of the earth.”[11] Protestant clergy looked to the Klan as protectors of tradition and valiant men of action and gallantry. Some ministers of faith helped spread their gospel of white supremacy while many other religious leaders outside their tribal circle rejected it.

The Klan found fertile ground in Oregon whose population in 1920 was 85 percent white, native-born, and 90 percent Protestant. During its growth into statehood, Oregon drew migrants from a monochromatic ethnic base that saw themselves as the chosen people in a promised land. The Klan reinforced white nationalism, and Protestant resistance to the Catholic church and parochial schools. Gifford seized upon the political demographics and recruited Klansmen from across the state. Klaverns surfaced everywhere in towns like Astoria, Sherwood, McMinnville, Gladstone, Lebanon, Dallas, Albany, Eugene, La Grande, Jacksonville and Salem. There were also klan representatives in Roseburg and Marshfield (today’s Coos Bay). Klaverns also appeared in The Dalles, Condon, Pendleton, and Baker.

The Klan was connected to law enforcement in Portland and other cities. They directed their moral crusade towards Prohibition and the removal of bootleggers who were associated with immigrants. The Portland Police gained Klan recruits within its membership, and they harbored nativist sentiment toward immigrant populations. In 1923, Police Chief Lee V. Jenkins claimed that crime related to prohibition came from the “inability of America to assimilate and Americanize the huge horde of immigrants that have come into the country.”[12] *The Oregonian* wrote alarmingly that “men from all walks of life” were among the two thousand inducted into the Portland Klan including lawyers, doctors, businessmen and Protestant clergy. The Portland branch of the NAACP took notice of the rise of the Portland Klan in 1921 and wrote to Governor Ben Olcott about their concerns. The telegram protested against Klan parades in Portland. “We humbly pray your honor to prevent in our State any organization to public demonstration of the said notorious (KKK) under any pretext whatsoever.”



Fred Gifford: Grand Cyclops of Oregon Ku Klux Klan

Fred Gifford and the Portland Klan planned a political takeover and wanted to override the Oregon System. Gifford tried to create a Good Government League and held a convention. He urged Klansmen throughout the state to propose slates of officers for mayor, constable, city and port and county commissioners, as well as candidates for senate and the house. The Klan’s efforts to eradicate the Progressive’s Oregon System and replace it with a racist hooded Americanism based on elite authority, misfired and came up flat in Portland.[13]

The city of Astoria felt the impact of the Klan in the 1920’s as well. Astoria’s immigrant population was Oregon’s highest, with 60 percent of the population of some 14,000 having at least one parent who was foreign born. The Klan’s promise to corral “alien” forces struck a chord in the city. Before the Klan faded by 1928, more than two thousand citizens of Astoria had joined. The KKK

gained support through their beneficent support of community causes, often through Protestant churches. They capitalized on secrecy and hierarchy, and used tools such as boycotts and propaganda to apply pressure on those who would not yield to their demands. They made charitable contributions with grand entrances and flourishes. They successfully replaced the county sheriff, and through charity donations, won the support of hundreds of church-going, middle and upper class, white, Protestant Astorians.

The *Western American* newspaper updated its readers on the crusade to enforce the 18th Amendment's prohibition of alcohol. It voiced its enthusiasm for Klan leaders like the Sheriff of Astoria, Harley J. Slusher. The *Western American* captured the attention of readers with sensationalized accounts of Klan members in positions of power like Slusher, "Already with less than four month's experience in office, the Sheriff has cleaned out a number of dens in Astoria and brought some stills that never had been bothered." Slusher wanted to fulfill the campaign promises he made to his supporters when he declared, "I made the people some pledges before the election, and I am going to carry them out. Law and Order have come to Clatsop County to stay."^[14] Sheriff Slusher cracked down on rooming house proprietors by curbing prostitution in Astoria. "Local booze vendors" were shut down in Gearhart where 100 gallons of grain mash, moonshine and beer were found in a Finnish bath house.

Merle Chessman, the editor of the *Astoria Evening Budget*, denounced the Klan's political agenda and its iron hand approach to Americanization. After the Klan purged Catholics from the Chamber of Commerce and the local school board, Chessman wrote, "Carry On Knights of the Ku Klux Klan! Carry on until you have made it impossible for citizens of foreign birth, of Jewish blood or of Catholic faith to serve their community or their country in any capacity, save as taxpayers."^[15] His words infuriated the Klan and its supporters. They wanted Chessman fired and even tried to purchase the *Astoria Evening Budget*. The Klan stated Chessman and his newspaper were not "on the list of our friends" for its almost daily malicious "falshoods" about their organization. The Klan won the election of key positions in Astoria's governmental bureaucracy under the spell of communist hysteria and anti-immigration nativism. The Klan's impact in Astoria was short-lived, and after a few years the Klan lost its political power as it had throughout the state. With the presence of a large diverse immigrant community in the local labor force in canneries and the timber industry, Astoria's citizens could not afford to alienate their foreign population who brought revenue to the region with their hard work.

According to the historian Jeff LaLande, the Klan had significant presence in Jackson County in Southern Oregon. Medford was the first Oregon outpost of the Ku Klux Klan, and they began an aggressive membership drive in Jackson County. It was ethnically and religiously homogenous and the Klan found populist appeal where a prohibitionist battle with bootleggers unfolded. The town of Medford had transformed into a railroad town connected to national markets; it was the metropolis of southern Oregon. Membership in the Klan rose quietly to include wealthy urban residents, professionals and businessmen. What bound them together was nativism, moral concerns and economic bitterness. The *Medford Clarion* was the mouthpiece of the Klan which harbored Anti-Semitic writings from Henry Ford's *Dearborn Independent*, and pieces espousing anti-Catholicism particularly targeting the Catholic Church as holding absolutist authority in American politics. Medford mayor Charles E. "Pop" Gates, who owned the largest Ford dealership in southern Oregon, accepted honorary membership in the Klan. After his induction ceremony, he felt like a changed man and thought the Klan may be beneficial to the people, "the oath was one that no Christian man could take exception to...If a man is not a better citizen after...he is not a fit subject for any order or community."^[16]

Union County in northeast Oregon was another epicenter of Klan law and order. The city of La Grande was second to Portland in population size and economic importance. It was the commercial hub and highway construction headquarters of eastern Oregon. It historically has served as a distribution and processing center for livestock and agricultural commodities. The presence of the Oregon-Washington Railroad and Navigation Company stimulated rapid urbanization and an influx of Chinese and African American people to La Grande. Citizens and newspapers grew concerned over vice and crime in the city, and saw opium and alcohol use as social problems brought on by immigrants into the community. "When a Chinaman steps out and induces Americans to smoke opium or use dope, way goes patience of real Americans who have permitted these descendants of Old Confucius to live under the stars and stripes."^[17] Drunkenness at town dances "has to be stopped" Municipal Court Judge R.J. Kitchen declared in 1923. Klan membership surged in La Grande, but never reached the required amount of one thousand initiates in order to receive permanent charter status.

The significance of the La Grande Klan was its connection to the election of Democrat Walter M. Pierce to the governorship of Oregon. Pierce appeared before the La Grande Provisional Klan and gave his thanks for the support of all "100% Americans" in the recent election. Granted, both parties were influenced by the Ku Klux Klan with the Republican Party fielding its Klan candidates. Pierce held undeniable appeal as a populist in favor of tax reduction and a campaign built on the message, "throw the bums out."

The secretary of the La Grande klavern noted how the Klan intended to work closely with the newly elected governor coordinating the work of a previously held ambition of Oregon Grand Dragon Fred Gifford's Good Government League. Together the Klan and Pierce were posed to select government officials built upon Klan principles and Americanism:

"Governor Pierce told Mr. Gifford that all appointments he made would be given to men who are wright (sic) owing to the fact... [and] he shall take his list of appointments to Gifford's office and together they will go over the list and weed out the culls. Gov. Pierce and the Klan are on trial and by our Loyalty to him and are (sic) efforts to keep out all Bolshevism we will succeed... Governor Pierce's success means our success...get behind this administration and lets give the people of the state of Oregon something in the line of true Americanism that they have never had presented before."^[18]

The Klan secretary of La Grande reflected on their continuous support of the upcoming governor, "Let us bid *Klansman Pierce* [emphasis added] God's speed in his new undertakings, as we have done in the past."^[19] Governor Pierce relationship with the Klan was reciprocal, and he was seen as one of their own.

Governor Pierce, with strong support from the Klan, backed the anti-Catholic Oregon Compulsory Education Act, which banned private and parochial school education in Oregon. The bill was intended as a means of eradicating the influence of the Catholic Church in American society. The Oregon Klan's position on the Catholic Church was shrouded in terms of a religious war or crusade, "We must ever consider ourselves engaged in a battle until we or those who behold the downfall of Catholicism buried in the ruins of its own iniquity." A state committee on alcohol trafficking had proposed a bill that would have prohibited the transportation and use of sacramental wine during the same time, which also received strong Klan support and backing. The Oregon compulsory public school initiative of 1922 provided a boon to Klan popularity. The measure proposed to require children to attend public schools instead of private, parochial or military academies. It was an effort to support "100 Americanism", and using public education to teach fundamental national values to all children. Sponsors of the bill were the Klan and the Federation of Patriotic Societies.

The long legal battle to repeal the law was led by civil rights activists in Father Edwin Vincent O'Hara and Rabbi Jonah Wise of the Temple Beth Israel in Portland. Oregon voters approved the compulsory public school law, but the Oregon Supreme Court in an unanimous ruling declared it unconstitutional, and that decision was upheld by the U. S. Supreme Court in *Pierce vs. Society of Sisters*, in 1925. The justices voting in the majority stated private schools are protected by the constitution and that parents' have an inherent right to freedom of choice in their children's education. Lutherans, Seventh Day Adventists, Episcopalians, and the American Jewish Committee were opposed to the measure and provided legal support to have the law declared unconstitutional. In the aftermath of the compulsory public school law, the Catholic Church of Oregon created a Catholic Civic Rights Association to defend against attacks on religious freedoms in Oregon.

CIVIL RIGHTS REFORM IN OREGON'S AFRICAN AMERICAN COMMUNITY

Oregon statehood was forged through racial exclusivity in its constitutional laws. Black citizenship was criminalized. While exclusion laws were rarely enforced, they remained in place until 1926 and had a tremendous impact on the urban and social landscape. The ban on racial intermarriage of 1866, and the poll tax implemented in the state constitution against people of color were two effective means by which an alienated and marginalized population was created through state laws. But a different historical force was going to reshape the demographic composition of the state: the Great Migration.

After the Civil War, the United States federal government implemented a political and social realignment reform package called Reconstruction. This opened up the vote to African American men, enshrined equal protections in law, but more radically, put men of color in elected positions, promoted mass literacy, and the removal of many of the social hallmarks of slavery in the American South. Reconstruction was met with violent tenacious resistance from white politicians of the South, and the erosion of Reconstruction policies and protections was nearly complete by the time of the Supreme Court ruling of *Plessy v. Ferguson* which legalized racial segregation and reinforced racial blood laws from the antebellum era of slavery. Conditions quickly worsened for African Americans in the South, and many Americans experienced a loss of faith and interest in fighting for Reconstruction in the South including President Ulysses S. Grant.

With little viable alternative options, African Americans left the south in droves. The large scale migration impacted Western states and cities in the Midwest. When the railroads expanded within Oregon's interior, the agricultural sector opened up to national markets, and workers were needed to fill positions to help transport people and commerce. African Americans were limited by

racial discrimination in employment opportunities, but there were jobs available in the railroad industry and menial labor. As job opportunities in the railroad and hospitality industries opened up, Multnomah County experienced a surge in African-American migrants. Black people were not permitted to eat in white-owned restaurants, so black-owned restaurants and saloons were able to provide a service to the black community and to the railroad men away from home. Employment opportunities for black people in private industry and government were largely limited to jobs as service personnel in hotels, restaurants, and in office buildings as janitors, doormen, porters, bellhops, waiters, and cooks.

While many African Americans arrived in Western states like Oregon during the Great Migration, legal reforms were needed to provide protections for all people in the state. In the 1890s black leaders and their white allies initiated legislative efforts to remove the poll tax measures, exclusion laws and bans on interracial marriage. Some of the leaders of legislative reform were in African American churches. Reverend T. Brown, pastor of the African Methodist Episcopal Church of Portland (the oldest African American church in Oregon), concerted efforts with Oregon State Representative Henry Northrup, to abolish the exclusion laws that permitted the removal of African American and Chinese residents from the state. The legislative fight came up short, and an Equal Rights Bill failed to pass the Oregon Senate in 1919. That same year the Portland Realty Board added to its code of ethics a redlining provision, prohibited realtors from selling property in white neighborhoods to African Americans and people of Asian descent because they believed their presence in neighborhoods brought down the value of neighboring homes. This established a legacy of housing segregation that rippled throughout America and was instituted in residential development policies by the United States Housing Authority through the 1970s.

BEATRICE MORROW CANNADY: CIVIL RIGHTS ADVOCATE

Adolphus D. Griffin was a successful businessman and the publisher of *The New Age*, and was the first black-owned newspaper in Oregon in 1896. It wasn't designed to appeal to a strictly black audience, giving it a wider appeal. Portland's second black-owned newspaper, *The Advocate*, began publication in 1903, and Beatrice Morrow Cannady eventually became its editor. It was the state's largest African American newspaper. She was the first African American woman to graduate from the Northwest College of Law in Portland. Cannady was a founding member of the Portland branch of the NAACP and served as its secretary and vice president. The branch was the first NAACP office to open west of the Mississippi River in 1914. She was also the first African American to run for political office in 1932 as a state representative from Multnomah County. She was a pioneer for racial justice and a critical activist in the budding civil rights movement in Oregon. As an attorney, she single-handedly fought segregation, the Klan and racial injustice in Oregon, and established a name for herself with Congressional leaders in the federal government like Leonidas Dyer.



Beatrice Morrow Cannady: Editor of *The Advocate* and civil rights pioneer of Oregon.

Portland Mayor George Baker had requested that the city attorney draft an ordinance making it a crime for African-Americans and whites to mingle in dance halls and restaurants. Cannady and the NAACP of Portland fought against the city ordinance, calling it an act of "deep humiliation." The black community objected to the passage of an ordinance prohibiting racial intermingling because it would set a precedent for discrimination already practiced in theaters and restaurants, and might lead to widespread segregationist policies in transportation and education. Cannady used *The Advocate* to expose racial discrimination and those who enabled it. She particularly criticized Mayor Baker's comment on the "intermingling of races" in public accommodations. In response to Mayor Baker's embrace of racial discrimination, Cannady suggested black people boycott eating establishments and other businesses that had refused service to black people.

Cannady and the NAACP protested against the showing of the film *The Birth of a Nation* in Portland movie theaters. D.W. Griffith's sensationalist racist movie glorified the Klan as moral crusaders and reinforced pernicious stereotypes of African American men as rapine, bestial, incompetent and prone to alcoholism. In the film, the Klansmen are portrayed as guardians of white women's chastity, and sexual interactions between black men and white women are anathematized. President Woodrow Wilson unfortunately celebrated the film and claimed it was "teaching history with lightning," in a conversation with the film's director. The movie was based off the novel *The Clansman* written by the white supremacist Thomas Dixon Jr. who as an old

college friend of Wilson when they attended Johns Hopkins University. Wilson never condemned the film, and this only added to his reputation for being an ardent racist who denied black students admission to Princeton University while he was president of the college, and allowed most cabinet members to segregate federal workspaces for the first time since the Civil War.[20] The popular reception of the film exacerbated racial divisions in Oregon and the United States. The film normalized the Klan and encouraged recruitment into the terrorist organization.

In 1916, *The Birth of a Nation* was scheduled to be shown in Portland, and a group associated with the NAACP, including Cannady, appeared before the city council to protest the film. Caught by surprise from the protest, the council reacted by passing an ordinance that would ban the showing of any film that would stir up hatred between the races. In 1931, the American Legion sponsored a showing of it, and a percentage of profits were intended for their charity work. Cannady and the NAACP were able to block this showing as well. The Triangle Film Company appealed to the City Council of Portland to show the film, and it became the fourth time the council had refused a permit for the film. It was largely Cannady's efforts that blocked the exhibition of the film. Part of her motivation stemmed from experiencing first-hand discrimination at the Oriental Theater in Portland. An usher tried to prevent her from sitting on the main floor with her son, and claimed the seats were for white patrons only, but Cannady refused stating she was a law-abiding citizen who paid for her tickets. Later, she had discrimination lines in theaters banned in Portland. In another incident, Cannady's son George was prevented from entering a skating rink to attend a graduation party with his friends. Soon after this humiliating incident, she was able to work towards the removal of "we cater to white only" signs in the city. She felt segregation was the root of all evil "for when people do not know one another they are suspicious and distrustful to one another."

Cannady's direct action against school segregation had an impact in the town of Vernonia in 1925. During this time, racial segregation was experienced in schools in Mayville near La Grande, and Catholic schools in Portland. Vernonia was a village of 1,000 people supported by a sawmill run by the Oregon-American Lumber Company. They drew some of its employees from the black community of Oregon and another fifty African-American employees from its properties in Louisiana. Living conditions on company property in Vernonia were established under Jim Crow policies of residential housing: superior accommodations for the whites and inferior ones for the people of color. For the white workers, the company provided houses in a good district with paved streets and sidewalks with modern conveniences in homes. The African-American employees lived in shacks of two or three rooms built at the bottom of the hills. There was inadequate drainage, no paved streets or sidewalks, one water tap to be shared by two or three homes, and subpar sewage systems. The African-American employees were also underpaid in comparison to white laborers for the same work. One of the employees of the mill wrote to the NAACP to alert them to the situation. "Please do not let no one know who wrote to you about this." [21]

The environment was becoming increasingly hostile when the lumber-company-owned local newspaper the *Vernonia Eagle* printed an editorial in 1925 stating the town did not want "niggers" in Vernonia, and that it was a "white man's country." Five children were prohibited from attending school and were told to go to school in Portland thirty-five miles away. The owners of the mill shared similar racist sympathies as the newspaper, blocking the children of color from attending the public school in Vernonia. An African-American employee of the sawmill refused to comply with the segregation orders, and the lumber company fired him for sending his child to the town's public school. The superintendent of the company stated that if anyone sent their children to the public school, they would be fired. The school board and "patrons of the school" accepted the conditions of segregation.

Cannady summarized the situation in Vernonia upon her visit: "The whole thing in a nutshell is an attempt to duplicate the Southern system here. We will not stand for it." [22] Cannady claimed the company was in violation of federal laws granting equal protection, "We have laws that cover the situation...[in a] state where the whole sentiment is Southern." Cannady spoke personally to town and company officials to change their policies, and ensured that African American students were able to attend the public school in Vernonia. Cannady also helped set up a branch of the NAACP in Vernonia, and was victorious over segregationist practices at a public school in Longview, Washington.

Cannady gave many speeches on the subject of interracial relations in schools, colleges, clubs and many other organizations. She was a guest lecturer at the Pacific College of Newberg (currently George Fox University), and persuaded the Portland Board of Education to offer courses on African American history to the city's high school students. Cannady was active in political circles and invited Congressman Leonidas Dyer to speak at Lincoln High School. Congressman Dyer tried to pass federal legislation that made lynching of African Americans a federal crime. [23] The Dyer Bill was very important legislation for Cannady and the black community. *The Advocate* ran front page articles on lynching incidents in the United States, and brought attention to a pressing issue that demanded federal action for equal protection. After her speech and presentation at Lincoln High School, students wrote

letters to Cannady thank and praising her. One Lincoln High student noticed how the media inflamed racial hysteria and the issue of urban crime, “When a negro commits a crime, much more attention is given to it.” When Cannady spoke at the Daily Vacation Bible School in Portland, her lecture became a “mass conversion experience” for many, including a former Klansman. Cannady raised awareness in the community on her lecture tours, and through her activist work. She was very warm and personable, and invited guests of different backgrounds into her home where conversations on unity and social awareness were welcomed and embraced.

After the Broadway Bridge opened in Portland in 1913, the city’s black community moved east across the Willamette River to the Albina District in Northeast Portland along Williams Avenue. By the 1930s, Williams Avenue and the Albina District, slowly became a black neighborhood and a product of racial segregation. The area became a thriving center of black culture with African American owned businesses, churches, and community centers. The YWCA on Williams Avenue was referred to as the “Colored YWCA” in the organization’s efforts to provide services to the growing African American community. The Albina District was a convenient location for the black community enabling commuters access to streetcar lines that took them to Union Station and other job sites in downtown Portland. Racially restrictive covenants were instilled in housing districts throughout Portland evidenced by a Laurelhurst deed that forbade any Chinese, Japanese or African American from residing in the home as except as domestic servants. However the Albina District represented a place where black people could own a home without facing as much resistance as they had in other locations in the city. Dr. DeNorval Unthank’s family decided to test the waters and tried to set up residence out of the Albina neighborhood.



Dr. DeNorval Unthank: physician and civil rights pioneer of Oregon

Dr. DeNorval Unthank received his medical degree from Howard University in 1926, and was recruited by the Union Pacific Railroad and Dr. James A. Merriman to come to Portland, Oregon. They were the only black physicians in town and were brought on to serve the black employees of the railroad company. Unthank was a civil rights pioneer in Oregon history. His painful experiences with discrimination brought him closer to political activism. He served as president of the Portland branch of the NAACP, co-founded the Urban League, exposed residential segregation as one of the only African Americans in the Portland City Club and helped push for the passing of Oregon’s Civil Rights Bill in 1953.

Dr. Unthank’s family attempted to move into Ladd’s Addition, an all-white neighborhood in Southeast Portland in 1931. Upon their arrival, a neighborhood club called the Better Homes Group objected to their new neighbors. The Unthinks were presented with petitions demanding their departure. The Better Homes Group told the Unthinks they should not be concerning themselves over segregation, and should focus on their own self-improvement instead. They claimed the African American social reformer Booker T. Washington, wouldn’t have moved into a white neighborhood. When the Unthinks refused to leave they were verbally threatened and vandals broke 18 windows of their home, and left trash and a dead cat on their lawn. The neighborhood sought litigation to force the Unthinks out of the neighborhood. The following year, Ms. Ida Tindall, an African American widow and a Gold Star mother of a World War I veteran, bought a home near Ladd’s Addition in Portland and was met with white resistance. Another neighborhood group and a realty firm called The Rose City Company sued her and tried to evict her from the neighborhood. The NAACP took an interest in her case and hired Charles Robison as her attorney. Beatrice Morrow Cannady and *The Advocate* printed a poem called Black Star Mother written by Robison “They took this woman’s money and now they won’t give her a home...They tell me about Gold Star Mother-I am speaking about a Black Star Mother of a man who fought for his country when his hide was black.” Jewish organizations and the NAACP supported Robison’s efforts to bring awareness to housing discrimination in Oregon.

The NAACP contested segregationist practices and policies through the 1930s, and they built upon their efforts to get a civil rights bill passed in the Oregon State Constitution. Beatrice Morrow Cannady and *The Advocate* warned readers of the reality of residential segregation in the city of Portland and felt the Albina neighborhood was evidence of racial discrimination. Oregon voters and the city of Portland rejected New Deal funding for public housing. This left African Americans few housing choices, often leasing out to landlords who neglected their properties and overcharged tenants for rent. Dr. Unthank and the NAACP brought awareness to housing discrimination in Portland and went on letter-writing campaigns, called for community meetings, and staged protests at the capitol in Salem.^[1] They pushed for a civil rights bill that would have provided protections from housing discrimination, but it died in committee due to opposition from the Oregon Apartment Owners Association. By 1940, 60 percent of Portland's African American population lived in the Albina neighborhood while the problem of segregation and racism festered in Oregon.

Political Radicalism in Oregon

Political radicalism and labor reform became prominent forces of potential unrest and civil disorder in the eyes of government officials in Oregon. In the wake of the Red Scare hysteria and the fear of communism, the state passed a Criminal Syndicalism Act in 1930 which forbade speech that was viewed as “subversive”, or posed a “clear and present danger” to American society and its institutions. The law was designed to suppress radical unions like the International Workers of the World, and communists and socialists. The Criminal Syndicalism Law of Oregon gave governing authorities the power to infiltrate, monitor and disrupt leftist groups perceived as subversive and a threat to society. The Portland Police started a covert operations group called the Red Squad that was financed by taxpayer dollars and employers who wanted to ferret out communism among their employees. The police group was founded upon the idea that “Communism was the source of all woe,” and radical leftist groups sought the overthrow of the American government.

One person prosecuted by the Criminal Syndicalism Act was Ben Boloff, a Russian laborer who was arrested in 1930 on charges of vagrancy, but police found he was carrying a Communist Party membership card and his charges were changed to “criminal syndicalism.” The Oregon criminal syndicalism statute barred a person from being a member of Communist party. At the trial, officers in the “Red Squad” testified against Boloff. He was the first to be tried under Oregon's Criminal Syndicalism law and was found guilty. The judge sentenced him to ten years in the penitentiary. His attorney, Irvin Goodman, was a member of the International Labor Defense which was the legal arm of the American Community party. He appealed Boloff's conviction to the Oregon Supreme Court but the justices affirmed the ruling. Many considered the Boloff conviction a travesty of justice.^[2] The Oregonian and the Oregon Journal sided with Boloff. While in prison, he contracted tuberculosis under poor living conditions, and was refused medical attention. He was eventually released from jail but died soon thereafter. Supporters of Boloff thought the state should have been prosecuted for his wrongful death.

Dirk Dejonge was also convicted under the Criminal Syndicalism Law for participating in a meeting bringing awareness about jail conditions at Multnomah County and the Longshoremen's Strike of 1934. Irvin Goodman of the ILD and Portland attorney Gus Solomon, who helped establish the first American Civil Liberties Union office in Portland, represented Dejonge during his appeal to the Oregon Supreme Court. After the Oregon Court denied a rehearing for Dejonge, the case found its way to the United States Supreme Court and Solomon found Dejonge legal representation in Osmond Fraenkel of the ACLU. In an unanimous decision, the Oregon Criminal Syndicalism law was declared unconstitutional and Dejonge's right to freedom of speech and assembly had been denied by the Oregon courts. Later in his career, Attorney Solomon learned he was labelled a communist by the “Red Squad” of the Portland Police Bureau and the ACLU was also listed a communist organization.

The Criminal Syndicalism Act created an atmosphere of Red Hysteria that enveloped other criminal cases, and led to hostility directed at unions and radicalism. In 1932 at Klamath Falls, a murder investigation of a dining car steward on the Southern Pacific Railroad became a cause célèbre for the International Labor Defense and Attorney Goodman who represented the accused, an African American waiter named Theodore Jordan. Initially Jordan went to the NAACP to seek legal support and it was revealed he was subjected to third degree torture while in police custody. Cannady and *The Advocate* followed the case closely. The newspaper and the International Labor Defense brought attention to the case by comparing it to a legal lynching because Jordan was sentenced to death for a crime that he did not commit, and was forced to sign a confession while under physical duress.

Jordan grew impatient with his legal defense and sought representation with Portland Attorney Irvin Goodman and the communist-aligned International Labor Defense. The ILD gained notoriety for successfully defending the Scottsboro Boys who were nine

African American men wrongfully accused of raping two homeless white women on a train. When the NAACP caught wind of his solicitation of the ILD, they severed all ties with him, but not before an argument broke out among African American social activists and public figures who sided with the ILD and members of the NAACP at Mt. Olivet Baptist Church in Portland. The Portland branch of the NAACP was extremely nervous about being associated with the ILD and communism. Eventually after repeated efforts by the ILD and public protests in Portland and the Capitol Building in Salem, Jordan had his death sentence commuted by Governor Julius Meier after an investigation by a legal redress committee concluded that Jordan's rights had been violated. Unfortunately Jordan remained in jail for several decades until the real murder's identity was revealed. In 1964, Klamath Falls Justice David Vandenburg threw Jordan's sentencing out of court because the nature of the trial was repugnant to constitutional law and Jordan's right to a fair trial, and it was not until then that Jordan was finally released from jail for a crime he did not commit.

Oregon Enters World War II: Hydroelectric power and the New Deal

During World War II, the Pacific Northwest became a thriving center of job growth and an ensuing population explosion from war industries like Boeing Airplane in Washington, and the Oregon Shipbuilding Corporation in Portland. The stock market crash of 1929 and the preceding Great Depression devastated the industrial sector of the U.S. and other nations. After years of economic depression, the United States and Germany employed the economic model of British economist John Maynard Keynes. His theories were premised on government expenditures to fund economic growth, agriculture and industries were subsidized, but at a much higher scale than previously seen. President Franklin Delano Roosevelt called this economic plan the New Deal, and it emphasized state spending for production and infrastructural development which yielded job growth and professional training of workers. As World War II unfolded, the United States and German governments funneled millions of dollars into the mass mobilization of war production. Federal spending skyrocketed in a short period of time as the military sector required enormous production of equipment. This required consumer production in factories such as Ford Motor Company to shift its assembly lines to war preparedness. Tanks, jeeps, and other essential military equipment replaced cars and other nonessentials in the consumer market during the war effort. In the Pacific Northwest, massive job growth occurred in Boeing Airplane Company and the Oregon Shipbuilding Corporation.

After the attack on Pearl Harbor, Hawaii in 1941, the United States entered the alliance against the Axis Powers of Nazi Germany, Japan and Italy. American went under high alert against the possible threat of a Japanese invasion on the Pacific Coast which never materialized.[3] American wartime production was exported to other allied nations such as Great Britain, China, the exiled government of France, and the Soviet Union. This massive economic growth pulled the United States out of the Great Depression. The Oregon Shipbuilding Corporation had three shipyards in the Portland metropolitan area. The Oregon Shipbuilding Corporation was run by the industrial magnate, Henry Kaiser, who was also the founder of Kaiser Permanente which met the healthcare needs of tens of thousands of his employees in California, Washington and Oregon.

Kaiser's military industries were one of the primary causes of the vast emigration to the state of Oregon during the Second World War. Kaiser shipyards brought African Americans into Portland and Native Americans left the reservations to work there as well. The influx of prospective employees into Kaiser's shipyards led to further ethnic diversification, and the population of Oregon increased 49 percent during the war which led the nation. But the housing market did not have enough space for these new residents. The war production of Boeing and Kaiser Shipyards would not have been possible without inexpensive electricity provided by the dams built along the Columbia River through government spending for infrastructural development in Roosevelt's New Deal.

One of the extensive undertakings of the New Deal was public infrastructure projects like hydroelectric power. Major dams were built along major rivers like the Hoover Dam at the Colorado River, and the Grand Coulee and Bonneville Dams along the Columbia River. Oregon was in the vanguard with early forays in hydroelectric power, public ownership of utilities, and the first long distance transmission line in a sixteen mile stretch between Willamette Falls in Oregon City to the city of Portland.[4] The bohemian folk musician Woody Guthrie, advertised the dams along the Columbia and wrote songs about the river. While hydroelectric development brought many positive changes, it also brought the destruction of Native American fishing and water rights.[5]

Henry Kaiser was the leader of the Six Companies consortium responsible for the development of the Hoover Dam in Nevada, and the Grand Coulee and Bonneville Dams in the Pacific Northwest.[6] The three shipyards were located on Swan Island, the St.

John's neighborhood, and a third in Vancouver, Washington on the Columbia River. The face of Portland changed as thousands of workers were imported as engineers and other specialists from southern and eastern states. Kaiser had over 100,000 employed in the ship yards, and another 30,00 were building smaller vessels and parts at Willamette Iron and Steel, and Albina Engine and Marine Works.



Oregon Shipbuilding Company site on Swan Island

President Franklin Delano Roosevelt visited the Oregon Shipbuilding Co. yard on September 23rd, 1942 to mark the launching of a liberty ship that had been built in fourteen days, the *Joseph N. Teal*. The visit was kept a secret due to concerns over espionage on American soil even though he spoke to 14,000 workers. Kaiser, along with many Oregonians viewed the Allied cause in the war as a battle between good and evil: "We are plunged into the battle of to-be-or-not-to-be. And it is impossible to overestimate the importance in that battles of the very things, production and invention, for which you and I are responsible. The nation, indeed, depends upon us to cast the balance."^[7]



Gov. Sprague, Henry Kaiser and President Roosevelt at the launch of the *Joseph N. Teal*

Wartime production and its concurrent demands produced labor shortages. Henry Kaiser recruited from across the country approximately 2,500 workers from New York City. The recruited were sent on trains called "Magic Carpet Specials" or "Kaiser Karavans" during the World War II era. Prospective workers, white and black, were attracted by the promise of good jobs and high wages. On September 30th, 1942 the first "Kaiser Karavan" arrived in Portland.^[8] By 1945, the African American population increased to more than 20,000 and white migration into Portland increased by 100,000. Overnight the black community was transformed from a nearly invisible one to an integral part of the local and global economy. This triggered racial anxieties among government officials in Oregon. Mayor Earl Riley responding anxiously to the influx of African American migrants stated, "Portland can absorb only a minimum of Negroes without upsetting the city's regular life."^[9] A mass meeting of 500 Albina district residents wanted to stop any further migration of African Americans into their neighborhood blaming them for increased crime, and "We Cater to White Trade Only" signs sprung up around business establishments.^[10] There was a white backlash at the Kaiser Shipyards as well. The Local 72 Boilermakers Union forbade black people into their union. African Americans as result were denied skilled labor positions and were forced to join an auxiliary union with far less representation, and still had to pay their dues.

After Asa Philip Randolph President of the Brotherhood of the Sleeping Car Porters threatened to march along with 100,000 protestors on Washington to fight race discrimination in war industries, President Roosevelt signed Executive Order 8802 which opened the door for job opportunities for African Americans. The order "obligated contractors not to discriminate," and created a Fair Employment Practice Committee, but the committee lacked enforcement and Roosevelt focused on war production rather than fight to end segregation. While it served as a victory for the black community and brought black workers to shipyards in Oregon, California and Alabama, nevertheless, segregation practices remained. Initially blacks were blocked from jobs in the shipyards and

the union forbade blacks stating [they] would “pull the place down” rather give black people equal job rights at the Kaiser Portland yards. The Boilermakers Union controlled 75 percent of the skilled jobs at the shipyards. The union fell under the authority of the American Federation of Labor (AFL) and notoriously held color bars preventing African American workers from joining, unlike the Congress for Industrial Organization (CIO) which did not racially discriminate.[11] The Boilermakers did everything possible to substantiate the idea that black workers were second class citizens in comparison to white workers in terms of pay scale, benefits, and protection from loss of employment. When war production demands diminished, African American workers were typically the first to be laid off along with women.

Kaiser eventually hired black workers in skilled positions without union clearance, and the Boilermakers Union was outraged. The Kaisers bowed to the union’s demands and laid off black workers. The company played a role in discriminatory labor practices and did not prohibit supervisors from enforcing segregationist policies and the downgrading of black laborers. Even before the war ended, Kaiser laid off 2,000 black workers. If Kaiser had prioritized equity and followed the recommendations of the Fair Employment Practices Commission while emphasizing war production, the outcome may have been different for African Americans in Portland. In the end, in March 1945 the Portland branch of the NAACP representing black shipyard workers won a ruling by the Fair Employment Practices Commission. The FEPC ordered the Boilermakers 72 union to allow black workers to become members, but the union protested. The war had ended before the Boilermakers had to comply with the order.

Vanport: The Flood and the Lost City

During the Second World War, a tremendous immigration influx arrived into Oregon and created a housing crisis, and there was a housing shortage for the black community. Policies of the real estate establishment and the indifference of the city housing authority fostered patterns of segregated housing during and after the war. African Americans were excluded from the city-wide housing market and mostly confined to housing in the Albina district. The Portland Council of Churches petitioned the Federal Housing Authority to provide adequate housing for black defense workers. Wartime production goals were astronomical, and there was constant pressure and demands on worker productivity at the Kaiser shipyards where job turnover was very high.

Kaiser wanted all of his workers to be stationed in Portland, but with the housing shortage this made his demand difficult to accomplish. As a result, he created the Vanport public housing project which was the largest in the nation at the time. At first it was named Kaiserville, after its creator, but a presidential order stated a housing project could not be named after a living person. The building and planning of the housing project was controlled by the Kaiser Company. By 1943, a majority of Portland’s 15,000 black residents lived either in public housing in Guild’s Lake, Fairview, and Vanport or the Williams Avenue area. At Vanport’s peak in 1944, 40,000 people lived there including 6,000 African Americans. It became known as the “Negro Project” among Oregonians even though black people did not make up a majority of Vanport’s population. For many Oregonians, racial integration in housing development was still a distant reality partly because of segregationist practices of the Portland Housing Authority. City officials before the end of the war were hoping Portland’s black residents would either move into private housing or leave the city entirely.[12]

The Portland Housing Authority stuck with the name Vanport. It was a public housing project intended for Kaiser shipyard employees and other war industries. Officials praised the \$26 million project for its supposedly sturdy construction. By early November 1943, it was estimated that 39,000 lived in Vanport making it Oregon’s second largest city, and fifth among Pacific Northwest urban centers. Like the work at the shipyards, tenant turnover was high in Vanport. The city was plagued with sanitation concerns and overcrowding. Assistant Superintendent of Child Guidance at Vanport Schools, George V. Sheviakov, felt Vanport was created by “a bunch of real estate men who have their own vested interests and know about property value and rentals but don’t know beans about human living.”[13] During the war, Vanport had a 24-hour character to it. People were employed in the shipyards all hours of the day. The school program in Vanport offered extended day operations, and child service centers operated on a 24-hour basis. The city was noisy, crowded, and the apartments were cheaply constructed. Windows did not open in some units and most did not contain a thermostat. The buildings had electrical and heating issues and one 14-unit apartment building “went up in smoke suddenly.” There was a lack of telephone service, laundry facilities, and only two shopping centers with limited supplies. Vanport was located adjacent to the Columbia Slough which was badly polluted at the time, and outbreaks of water-borne disease were common. All sewage was pumped untreated into the Columbia River, and the sewer pipe that ran under the railroad tracks of the North Portland Terminal Company broke frequently. The sloughs remained polluted with raw sewage for weeks at a time. Overall, residents felt their stay in Vanport was temporary, and most could not wait to leave.

Residential requirements were lifted when World War II had ended in 1945 and an influx of veterans enrolled at the newly established Vanport Extension Center, which eventually became Portland State University. The arrival of the college brought a different and welcoming appearance to the region. Three fourths of its students were from Multnomah County and were beneficiaries of the GI Bill which offered college tuition and funds for war veterans. This offered a breath of fresh air to the community, and Vanport was starting to “take on the look of a college town”.^[14]

After the war ended in 1946, government funding started to dry up for educational resources in Vanport, and summer school was cancelled while 6 thousand children roamed the streets the city. There were no private yards or play areas, and children were left on their own. Juvenile vandalism and attacks on private property became more commonplace. During the school year, classrooms were overcrowded with some running as many as forty or fifty students. Teacher turnover was high in Vanport as well. Some of the principals were known as hardened individuals who were disrespectful to parents, and wielded an “authoritarian and uncooperative attitude”.^[15] School administrators like George Sheviakov were disillusioned by the majority of “vicious” and “uncaring” principals who bailed out teachers who used corporeal punishment in their classrooms. According to Shieviakov other administrators “scoffed at democracy and progressive education,” and Vanport had a difficult time maintaining quality instructors.

Segregation was practiced in Vanport from the beginning. The Portland Housing Authority continued de facto segregation practices. It was reported when an African American family moved into a building, the whole block was evacuated by whites to make way for their occupancy. Some residents were hostile to racial mixing at dances in Vanport. Blacks settled into an area that became known as the “Negro section” of Vanport. As early as 1945 there were over three and a half times as many black families in Vanport as there were in all other Housing Authority of Portland projects combined. *The Oregonian* printed editorials recommending that Oregonians accept the newcomer residents, and the National Association of Real Estate Board defended black residents by stating they maintain properties in the same condition as whites of similar income brackets. Dr. DeNorval Unthank, the only black member of the Portland City Club, and the Urban League urged Mayor Earl Riley to create an Inter-racial Committee and convince the Board of Realtors to help black families find homes when public housing projects are demolished. Unfortunately the mayor never responded to this request. Instead the status quo remained with the redlining of neighborhoods, agitation of white residents against people of color, and the real estate and banking sectors cordoned off blacks and other minorities into neighborhoods where many of the homes were old and dilapidated. As a result, the Housing Authority of Portland recommended that all blacks looking for housing should consider moving into Vanport, and only in the “coloreds only” sections. HAP reports indicated that it would be necessary to move white families out of the “designated colored areas” in order to accommodate the black families. The Urban League of Portland and the American Veteran’s Committee proposed a “non-segregation” policy at a meeting of Housing Authority officials, but little change came of it.

Although Vanport sat in the midst of a flood plain on the Columbia River there had never been any real concern for its safety. In May 1948, the city held about 18,700 “actual registered tenants” of which 75 percent were white. An exceptionally heavy snowpack had accumulated in the mountains that year. May produced heavy rains and warm temperatures while the Columbia River swelled with the greatest surge of water since the disastrous flood of 1894. On Memorial Day residents received a message from the Housing Authority of Portland that concluded: REMEMBER: DIKES ARE SAFE AT PRESENT YOU WILL BE WARNED IF NECESSARY YOU WILL HAVE TIME TO LEAVE DON’T GET EXCITED. When the dike along the railroad tracks broke, surging waves of water gushed through, with waves 10 feet high rushing through the streets. Cars and houses were destroyed and ripped apart, and within an hour Vanport was a lake. President Truman declared Vanport a disaster area. Individuals tried to relocate relatives, and immunization clinics were opened for people who swallowed Columbia River water. As many as 1,325 people stayed in a Red Cross shelter on Swan Island. In the panic, rumors flew about children who were trapped in a theater and perished which *The Oregonian* refuted. Another rumor claimed a storage facility near the shipping yards of Linnton, Oregon contained 600 bodies, but this was also unfounded.

Many in Vanport were upset they didn’t receive more advance warning about the impending crisis. The river had been at flood stage for more than a week, and precautions could have been taken to evacuate residents. Most residents received a ten-minute warning to evacuate, which was far from ideal, but it allowed available Portland Traction Company buses to arrive at the scene, along with many taxis. Because there was only one exit from Vanport, the evacuation proceeded slowly but without widespread panic. Some could not hear the warning sirens, and traffic lanes of exit were limited to one street for a city of several thousand residents. The lineup of cars on Denver Avenue was an emotionally potent image, and later the street would wash out and collapse as another victim of the flood.



Vanport Flood

The flood and resulting damage forced Vanport College to cancel its spring term. Only fifteen deaths were recorded by the Multnomah County coroner, while another ten people were reported missing, and at least seven were never accounted for. An estimated 18,000 residents lost their homes, and 4,000 were sent to temporary shelters including 1,300 who lived at the Red Cross Refugee Center on Swan Island and the rest, if they could, moved in with other families. No federal agency wanted the property and there were no real estate investors interested in rehabilitating the land, so the City of Portland used it for parks and recreational purposes. Later, under the governorship of Tom McCall, the city built Portland International Raceway, Heron Lakes Public Golf Course, and a variety of park spaces with bike trails. Governor McCall officially opened the course by hitting the first drive at a special press preview on April 29, 1971, and public play started on May 1.

Japanese Americans Internment in Oregon

During the 1920s, a harsh swell of populist based nativism swept through the nation and Oregon in response to events that transpired during World War I. John Higham in his seminal text *Strangers in the Land: Patterns of American Nativism*, described the 1920s as the nadir in race relations in United States history. The animus towards immigrants was felt within the State Capitol in Oregon. The anti-Japanese movement came from states, labor unions, politicians, demagogues and voices within the press. “We have no room for the yellow man and we don’t want them” declared a Madras newspaper in 1920, and the citizens of La Grande and Woodburn had forced the Japanese out.^[16] In Oregon, the legislature stated its opposition to Japanese immigration in a memorandum directed to all Congressional senators and representatives in 1923. Legislators in Salem were swept up by Americanization and its discontents:

“The legislature of the state of Oregon is unalterably opposed to further immigration in to the United States in excess of the present quota, and further recommends that our laws be so amended as to restrict the entrance into the United States of all Asiatics and Southern European internationals [and a] rigid exclusion of all further immigration until such time as we may fully assimilate those within our borders and give to American labor and American laws the right which is their due.”^[17]

Legislators drew from nativist hysteria and associated a variety of social ills and fears of degeneration with Southern European and Asian immigrants. Their views paralleled the Ku Klux Klan which reached its peak influence among state politicians in both parties during this time. Guided by principles of Americanization, legislators were concerned over “aliens...who have not been assimilated and know little of our ideals, traditions and purposes.” They were seen as a nuisance that brought alcoholism and drug addiction into the United States and would take years “to amalgamate into the body politic.” The Oregon Congress and Governor Walter Pierce felt “aliens” endangered Oregonians and took jobs away from “100% Americans.” Putting restrictive quotas on immigration was something political leadership in Oregon fully supported.

The Immigration Act of 1924 tightened immigration quotas from Southern and Eastern Europe and stopped all immigration from Japan, which included Koreans since the nation was a colony of Japan. The law passed by Congress was in violation of the Gentlemen’s Agreement of 1907, a mutual immigration pact between the United States and Japan.

The restriction included Japanese, Korean “picture brides” and Chinese immigrant wives of Chinese men who were American-born citizens. The Supreme Court case of *Takao Ozawa v. United States* in 1922 had confirmed that first-generation Asian women immigrants in Oregon could not become naturalized citizens because they clearly were not Caucasian. First generation immigrants from Japan and Korea could not become naturalized US citizens until 1952, with passage of the McCarran-Walter Act.

After the Japanese attack on Pearl Harbor in 1941, racial animosity towards people of Japanese descent was boiling over on the Pacific Coast. Japan criticized the United States’ exclusion of Chinese immigrants and characterized it as America’s dislike of all Asian people. Since China was a critical ally and the United States supported their people with weapons and military equipment, government officials were intent on reversing their Anti-Asian image and repealed the Chinese Exclusion Act in 1943. The majority of mass media portrayed second generation Japanese Americans as traitorous while promoting Chinese, Filipinos, Koreans, and

South Asian Americans as loyal sons and daughters. Most Oregonians like their counterparts in Washington, California and British Columbia did not want the Issei or Nisei to feel at home.

On February 19th 1942, acting under the authority granted by the Espionage Act of 1917 (World War I era) Franklin Delano Roosevelt, guided by military intelligence of General John DeWitt, ordered the exclusion of first and second generation Japanese civilians through Executive Order 9066. DeWitt's argument was that Japanese people were a "Fifth Column" of the Axis powers and the Japanese war effort, and had to be removed from "military areas." The Secretary of War, Henry Stimson, designated military areas in Oregon that were off-limits to Japanese people; this entailed the western half of the state. Executive Order 9066 gave authorization to military commanders to remove 112,000 Japanese American citizens into what the government called relocation centers. DeWitt provided erroneous reports of sabotage in California and non-existent off-shore Japanese naval activity.

American journalists helped shape American opinion over internment. Walt Lippmann wrote in his book *Manufacturing Consent* that social perceptions created by the media tend to shape the public mind, and that people should come to judgments through critical thinking. Ironically, after a meeting with officials including California Governor Earl Warren and General DeWitt, Lippmann published his famous "Fifth Column" piece in the *Washington Post* stating the Japanese people in America were waiting for the right time to attack. Westbrook Pegler of the *Chicago Tribune* stated, "To hell with habeas corpus" in arguing for the need for Japanese concentration camps. Secretary of War Henry Stimson and Attorney General Francis Biddle resisted mass incarceration on the grounds that such a procedure would violate American citizens' constitutional rights. But there was intense pressure from the American public and the military in favor of relocation. Assistant Secretary of War John J. McCloy, a Wall Street lawyer, defied Biddle by stating "the constitution is just a scrap of paper to me," and the Japanese-American internment program was ordered.

The Tolan Committee was formed in Portland in an attempt to forestall the deportation of Japanese people in February 26th, 1942, but to no avail. The next month, the War Relocation Authority was created, and it imposed nighttime curfews on Japanese people under the orders of General DeWitt. It prohibited Japanese people from moving, and required people of Japanese ancestry to report to civilian control centers and then to be transported to internment camps. 3,676 people of Japanese descent were rounded up like cattle at the Pacific International Livestock Exposition in North Portland, where they were confined in the hastily converted animal corrals for a period of five months while they awaited transfer to more permanent camps in California, Idaho, and Wyoming. The expo would be renamed the Portland Assembly Center and featured an eight-foot barbed wire fence with searchlights and corner watchtowers where sentries cradled .30-caliber machine guns. All ethnic Japanese, both resident aliens and American citizens of Japanese ancestry, were kept at the livestock facility until September, when they were transported to the Minidoka Relocation Center, an isolated internment camp in south-central Idaho.



Japanese Americans practicing martial arts at Portland Assembly Center

Governor Charles Sprague presented the so-called Oregon Plan, a program for Japanese and Japanese-American forced relocation. The plan called for the relocation of 4,000 Japanese-American Oregonians to former Civilian Conservation Corps (CCC) camps in Malheur, Crook, and Harney counties. They were assigned to work on land and transportation projects and critically needed agricultural labor. The war effort had drawn many laborers away to serve in the military or contribute to the American cause in war industries, leaving many critical jobs back home unfilled.

Japanese labor camps cropped up in places like Nyssa, Oregon, where there was a large sugar beet industry. Volunteers from the Portland Assembly Center traveled by train to Nyssa. Armed guards accompanied them, and the windows were completely covered during the trip out to Eastern Oregon. There was neither electricity nor running water at the camps. In the fall, the Farm Security Administration moved the laborers to an abandoned CCC camp in an area near Adrian, Oregon, called Cow Hollow. The sugar beet

harvest was saved by the Japanese laborers, and Governor Sprague sent a letter of appreciation to the Japanese of Oregon. The War Relocation Authority estimated a quarter of a billion pounds of sugar had been saved.

Many though showed no appreciation for Japanese Americans especially former Governor Walter Pierce. He embarked on a mid-Valley lecture circuit early during WWII and one of his stops was in Albany. While there he described the racial character and habits of Japanese Americans and African Americans, suggested both races posed a threat to public safety: “Statisticians figure that, at their normal rate of rabbit-like breeding, they might have Japanese senators from California in fifty years. We cannot jeopardize our national life by introducing another race problem. The Negro is docile under normal control and when not given liquor. The Japanese is always aggressive and plotting for racial supremacy. They have a nation and a country and now they have added possessions rich in raw materials...We cannot appease, but we must conquer and then we must rid our country of all Japanese.”^[18] Many white Oregonians in the mid-Valley shared a generalized sentiment supporting racial exclusion, and Albany audiences applauded Pierce’s racist remarks.

The American press did not provide a true picture of the relocation of Japanese Americans during the war. An April issue of Life magazine portrayed life at the Manzanar Relocation Center in Inyo County, California as “pleasant” and “internees found themselves in a scenic spot of lonely loveliness”, and the forced migration was actually “spontaneous and cheerful.” The Oregonian described the Japanese forced migration as “one of the extraordinary events in the history of the west,” and described General John DeWitt as achieving greatness through this act.

Minoru Yasui of Portland was the only practicing Japanese American lawyer in Oregon in 1942. He deliberately disobeyed a curfew law to test the constitutionality of Executive Order 9066, which singled out ethnic Japanese for internment and other indignities. Yasui was held in Rocky Butte Jail in Portland in solitary confinement while awaiting trial in federal court. He was then transferred to the Portland Assembly Center, and then to Minidoka Relocation Center in Idaho. The judge for the Circuit Court of Oregon, Alger Fee, declared Yasui an enemy alien because of previous employment in the Japanese consulate in Chicago. Yasui appealed to the Supreme Court, which stated that the curfew on Japanese people was constitutionally warranted, and that Yasui was violating a curfew law that was considered legal. Later, in 1984 and 1987, the Hirabayashi, Korematsu, and Yasui cases were overturned because a report by DeWitt indicated the Japanese people were not a security threat to the United States.^[19] Efforts were made by the federal government to suppress the release of the memorandum as officials scrambled to hide evidence that exposed flawed military intelligence that resulted in Japanese deportation and internment, and millions of dollars in property losses.

World War II inflicted deep and lasting trauma on Oregon’s Japanese-Americans. Those who returned near the war’s end were bitterly disappointed. Their homes had been looted, their orchards and fields disregarded, and their ancestor’s gravestones were broken. White neighbors were openly hostile. Many residents of Hood River, Gresham, Sherwood, and Forest Grove argued that all people of Japanese descent ought to be deported. “We should never be satisfied until every last Jap has been run out of the United States and our Constitution changed so they can never come back,” stated former governor Walter Pierce.^[20] During the apex of the war with Japan, the Oregon Senate passed SB 274, which restricted the rights and powers of resident aliens to own property. It also barred transfer of lands made in the name of the wife or children of an “alien,” and anyone who assisted an “alien” could be punished with imprisonment for two years and be fined \$5,000. It was a gesture that had backing from Oregon farmers from Eola and Hood River, and they sought to bar Japanese Americans from farming operations. Issei and Nisei endured boycotts of their produce, snubs, verbal abuse, and occasional physical assaults. Nisei college graduates were told in 1947 that employers were reluctant to hire them because they were still viewed a potential saboteurs and subversives. The American Legion of Hood River denied recognition of sixteen local Nisei veterans who served in the war. Magazines and newspapers and veterans across the country condemned the actions of the American Legion of Hood River. “We’re ashamed to say we’re from Oregon now, much less Hood River,” wrote Sergeant David White.^[21]

George Azumano, travel agency owner, was the president of the Japanese American Citizen’s League (JACL). Azumano was a Portland, Oregon native and served in the United States Army during the war. He was stationed at Angel Island, California during the Japanese attack on Pearl Harbor. He was discharged from the army because of his Japanese heritage, and wound up in the Portland Livestock Exposition Center and then transported to Minidoka Internment Camp. In the past the JACL had a strong record defending human rights. They worked with the Anti-Defamation League against anti-Semitic attacks, and the NAACP to help promote a federal ban on lynching. The JACL worked feverishly toward the elevation of Japanese-Americans and sought reimbursement for property loss and damages for the people who were forced to move into internment camps. The Evacuation Claims Act was passed by Congress in 1948, making it the first civil rights legislation in the twentieth century. It provided \$25

million to compensate Japanese-Americans for actual losses pursuant to their evacuation. The federal government never admitted to wrongdoing, and those who wished to recoup their losses had to swear that this gesture would be their only claim against the government. Congress refused to settle claims for lost wages or anticipated profits, personal injury, pain and suffering, or any other costs from removal and confinement. The Justice Department strongly contested each claim. Japanese-Americans filed a total of 23,689 claims under the act for a total amount of \$132 million. By 1950, the Justice Department had barely heard 200 claims, and authorized only 137. The last claim was not settled until 1965, and in all, the government paid \$38 million to settle damage claims, which was only a fraction of actual losses experienced by Japanese-Americans.

At the time of internment, Assistant Secretary of War John McCloy admitted that little or no precautions were taken to protect the property of the evacuees. A survey letter was sent from the Portland JACL to the House Judiciary Committee urging the passage of the Evacuation Claims Act. The numbers submitted were considered the minimum losses incurred by evacuees. The average total loss per family was \$9,361, which included losses in machine equipment, real estate sales and abandonment, business fixtures, furniture, and household equipment. It was also noted that the number of Japanese-run businesses plummeted after evacuation, and many could not reclaim their businesses because of severe financial losses as a result of forced sale of real property, pilferage, and storage losses of perishable products like fruit and vegetables.

The push for compensation of damages brewed through the 1980s in Oregon as the Hirabayashi and Korematsu cases went through retrial. Henry Kane, an attorney from Beaverton and World War II veteran, emphatically opposed compensation, whereas Dr. George Hara, who lived in the internment camp at Minidoka and then served in World War II, was promoting it. Hara called the relocation “a miscarriage of justice,” and said that the Japanese community “went along like docile lambs and cooperated with the United States government to show our loyalty.” Kane claimed the Japanese request for redressing was “a raid on the Treasury.”^[22] Hara stressed that no cases of Japanese espionage were ever revealed in the Pacific Coast states or Hawaii. City Treasurer of Seattle Lloyd Hara stated that the Japanese lost \$260 million in earned wages and income and \$400 million in real estate during their four-year internment. Those numbers translated to \$3 billion in 1981 dollars.^[23] Issei had their assets frozen and confiscated during internment, and so when they returned, they could not access their money right away, creating more suffering and anxiety.

Montana Marumoto’s brother was evicted from his home for being Japanese due to wartime hysteria after Pearl Harbor. Her son Phillip was a student at Parkrose High School in 1963, where a teacher told his class that Japanese-Americans were interned because they were “traitors.” PHS students drew a barbed wire fence on Philip’s locker and wrote “Phil’s Camp” on it. He was beaten, suffering a fractured skull, and then bound, gagged and dragged through the halls of the school. Later Phillip would serve in the Vietnam War.

The periods of World War I and World War II rapidly brought a changing face to the state of Oregon. Many newcomers faced severe challenges due to their ethnic or racial background, and many responded boldly defending their country overseas or on the home-front. They were pioneers fighting for political and civil equality in the state. They tore down laws that formed symbolic walls in residential neighborhoods and the workplace, and made the struggle for equality more compelling. It became necessary to redraw or forge a new identity for Oregonians that embodied inclusion and diversity instead of exclusion and nativism. The latter half of the twentieth century brought fresh challenges to the state of Oregon and its people. The black civil rights movement picked up momentum and became part of an empathetic pluralist vision among Oregonians. The Vietnam War and student protests brought freedom of expression to the forefront as a constitutional right for all Americans. As Oregon evolved during the Vietnam War, Governor Tom McCall supported American intervention but also created a broad environmental protectionist legacy, and thought an American’s personal convictions were their own, and that no government authority should interfere with them.

^[1] Mcelderry, Stuart: “Building a West Coast Ghetto: African-American Housing in Portland, 1910-1960,” *The Pacific Northwest Quarterly*, Vol. 92, No. 3 (Summer, 2001), pp. 137-148

^[2] Jews of Oregon, p. 181.

^[3] The extent of Japanese attacks on Oregon soil was a bomb that had been attached to a balloon that was released into the atmospheric jet stream from Japan that killed three people having a picnic in southern Oregon.

^[5] As of 2019, debates surrounding the removal of multiple hydroelectric dams that are no longer maintained by PacifiCorp continue to call the water rights of Native groups into question. Kaitin Hakanson, 2019.

- [6] Linder, John: "Liberty Ships and Jim Crow Shipyards: Racial Discrimination in Kaiser's Portland Shipyards, 1940–1945," *Oregon Historical Quarterly*, Vol. 120, No. 4 (Winter 2019), pp. 518-545
- [7] Boston Herald, October 30th, 1942.
- [8] Kramer, George: *It Takes More than Bullets: The World War II Homefront in Portland, Oregon* (Eugene, Ore.: Heritage Research Associates, 2006)
- [9] McLagan, Elizabeth: *Peculiar Paradise*, p. 173.
- [10] Linder, p. 528
- [11] Another exception was the International Brotherhood of Electrical Workers. Linder, p. 526
- [12] McElderry, p. 140
- [13] *Memoirs of George V. Sheviakov*, folder, Oregon Historical Society.
- [14] Maben, Manly: *Vanport*, (Oregon Historical Society Press: Portland, 1987) p. 83
- [15] Ibid.
- [16] Peterson del Mar, David, p. 203
- [17] Nagae, Peggy, "Asian Women,"
- [18] Geier, *The Color of Night*, p. 278.
- [19] Hirabiyashi and Korematsu Supreme Court cases contested the constitutional validity of Japanese internment camps, and whether Japanese Americans posed as a "clear and present danger" to American society.
- [20] Pierce, Walter: "Japs in U.S. Must Go, Says Oregon Ex-Governor," *The Japanese Exclusion League Journal*, May 1945.
- [21] Peterson del Mar, David: *Oregon Promise*, p. 224.
- [22] *The Oregonian*, September 11th, 1981
- [23] *The Oregonian*, September 12, 1981.

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1.8: Cold War and Counterculture

Victory for Civil Rights after World War II

The early 1950s marked a series of victories for the civil rights of African Americans and other marginalized people in Oregon. In 1949, a young black woman and her child were forced to sit in the segregated balcony at the Egyptian Theater on Portland's Union Avenue. As a result of this incident a case was built to defeat segregation laws in public accommodations. Attorney Irvin Goodman drafted a statute to end Jim Crow segregation practices in Portland. He helped lead the fight to get it passed by Portland City Council. On February 22, 1950, by unanimous vote, Portland became the second city in the United States to ban racial discrimination in places of public accommodation. The state also prohibited discrimination in employment based on race, religion, color, or national origin, and a commission on intergroup relations was created. Although senators in the state capitol were hesitant, Oregon's miscegenation law from 1866 was repealed in 1951, sixteen years before the U.S. Supreme Court declared interracial laws unconstitutional in the landmark decision *Loving v. Virginia*. A public accommodations law was established in 1953 that forbade discrimination in places of public accommodation like resorts or amusement parks, and established the right of all persons to equal facilities. It was the first major civil rights breakthrough since the 1920s. Some restaurants defied the tenor of the integrationist laws. They still held signs in their windows that read "White Trade Only-Please"; one such restaurant was Waddle's, formerly located near the Interstate Bridge in Portland. Conservative groups, such as the Civil Freedom Committee, sought to oppose the repeal, but they failed to collect enough signatures to get a referendum on the law that was passed by the Oregon Senate.

Residential Segregation and Resistance in Oregon

The Portland Urban League sponsored a visit of Reverend Martin Luther King Jr. to the city of Portland in 1961, and he spoke to an overflowing and receptive audience of more than 3,500 at the Portland Civic Auditorium. He encouraged his audience to fight for civil rights in Oregon by sharing the national progress being made by the Freedom Rides in Alabama and students protesting segregation at lunch counters in Mississippi: "If democracy is to live, segregation must die. Segregation is a cancer in the body of democracy that must be removed if the health of the nation is to survive."

The Portland Urban League was founded in 1945 by a coalition of white and black Portlanders, including Dr. DeNorval Unthank, the Catholic and Episcopal Archdiocese, and the Jewish B'nai B'rith in response to the mounting housing crisis and fears of racial violence in Portland. Some of the coalition represented residents from the Eastmoreland, Council Crest and Grant Park neighborhoods. Dr. Unthank led a committee that investigated the practices and policies of the Portland Housing Authority, stating, "Present policies of tenant selection and placement have resulted in racially concentrated projects," and that "racial concentrations were based on location." The committee argued that the practices of the Housing Authority continued to produce intergroup tensions in Portland.

Edwin Berry, the executive director of the Portland Urban League, lobbied the legislature to adopt the Fair Employment Practices law. The legislature approved the measure, and Oregon became one of a handful of states in the nation to have a law banning employment discrimination. Berry and the Portland Urban League were instrumental in getting the Public Accommodations law passed through an active canvassing campaign. The Portland Urban League declared housing to be its greatest concern that year, and reported racist landlords left African Americans few options in the housing market. Realtors often directed black families to the Albina district, but some families moved in other areas in Portland and were met with resistance in all-white neighborhoods. A World War II veteran moved his family into an all-white neighborhood and had a cross burned on his front lawn. *The Oregonian* newspaper seized on this moment to educate the public on the topic of housing discrimination in their community, and helped bring awareness and get legislation passed. Segregation suddenly became a pressing political issue. As a result the Fair Housing Law was passed in 1957 which allowed blacks to move out of the Albina district to all white-neighborhoods in the suburbs of Portland.

Realtors, banks, and the Federal Housing Authority allowed for neighborhoods in America to practice de facto segregation and Oregon was no exception. In 1919, the Portland Realty Board had declared it unethical to sell property to a "Negro" or Chinese person in a white neighborhood. The realtors allegedly felt it was best to segregate people of color from whites in Portland so as to not cause depreciation in property values in white neighborhoods. The resettlement of Vanport flood victims reinforced patterns of segregation. Most African-Americans in Oregon lived in Portland, and the city's continued neglect of public housing, combined

with discrimination in realty and finance, created a disproportionate concentration of people of color in the Albina district. As more black people moved into the Williams Avenue area, the unofficial name of the city's black district changed from Williams to Albina. By 1960, 80 percent of Portland's 15,000 African American residents lived in the Albina District. The student population of the four elementary schools in the neighborhood, King, Humboldt, Boise and Eliot, were 90 percent black.[1]

De Facto Segregation of Schools

The *Brown v. Board of Education* decision of 1954 broke ground on the desegregation of schools in America. However, states like Arkansas actively resisted against integration of their public schools where a showdown between Governor Orval Faubus, Daisy Bates of the NAACP, and attorney Thurgood Marshall boiled over during the integration Little Rock Central High School. The story drew national attention when President Eisenhower ordered the 101st Airborne Division of the United States Army to escort nine African American students into the building. Whereas Oregonians did not have deeply entrenched segregationist policies in public schools. Josiah Failing, W.S. Ladd and E.D. Shattuck, board members of the Portland Public Schools, established a "Colored School." [2] The segregated school remained open between 1867 and 1872 until thirty African American students were integrated into the Portland Public Schools. Since that time, *de jure* segregation has not existed in the public schools of Portland.

In response to *Brown v. Board of Education*, Portland Public Schools stated they provided equal education in their schools and the issue of segregation wasn't a concern for the district. But *de facto* segregation of African American families existed in the city. By the 1960s, 80 percent of Portland's African American population lived in the Albina district in Northeast Portland, and the African American community only accounted for 3 percent of the state's population. *The Oregonian* noted the Eliot School in Lower Albina had 413 black children, and there are three whites, and one Chinese student in 1964.[3] At the Boise School, the student population was 85 percent African American. The issue of desegregation of schools in Portland remained to be a problem through the 1980s, and the Portland district failed to fully address the issue of segregation and its wider impact on the urban community.

Through the early 1960s, Oregon's black community faced institutional discrimination, which meant black students continued to lag far behind the state's average in education, occupational status, and income. African-Americans who sought to buy homes for their families faced discrimination despite passage of the Fair Housing Law. Another daunting problem for the African American community in Portland, like elsewhere in America, was the displacement families experienced under urban renewal projects. The construction of Memorial Coliseum (the former home of the Portland Trailblazers), Interstate 5, and Emmanuel Hospital destroyed many homes and businesses owned by members of the black community. The Eliot School, a racially concentrated school, was a victim of this form of "urban renewal". The closest school to the Lloyd Center development was the Irvington School. When African American students arrived at Irvington, a few white families transferred their children to other schools in response.



Urban Renewal in Portland: Memorial Coliseum in 1969

Segregation was certainly felt in Oregon's institutions of higher learning as well. In September 1943, Estella Mare Allen enrolled at the University of Oregon and was assigned to a single room as her domicile; she was told it was the only accommodation that was available for a black student. The following year, she was assigned a single room again, so she decided to live with three other female black students on campus. They were assigned an inferior dorm located next to the gymnasium, Gerlinger Hall. When the students complained that their living situation was inadequate and would prohibit their ability to study, the director of the dormitories told the students they would be moved into Susan Campbell Hall, but the white students and their parents objected.

Later in 1946, Barbara Kletzing, a white student, wished to live with Allen. The director of dormitories denied the students' request stating the living arrangement allegedly was illegal according to state law, even though Allen lived with a white roommate the previous year on campus. A new college regulation stipulated that "neither Negro girls or boys will be permitted to room with white girls and boys, and Negroes will be kept to a minimum in the dormitories at the University of Oregon." The University President stated in a letter to Allen, "We reserve the right to place students as we see fit in the dormitories. This policy and interpretation was the result of adverse public opinion concerning minority groups on the campus." He further stated the situation was "too bad" and he was "very sorry [Allen] persisted in making a fuss over nothing." [4] Kletzing, in a statement to the press during the heat of the

controversy stated, “I, as a native white Oregonian, am not convinced however, that the people of Oregon have completely lost the love for individual freedom which they marched across the continent to establish.”

The president of the college, Harry Newburn held his position after inquiries by the NAACP and the Portland Urban League. In a letter to Edwin Berry he defended the college’s actions as legally justifiable: “As I stated to you last year, we believe this is entirely proper and that the long-range solution of the problem will be advanced through such leadership on the part of an institution such as ours. We reserve the right to put people together as we think best for the group and the State of Oregon.” Some white residents of Eugene, where the University of Oregon is located, defended the school’s position and used de facto segregation in the South as a reference point, where they claimed people never hear of complaints of discrimination. They argued that agitation for equal rights and fair treatment would only exacerbate the problem and make people become more prejudiced. This was the customary response among Oregonians who resisted civil rights reform and change throughout the state’s history: don’t upset the apple cart.

Cold War Tensions: Fear of Leftist Subversives in Oregon

The Cold War between the United States and the Soviet Union began with both nations reaching an impasse over the division of Europe and the competing spheres of influence between capitalism and communism around the globe. American diplomat George Kennan was instrumental in creating a world panic over the threat of a Soviet-led imperialism that could control all of Europe and Asia. Kennan stated the United States must meet this threat with an international obligation centered on containment of the Soviet Union.^[5] On the home front, the House of Un-American Activities Committee (HUAC), an investigative committee of the House of Representatives, was created in 1938 to investigate disloyalty among citizens, politicians and organizations considered subversive who supported Fascist or Communist groups. In 1947, J. Edgar Hoover, the head of the Federal Bureau of Investigation (FBI), gave a speech before members of the committee stating the FBI and HUAC are aligned towards the same goals and “quarantine is necessary to keep it [Communism] from infecting the nation.” Hoover targeted liberal policies as “window dressing” for Communist tactics, and the infiltration of communists into trade unions was a grand design of Lenin and Marx. Hoover called out the AFL and CIO to be on the alert for these threats, and the unions dutifully heeded the warning.

The CIO convention in Portland the following year became an orchestrated purge, and all unions suspected of having Communist ties were expelled from the organization. In 1949, the Oregon legislature barred all persons “linked to Communists” from state employment, and a “loyalty oath” was included in job applications. It was part of a larger national trend where employees across industries—teachers, physicians, journalists, scientists, tradespeople, and others—were mandated to sign loyalty oaths or affidavits, or face termination from their jobs. The Oregon legislature tried to purge those labelled “subversives” who held beliefs perceived hostile to the government by barring them from employment in Oregon. The thought was that without a stable job, they would be more likely to leave the state. Laws designed to protect Americans from communism were based on the legal precedent of the Espionage and Sedition Acts of 1918, that a person’s beliefs could be considered a “clear and present danger” to national interests. When the Espionage and Seditions Acts were passed into law, the FBI began a lengthy tenure of intensive surveillance of American citizens that lasted until 1971. Under the guise of the “clear and present danger” principle initiated during the time of the Russian Revolution, internal threats could be associated with forms of political thought that were inimical to American power, and those expressing criticism could be labeled as criminals as seen in the Oregon Criminal Syndicalism law of 1930.

Entering the 1950s, Joseph McCarthy, the junior Senator from Wisconsin, became the face of HUAC. His name became associated with character assassination, libelous slander, and the destruction of peoples’ careers and reputations. He was known for his \$64,000 question “Are you now or have you ever been a member of the Communist Party?”, and if Americans refused to answer, they could be prosecuted and arrested for contempt of Congress. Supreme Court justice William O. Douglas associated McCarthyism with the “Black Silence of Fear” which was a landmark article in the *New York Times* assailing anxieties unleashed during the age of McCarthyism and its Great Inquisition. He warned Americans about arrogance, intolerance and militarism as grave threats to democracy and the free exchange of ideas. Douglas emphasized Stalinist communism prohibited the free marketplace of ideas and enforced state party orthodoxy. In America, fear guided lawmakers and citizens, and those who veered away from ideological orthodoxy were pilloried by the community. Douglas was an ardent supporter and defender of First Amendment rights. During his career on the bench at the United States Supreme Court, two attempts were made to impeach Douglas; one of those efforts was led by United States Representative Gerald Ford. Justice Douglas questioned the excesses of the containment of Communism in foreign policy and attempted to halt the bombing of Vietnam by U.S. war planes. Douglas also had a love for the natural beauty of the Pacific Northwest and Oregon. He admired the groundbreaking work of scientist Rachel

Carson's *Silent Spring*, an expose on the dangers of pesticides, and supported environmental causes in Oregon such as reducing pollution of the Willamette River and the preservation of Waldo Lake in Oregon.



Justice William O. Douglas leading a hike on the C & O Canal

HUAC hearings took place in Portland in 1954 to investigate and expose American citizens who were suspected of being communist subversives, or demonstrated opposition to any form of investigation of the “Communist conspiracy”. Four Portland residents, all World War II veterans, were arrested for failing to cooperate with HUAC. Linus Pauling, the Nobel-winning chemist who taught at Oregon State University, wrote a public statement condemning the persecution of Dr. J. Robert Oppenheimer. He had been suspended from the Atomic Energy Commission, by HUAC, because they claimed he posed a security risk. *The Oregonian* slammed Pauling for his “fuzzy thinking” on Dr. Oppenheimer, and felt those associated with communists were most likely corrupted by them.

Politicians opposed to civil rights often associated the movement with Communist sympathies and advocacy. Southern conservative congressmen preyed upon the idea that subversives were controlling the civil rights movement. They claimed alien elements with radical ideologies brought racial discord into Southern states that “Russia is directing the civil rights campaign to create a ‘great brown race’ in the South,” where communism and integration were considered “inseparable.”^[6] J. Edgar Hoover of the FBI was also a proponent of the idea that civil rights and communist subversion were interconnected, and during the 1960s, the FBI engaged in efforts to monitor and disrupt the civil rights movement, especially the Southern Christian Leadership Conference (SCLC) and its leader Rev. Martin Luther King who the FBI viewed as “a likely target for Communist infiltration.”

The NAACP and the civil rights movement in Oregon continued its efforts to separate itself from Communists by declaring, “The Association will employ every reasonable measure in keeping with democratic organizational principles to prevent the endorsers, the supporters and defenders of a Communist conspiracy from joining or participating in any way in the work of the NAACP.”^[7] The civil rights movement proceeded with caution due to Cold War tensions and conservative movements like the John Birch Society that opposed liberalism and social reform.

Julia Eaton Ruuttila participated in a City Hall demonstration for victims of the 1948 Vanport flood, many of whom remained homeless or had been assigned trailers by the Housing Authority of Portland. It became known to the protestors that the Housing Authority of Portland had been looking to close Vanport after the war, and board members wanted to eliminate it. Groups that supported the Vanport flood victims included the Oregon Wallace for President Committee, the Oregon CIO council, and the Oregon Communist Party along with the Oregon State Grange. The protest had interracial unity, and even achieved notoriety among celebrity activists. The actor and singer Paul Robeson, who later in his career was labelled a “communist subversive”, visited Portland to show his support for the refugees of Vanport. Several onlookers remarked at the demonstrators, “Why don’t they go back where they came from?”^[8] Because of her association with the vanguard of the old left of Oregon, Ruuttila was attacked by members of the local media, such as S. Eugene Allen, editor of the Oregon Labor Press, who scathingly denounced her as “another energetic little lady who promotes the Communist Party line.” She was fired from her secretarial job at the Multnomah County Public Welfare Commission two weeks later for her involvement in other demonstrations associated with leftist groups. These activists were becoming increasingly targeted and alienated during the age of McCarthyism.

Julia Ruuttila was an advocate for social justice, known for her leftist beliefs and a devoted union-labor activist. She was subpoenaed to appear before the HUAC in Seattle in December of 1956 while she was living in Astoria. She was called before HUAC who questioned her writings in Communist newspapers that criticized actions of the American government. Congressman Gordon Scherer of Ohio asked Ruuttila if she opposed the Soviet actions in Hungary, and she stated she did. She was then asked if this caused her to want to break from the Communist Party. Richard Arens, the head attorney of HUAC, asked Ruuttila if she wanted to apologize for anything she has written. During the hearing, she was accused of being one of the “principal propagandists in the Northwest Communist conspiracy” because of her work to unionize lumber mills throughout the region. She invoked her

fifth amendment rights and declined to state whether she was active in the Astoria and Clatsop County Committees for the Protection of the Foreign Born.^[9] Work in this organization was directed at reforming the McCarran-Waters Immigration Act, which barred suspected Communists from entering the country.

Anti-Communism and the John Birch Society in Oregon

Oregon held conservative momentum to counterbalance liberal, progressive, and radical ideals entering the 1960s. The John Birch Society (JBS) claimed a few thousand members in the state of Oregon. Its founder, Robert Welch, spoke to audiences at Cleveland High School in Portland in 1966. The John Birch Society was a self-avowed anti-Communist group who stood opposed to leftist views, even considering the United Nations a “Communist instrument to control the world”. The group would pick up from where the Red Scare and antagonism of the House of Un-American Activities Committee had left off in the previous decade.

Wallace Lee organized the John Birch Society in Oregon in 1959, and there were chapters in Grants Pass, Medford, Eugene, Newport, Lebanon, and Portland. The largest percentage of Birch members belonged to evangelical and fundamentalist Protestant Christian denominations. Early members included business executives and working professionals; by early 1961, the Oregon JBS had a dozen chapters, with four in Portland alone. In Eugene, the JBS fought against fluoridation of water, the United Nations, and radicalism at the University of Oregon which came to a head while Thomas McCall was governor. The Birch Society reached its peak nationally in the mid-1960s, but left a lasting impression in American political thought for decades.

Drawing from the legacy of McCarthyism, the JBS fueled the resurgent conservatism of the 1960s and was an ideological conduit for the New Right of the 1970s. President Richard Nixon led a grievance movement among American conservatives who he called the Silent Majority. They experienced a historical reckoning when the construction workers union assaulted student protestors on the streets of Manhattan and resisted against flags that were lowered in the wake of the Kent State University shootings on May 8th, 1970.^[10] The Building and Construction Trades Council was led by Peter Brennan who was instrumental in fomenting the counter-protest and with support from the Nixon administration, union stewards were telling workers to join the fight.

John Birchers embraced the film *Operation Abolition*, which was produced by HUAC and J. Edgar Hoover of the FBI, and held viewing parties for educational purposes. The film claimed “violent prone leftist radicals” under Communist influence wanted to destroy HUAC, to discredit the FBI’s “great director” J. Edgar Hoover, and “render sterile the security laws of our government.”^[11] John Birchers opposed the Civil Rights Bill of 1964 advocated by Reverend Martin Luther King, Jr. The John Birch Society became a living relic of the Cold War, with small chapters and a few American Opinion bookstores surviving past the year 2000 in places like Grants Pass, Hood River, and Portland.

The John Birchers built upon a historical, ideological trend that linked anti-radicalism with social conservatism. They seized upon an increasingly polarized American society caused by rifts due to Cold War political and social anxieties, and the conservative backlash against the civil rights movement. They proclaimed “no compromise and no coexistence” with those who were their sworn enemies. Anti-communism, disillusionment with the Eisenhower administration, and a concern about social issues brought John Birchers of Oregon together. Many felt President Eisenhower had allowed liberalism and Communist supporters to capture the Republican Party. Robert Welch labelled the president “a dedicated, conscious agent of the Communist conspiracy.”^[12] Senator Joseph McCarthy of Wisconsin, one of the primary architects of the second Red Scare agreed with that statement, and helped spread that rumor.

Urban Renewal and the African-American community in Portland

In the late 1960s, patience wore thin among the black community of Portland, and other American cities, with discrimination in housing and employment, destructive urban renewal projects, and police brutality. Portland experienced civil disorder during the “Long Hot Summer” of 1967 along with other cities around the United States, with race riots in the Albina District. In 1968, the Kerner Report on Civil Disorders set up by the Johnson administration in the wake of the race riots, declared the nation was moving toward two separate societies, white and black, and separate and unequal. The City Club of Portland the same year released the *Report on Problems of Racial Justice in Portland*. It documented evidence of racial discrimination and that “causative conditions persist to the present and demand action.” A section of the report titled “Police Policies, Attitudes and Practices,” stated that the Mayor of Portland and Chief of Police thought the findings of the Kerner Report didn’t apply to Portland, and went on to indicate that reform in the police department would be impossible until there was “a fundamental change in the philosophy of officials.”^[13]

City planners and developers also contributed to the alienation of residents of the Albina District with destructive urban renewal projects, such as the Lloyd Center Mall and the Memorial Coliseum. African-Americans were increasingly frustrated by the demolition of hundreds of their homes and businesses to make way for events centers, highways, and public works projects, like Emmanuel Hospital. This created a diminution of faith in public officials. In all, the urban renewal projects of the Albina District wiped out the densest concentration of African-Americans and their community in Oregon. More than 600 homes were destroyed, along with the Bethel African Methodist Episcopal Church, which was the second oldest church in Portland, and many black-owned shops and businesses. Dr. DeNorval Unthank's medical offices were destroyed on *two* separate occasions by urban renewal projects.

The City Club report cited that in Portland, "substandard housing conditions exist most notably in the Albina district, but also in the southwest region of the city. There are mounting concerns over unsound and substandard buildings, fire conditions, sanitation issues and vermin, as well as litter." [14] For the disenfranchised black community of Portland, rental homes and apartments were hard to find, real estate brokers were not color blind to potential renters, and lenders were reported as preferentially lending to whites over blacks of comparable financial standing. People of the black community were often told housing was not available, or that property had been taken off the market, or that another person had claimed a deposit and they would be called if the loan application did not go through. Blacks, in contrast to whites, were placed at a disadvantage in negotiating for purchase of property and subjected to a so-called "black tax," which was not technically a tax, but did ensure that their offers could be refused if below the asking price, even though the majority of sales to whites was made below the asking price. Some real estate brokers harbored discriminatory attitudes and felt working with the African-American community would stigmatize their business interests. Some businessmen were hesitant to hire African-Americans even though most of their customers were black. Financial institutions were reluctant to offer business loans to African Americans as well. "[African Americans] cannot get a loan to start a business," stated J. Allon Page, assistant chief investigator for the State Department of Justice, Welfare Recovery Division. "The financial institutions have offered woefully inadequate opportunities to experienced qualified blacks who want to go into business." [15]

Radical Movement in the African American community

In the latter half of the 1960s, the black radical movement began to pick up momentum in various American cities, including Portland due to mounting frustration, disillusionment and resentment. The Portland Black Panther Party (BPP) was a part of the radical protest movement in Oregon during the 1960s and 1970s. Radical political groups in America like the Weathermen, an anarchist terrorist group, were bombing buildings and had aspirations to destroy the techno-capitalist system. The Black Panthers were not an anarchist terrorist organization. Their motivations were based on racial pride and preservation: African Americans' first and second amendment rights (freedom of speech and right to bear arms), resisting police brutality, and providing social services such as free breakfast programs for children and healthcare. The party acquired its name from the work of Stokely Carmichael, a black leader, who became a prominent force in the civil rights movement in Alabama, a Jim Crow state, getting the vote out to disenfranchised blacks. The black panther symbolized the potency of the black franchise and a renewed activism in the African American community. Like many other radical protest groups, the BPP started in Portland because the black community had lost faith in public officials and held deep resentment towards the police. There was a lack of black representation in law enforcement, and white officers often used violence towards the African American community. There was a short lived Black Panther Party in Eugene as well.

African American radicals paid a price for their outspokenness, especially if they joined the Black Panther movement. The Portland Police after the Albina riot of 1967, bore down with increased surveillance on activists, their friends, and families in the Albina District. The Intelligence Unit of the Portland Police Department monitored all their movements where an Albina resident commented, "We feel like we are being watched all the time." [17] At the federal level, the FBI declared war on activists when J. Edgar Hoover expanded the domestic counter-intelligence program (COINTELPRO). The program primarily targeted leftist groups along with the Ku Klux Klan as hate groups. COINTELPRO sought to "expose and disrupt" black nationalist groups like the BPP as "hate-type organizations." COINTELPRO designated resources to the local Portland FBI office and they coordinated efforts with the Portland Police to suppress the Panthers. Whereby spying on political organizations like the BPP was considered a legitimate police function and in a 1966 survey, police officials felt keeping track of subversives was the eighth most important responsibility of the police, above "traffic duties" and "helping little old ladies." [18]

Originally the BPP started as a branch of the National Committee to Combat Fascism. The Portland BPP represented the black residents of the city who openly opposed city government and demanded complete control of the Albina District. Student protestors

at Portland State University sided with their goals and were influenced by the activism and ideological underpinnings of the Portland BPP. The Portland Panthers chose to tackle such issues as poverty, use of extralegal force by police, inadequate health care services, general disfranchisement, and substandard educational opportunities. The Portland FBI office tried to persuade doctors to stop volunteering at the Black Panthers' health and dental clinics.[19] People from the African-American community remember the Black Panther health, breakfast, and tutoring programs, while white residents and law enforcement officials saw the BPP as a threat to society that had to be removed. Kent Ford, a leader of the Portland Black Panthers, remembered "being hunted" and recalled long nights sitting "at the front door with a shotgun, waiting for a raid". FBI agents and the Portland Police not only sat outside of Ford's home, but approached and harassed their friends, families, and employers, as well as infiltrating Panther meetings.

Student Protests during the Vietnam War

A blossoming student protest movement representing a reconfiguration of the New Left swept across colleges and universities throughout the United States as the nation was pulled deeper into the Vietnam War quagmire. Some of the foundational elements that propelled the student movement were Tom Hayden, founder of the Students for a Democratic Society (SDS) and author of the Port Huron Statement, Mario Savio, a key member of the Free Speech Movement at the University of California at Berkeley, and Ella Baker who mentored student activists like Diane Nash, Stokely Carmichael and organized the Student Nonviolent Coordinating Committee (SNCC). All of these civil rights pioneers envisioned American colleges and universities as epicenters of empathetic cultural and cognitive change built on interpersonal relationships and a rejection of autocratic rule in societies and school administrations. Under their vision, institutions of higher learning served as crucibles of social reform and progenitors of authentic democratic values. Groups like the SDS and SNCC were making impactful strides in the civil rights movement through sit-ins at lunch counters and Freedom Rides. Students, professionals, clergy and others were devoted to non-violent protest and civil disobedience as catalysts for public awareness and engines of change. New York City, Portland, Oregon and Berkeley, California earned notoriety for their burgeoning counterculture movements. Columbia University, UC Berkeley and Portland State University were hornets' nests of student protest and activity. According to the police, "Kids were flocking to Portland from everywhere in the country...where they could indulge in drugs like LSD and marijuana." [20]

The University of Oregon was impacted by the international New Left movement that swept across college campuses. Dr. John R. Froines was a professor of chemistry at the university. He, along with Tom Hayden, were part of the Chicago Seven who were accused of conspiracy and inciting a riot. They were also charged with crossing state lines to conspire to commit violence in a series of protests at the 1968 Democratic National Convention. Froines was acquitted of conspiracy at the infamous Chicago Seven trial in which Federal District Judge Julius Hoffman had Black Panther Party chairman Bobby Seale gagged and bound to a chair. Dr. Robert Clark, University of Oregon president, found no grounds to dismiss the professor from his academic duties. He stated, "Froines did not incite students to action prohibited by law or by the disciplinary code," and that "conduct flagrantly unbecoming a faculty member" was not a sufficiently objective standard to be used in charges leading to dismissal.[21]

Clark defended Froines's right of protest as a protected constitutional right scripted by our forefathers. He quoted Thomas Jefferson on the freedom of speech at the University of Virginia: "This institution will be based upon the illimitable freedom of the human mind. For here we are not afraid to follow truth wherever it may lead, nor to tolerate error so long as reason is left free to combat it." Oregon State representative Stafford Hansell, a Republican rancher from Hermiston, demanded that Froines be removed from the faculty. Hansell stated the support of student militancy and the Black Panthers had "given the state of Oregon a real black eye throughout the nation." [22] Hansell, along with State Senator Lynn W. Newbry of Talent, Oregon, visited the campus of Oregon State University to tell faculty members that Oregonians were frustrated with their inability to instill discipline among the students. Disorders and violence had caused a deep-seated bitterness in the people of Oregon. Newbry told the faculty that he and Hansell were not there to tell them how to do their jobs, "We are here as legislators to help you people solve these problems." He went on to say, "The general public does not understand higher education and the fact remains that they are deeply incensed by what is going on." [23]

Governor Tom McCall released a press statement explaining that Dr. Froines, although he made a number of speeches advocating for the closure of a number of universities, had broken no laws and was able to remain at the university. Privately, McCall felt that Froines had "engaged in conduct contrary to the best interests of the system of higher education and inconsistent with his continuation as an employee. I feel a sense of frustration. I know what should be done, but there is no legal way this can be accomplished." [24] The State Board of Higher Education was formulating a new code of conduct for faculty members and Governor McCall tried to leverage the changes, stating Froines was being put on notice, "he must conduct himself as a responsible

member of the faculty, or else be subjected to immediate disciplinary action.” Froines said in response, “McCall is running for reelection this year. He obviously has made the decision that I’m a profitable campaign issue, and that political repression against me will result in his election.”^[25] Eventually Dr. Froines was terminated from his tenure at the University of Oregon on June 30, 1971.

There were a series of student-led protests on college campuses between 1968 and 1970 at the University of Oregon, Portland State, Treasure Valley Community College, Reed College, and Oregon State University—where the ROTC building was firebombed. Governor McCall consistently distanced his political ideology from the far right and castigated Vice President Spiro Agnew’s incendiary attacks against student protestors by claiming, “Much of the spirit of unrest had been engendered by the Vice President’s unceasing attack on younger Americans...a steadily sarcastic running down our youth by a high official is hardly what this nation needs.”^[26]

Blowback Against Student Protests

Not all students advocated or supported the actions of the ascendant New Left, and many felt their right to an education was being taken away or disrupted by the hyper-political atmosphere. Oregon conservatives pressured Governor McCall to consider a petition for a Teacher Investigation Law, which would have created grounds for termination of faculty whose conduct was “flagrantly unbecoming.” Business owners in Eugene wrote to McCall stating, “Students radicalized by faculty” were a threat to society, and they were “pill popping, LSD taking, influenced by the radical anarchistic speakers that the University seems to attract in the name of civil liberties or individual freedom.” Ultimately, many in Oregon felt “evil teachings should have no place in the educational system.” McCall received many petitions demanding the removal of faculty. The petition stated in its introductory heading,

“As a member of the Silent Majority a voter and taxpayer of the state of Oregon, I am angered and appalled at the state of anarchy that exists at our Universities and colleges. Any student participating in a demonstration that is prohibited by the rules of the member aiding or abetting in an organized protest, and any administrator who does not enforce the law should be terminated.”^[27]

The blowback against the student protest movement was led by a conservative resurgence with the election of President Richard Nixon who addressed middle and working class Americans as part of a Silent Majority in 1969: “If a vocal minority, however fervent its cause, prevails over reason and the will of the majority, this Nation has no future as a free society.”^[28] Nixon presented student protestors as an existential threat to the country. He repeated that message the following year when he announced the United States was expanding the war into Cambodia. “We live in an age of anarchy, both abroad and at home. We see mindless attacks on all the great institutions which have been created by free civilizations in the last 500 years. Even here in the United States, great universities are being systematically destroyed.”^[29] The next day, four million students went on strike across American campuses, and on May 4th, the Ohio National Guard opened fire on protestors at Kent State University killing 4 students and injuring nine. Two weeks later, city and state police opened fire on students at Jackson State University killing two and wounding twelve, and about 400 bullets or pieces of buckshot were fired into the dormitory building, Alexander Hall at Jackson State.

Other Oregon politicians caught on to the furor to remove noncompliant faculty and instill law and order on college campuses. State representative Gerald Detering on May 15, 1970, the day of the Jackson State killings, pleaded for more law and order policies on Oregon college campuses:

“[The] Board of Higher Education [should] measure up to their obligation of providing law and order on the campuses of state supported institutions of higher learning, investigate with full authority to deal with and remove if necessary such faculty members who cooperate, aid or abet, and to participate in campus uprisings, most activities or other lawless actions that may or could require the presence of police or other law enforcement personnel.”^[30]

Police Clash with Students at Portland State University

Historians have noted the class divide between law enforcement personnel and their families, and the student protestors who were active during the Vietnam War. The students of the New Left typically were middle-class whites who came from a more privileged background, compared to the working-class families of police officers. This class division was felt when police violently engaged student protestors on the campuses of Columbia University and Portland State University.

Previous to the police attacks on the student protestors, a number of Portland State University students met on May 4th, 1970, to discuss a student strike in response to the United States' involvement in Cambodia. A group of students began to formulate plans for the strike with the idea of focusing attention on the President's action in Cambodia and to "help make the classroom activities more relevant to the troubles of the world."^[31] Students focused their strike on four issues: the bombing of Cambodia, the shipping of nerve gas into Umatilla, Oregon (Governor McCall also opposed it), the death of the students at Kent State, and the trial of Black Panther Bobby Seale. The weekend after the Kent State shooting, a coalition of Portland State and local activists staged rallies and marches into downtown Portland. The colleges of Lewis and Clark, Marylhurst, and Portland Community College remained open during this time. The student strike swept through the campus in downtown Portland, and thoroughfares and roads were barricaded by the students. The Park Blocks barricades became "communities of brotherhood," and symbolized the spirit of the student strike and resistance. The barricades were given different names, like Fort Tricia Nixon, Freedom Suite, Katanga Junction, and Bobby Seal Memorial, which changed its name after a garbage truck smashed through it; it was renamed Wipe Out Alley.^[32]

On May 11, 1970, the Portland Police Tactical Operations division descended onto the South Park Blocks, clearing the area of makeshift barricades. Nearly 170 police officers attacked strikers and supporters as the students linked arms around a hospital tent. The students were attacked by a marching wedge of police officers armed with riot sticks. The officers clubbed and punched anyone in the park not wearing a police uniform. No one was spared; officers even bludgeoned a student on crutches. The action sent thirty-one people to the hospital. Tom Geil, a student taking photographs for the *Vanguard*, Portland State's student paper, captured on film baton-swinging police officers assaulting student protestors on campus. "I just felt this anger...I never thought they would actually go in and start hitting people." Similar to the Kent State and Jackson State shootings, the violence at Portland State lasted less than two minutes.

Dr. Gregory Wolfe, the president of Portland State indicated, "The university did not call the police. In fact we were attempting to persuade City Hall to postpone their actions when the order to move was given to the Police Tactical Squad."^[33] It was later revealed that Portland Mayor Terry Schrunk played a major role in the police suppression of protestors. Political pressure had been mounting from citizenry, state officials, and Portland State students, who were outraged by the peaceful demonstrations at PSU. Mayor Schrunk was getting calls from "substantial businessmen who offered to get their shotguns and chase those people out."^[34] Frustrated students and citizens demanded that campus be reopened and the barricades be taken down, and the mayor agreed. The original settlement between the university administration, and the mayor's office was that the barricades would be taken down with a "symbolic" number of police in attendance, twelve or so, not 170.^[35]

After investigations were conducted regarding the police melee at Portland State, several conclusions were made. There was no evidence students were rioting when the police riot squad engaged with the students. All evidence indicated there was relative quiet on both the campus and the Park Blocks prior to the arrival of the riot squad. The police were supposed to be there to assist Portland Parks Bureau with the removal of the barricades, but it was the decision of Mayor Schrunk and the chief of police to remove the hospital tent, inciting the violent encounter. In the final report by the Police Relations Committee, they found the students were not rioting; they were merely dissenting:

"We have found that the police erred in the method used to remove the tent. The [riot] squad resorted to violence in a non-violent situation. In other words, there were other alternatives at the disposal of the police other than the use of force. The most obvious would be to place those who resisted under arrest. We have been unable to find any justification for the use of force by the police as their first step in removing the tent. Neither the law nor standard police procedures can be used to condone unprovoked and unnecessary use of force by police officers."^[36]

Resentment brewed among Portland State students, and a small group discussed retribution for the police beating in the Park Blocks. President Wolfe told Mayor Schrunk, "The circumstances did probably more to create a sense of bitter reaction among students who had been hitherto uninvolved, than anything else that could have happened." Robert Low, vice president of the college, denounced the incident as "unnecessary violence."^[37]

After the clash with police in the Park Blocks on May 11, there was another protest parade the following day. By the end of the week, 3,000 marchers assembled around City Hall, but Schrunk refused to meet with the protestors. He stated in a press conference, "I am very proud of the actions of the Bureau of the police, the calm they have displayed in the face of obscenities...I am sorry that any blood was spilled, but I also want to point out to the press and the people of Portland there was some phony activities up there. There was some red dye used in some areas." A local newsman from the KGW TV station asked the mayor,

“You spoke of phony activities on the part of the demonstrators. When a police officer knocks down a girl and straddles her and beats her with a club again and again while she is down, is that a phony activity on the part of the police office?” The mayor quickly responded, “I didn’t see it and it’s certainly hard to believe,” to which the reporter interrupted, “We have film.”[38]

In the aftermath of the Portland State melee, A. Lee Henderson, the minister of the Bethel African Methodist Episcopal Church, empathized with the students who were victimized by police brutality as something he is very familiar with:

“In our own city the local police mishandled the ‘Albina disturbance’ in June 1969 and also at Portland State. There was a slight difference this time at Portland State it was against white people. We are praying that this city, nation, and world would come to realize that black lives are as precious as white lives.”[39]

Vortex I Concert and War Protest

McCall worried about the divisiveness of the era and its potential explosiveness. “We are in danger of becoming a society that could commit suicide.”[40] Privately he supported the Cambodian invasion, but he also stated his outrage to Vice President Spiro Agnew: “The nation will not stand for our straying into a new bottomless quagmire in Southeast Asia.” Senator Wayne Morse of Oregon was an early opponent of the Vietnam War and was one of only two senators who voted against the Gulf of Tonkin resolution in 1964, which gave President Johnson and the executive branch unfettered authority and decision making power during the war. Morse stated that, “President Nixon has conducted the war with dishonor. He talks about peace with honor. Let us face up to the fact that we have a President who has waged war with dishonor to the everlasting bloodstain of this republic.”[41]

McCall was sickened by the police violence at Portland State. In June 1970, FBI agents arrived at the governor’s office for a meeting with McCall. They informed the governor they had received word from the Portland FBI that 50,000 young people calling themselves the People’s Army Jamboree were planning to descend onto Portland to protest a visit from President Nixon. The president was giving the keynote address at the national convention of the American Legion in Portland. The Legion was the largest veteran’s group in the nation, and they anticipated 25,000 Legionnaires showing up to the convention. Officials feared the two sides would have erupted into a massive violent riot. According to the Portland FBI, this would have made the Democratic National Convention in Chicago “look like a tea party.”[42] Declassified FBI records showed that local agents’ alarm over a possible clash of the titans between the two polarized groups was greatly exaggerated; the People’s Army Jamboree was a much smaller group than what the Portland FBI had suggested. Most of the intelligence of the Portland branch of the FBI was gathered from the *Oregon Journal*, the Portland State student newspaper the *Vanguard*, and informants on the PSU campus. Students protesters could not have organized a People’s Army Jamboree of that size, and yet the leaders of the group enjoyed the press they received and exploited it. People’s Army Jamboree literature whipped up animosity among members of the New Left. “The American Legion claims to stand for 100% Americanism and to [us] this means standing for the worst in America...In New Orleans in 1968 at the American Legion Convention, drunken legionnaires went on a rampage in the hip community, busting up head shops and beating up longhairs.”[43]



Two prominent members of the People’s Army Jamboree, Robert Wehe and Glen Swift, visited the governor’s office to propose their plan to state official Ed Westerdahl. The People’s Army wanted an alternative to a possible clash with the American Legion, and the proposal was a rock concert, like Woodstock, to be set up near Portland. The festival was called “Vortex I, A Biodegradable Festival of Life;” and was held at McIver State Park in Clackamas County, thirty miles southeast of Portland in the town of Estacada. A flyer for the concert event read, “The first bio-degradable festival of life laying the groundwork for a totally free, harmonious and ecological celebration of life. Not American life, not human life, but all life.”[44]



Vortex I Concert Attendees

The festival seemed to solve a potentially major problem. The plan for Vortex was that the state promoted and managed the operations of the concert. When the plan was presented to McCall, his initial reaction was, “Westerdahl, are you crazy? Are you out of your goddamn mind?” After he calmed down and thought about it, McCall committed himself to the political gamble of supporting the festival, even with an upcoming reelection bid on the line.^[45] Residents of the logging town of Estacada fumed over the plans for Vortex. The governor received angry phone calls from citizens, including a woman who thought the best way to solve the problem of the protestors was to shoot them.^[46] Letters came pouring in to the governor’s office from around the state. One from Estacada said, “It is unbelievable that the highest office in our fair state is sanctifying a drug party—Vortex I. The prospect of letting even one hippie contaminate [McIver State Park] it makes us ill, let alone a band of thousands of them for days.” Residents and the press called it a “bread and circus provision” comparable to the days of the Roman Empire.

City officials in Portland were apprehensive about the Portland FBI office stating “a working figure of thirty thousand in the People’s Army Jamboree is not at all unreasonable,” which contrasted from J. Edgar Hoover’s analysis which did not consider the situation as dire or a massive security threat. Nevertheless, McCall was not going to gamble during an election year. There was a push to provide other means than simply a state-sponsored rock festival to prevent violence and chaos. State and city government felt the city should not avoid developing additional plans for facilities and defusing potential violence. The National Guard were put on call and were conducting exercises in Portland which heightened alarm and anxiety throughout the city. The containment of the Vortex situation was officially known as *Operation Tranquility* to the Oregon National Guard.^[47] The American Legion president, J. Miller Patrick, exacerbated the situation and increased people’s anxieties by declaring that the National Guard should be armed and prepared to fire. “Until we treat [protestors] as common criminals, we will never solve the ills of this country,” he said.

McCall was able to take advantage of the impending encounter between the People’s Army and the American Legion. He gave a widely televised speech defending the First Amendment rights of the protestors, and an unrelenting stance toward putting down violence and the forces of anarchy. He defended the Vortex plan as a necessary security measure for the sake of public safety. About 3,000 Oregon Guardsmen were deployed in downtown Portland under orders from the governor “to use minimum force required to accomplish their objective. I stated long ago that I did not intend to see another Kent State episode in Oregon.”^[48]

During the course of the week-long rock festival, which ran from August 28 through September 3, police officers assisted concertgoers to the site, and people were allowed to have free reign over certain non-violent offenses like public nudity and drug use. Another music festival called Sky River took place in Washougal, Washington, about thirty miles east of Portland. Estimates were that approximately 50,000 concert goers attended each event. At one point, a group of the People’s Army came close to a clash with Portland City Police, but an elderly woman intercepted the police and waved her finger at them stating, “Go back, you police just make trouble. Why, you even incense me.”^[49]

In the end, McCall’s gamble paid off. Vortex I was a success and remains the only state-sponsored rock festival, and McCall easily won reelection. Letters came into the governor’s office supporting his decision for the Vortex plan, and they far outweighed the letters in opposition. Opinions varied throughout the state indicating less political polarization between urban and rural Oregonians; whereas today, the political divide between urban and rural sectors is more glaring and rigid. Some of the praiseworthy letters complimented the governor, “Stroke of genius...let’s have another Vortex festival next year.” Whereas opponents stated, “You are letting the degenerates dictate to you...We have the same policy (appeasement with Hitler) with the scum of the earth known as hippies.” McCall responded to letters with the default refrain that in the end of the potential crisis, there was “a single broken window, and no broken heads.”

During the protest movements that were unleashed during the Vietnam War, Portland and Eugene became epicenters of countercultural activity with coffeehouses, rock concerts, communal living, and other forms of the blossoming counterculture. Ken

Kesey, an author who lived in Oregon after attending Stanford University in California, helped inaugurate the counterculture movement and its psychedelic culture through his enduring relationship with the rock band The Grateful Dead. Kesey wrote such classic works of the latter twentieth century as *One Flew Over the Cuckoo's Nest* and *Sometimes a Great Notion*. Both novels were transformed into Hollywood films that were shot in Oregon. These cinematic events further put Oregon on the map of the counterculture movement and brought an alternative option to migrants from other parts of the nation seeking solace in a “hippie” environment.

Milos Forman, the director of the movie *One Flew Over the Cuckoo's Nest*, upon the invitation of the Superintendent of the State Hospital of Oregon Dr. Dean Brooks, was allowed to shoot the film on the campus of the Oregon State Hospital while patients resided there. Forman lived at the Oregon State Hospital for six weeks, along with the actors. Dr. Brooks allowed Forman to study the cases of several patients. Jack Nicholson, one of the actors in the film, witnessed electroshock therapy being administered to a patient at the hospital, and stated the experience completely transformed him. Many film viewers gravitated to the dilapidated condition of the buildings, which were assumed to be props, not actual dwellings for people who lived at the Oregon State Hospital. Dean Brooks argued that the film was not controversial but instead “exploded into consciousness the things we have refused to look at.” Michael Douglas, the producer of the film, stated that *Cuckoo's Nest* “was an allegory about life in an authoritarian structure. It was not an attack on mental institutions.” Yet, Oregon ranked in the bottom half of the fifty states in terms of the quality of its mental health services. Regardless of Douglas's allegory, the film put a dark cloud upon the historical memory of Oregon's mental health services and institutions. The end of the twentieth century marked a requiem for the Fairview Training Center in Salem, and an exposure of malpractice and violation of patients' rights at the Oregon State Hospital.

At the end of the twentieth century, Oregon emerged as a state built on progressive values toward human diversity and inclusion. Like other parts of America, the formative years of the counterculture and the Civil Rights Era began to mark indelible political divisions between rural and urban America, and Oregon was no exception. Cultural wars pitted environmentalists against the logging and mining industries, and marginalized groups came under attack such as Hispanics and the gay community in the coming decades.

- [1] Serbulo, Leanne and Gibson, Karen: “Black and Blue: Police-Community Relations in Portland's Albina District, 1964–1985,” *Oregon Historical Quarterly* , Vol. 114, No. 1 (Spring 2013), pp. 6-37
- [2] Johnson, Ethan and Williams, Felicia: “Desegregation and Multiculturalism in the Portland Public Schools,” *Oregon Historical Quarterly*, (Volume 111, no.1, Spring 2010)
- [3] *The Oregonian*, September 15th, 1959.
- [4] Stella Maris House Collection, University of Oregon folder, OHS: MSS 1585, Box 3.
- [5] Later in his career he stated that containment policy was not the correct approach.
- [6] Brown, Sarah Hart: Congressional Anti-Communism and the Segregationist South: From New Orleans to Atlanta, 1954-1958,” *The Georgia Historical Quarterly*, Vol. 80, No. 4 (WINTER 1996), pp. 785-816
- [7] Resolution NAACP Convention, June 26th 1956.
- [8] McElderry, Stuart: “Vanport Conspiracy Rumors and Social Relations in Portland, 1940-1950,” *Oregon Historical Quarterly*, Vol. 99, No. 2 (Summer, 1998), pp. 134-163.
- [9] Julia Ruuttila Papers MSS 250 Box 2, Oregon Historical Society Archives
- [10] Many college students in America did not support students who protested the war in Vietnam, and were frustrated by the disruptions they created on college campuses. For some, the Kent State shooting were not seen as a tragedy, and they blamed the students for the shootings.
- [11] Film: *Operation Abolition* (1960)
- [12] Toy, Eckard: “The Right Side of the 1960s: The Origins of the John Birch Society in the Pacific Northwest,” *Oregon Historical Quarterly*, Vol. 105, No. 2 (Summer, 2004), pp. 260-283.
- [13] Serbulo, Leanne and Gibson, Karen: p. 6.

- [14] *Report on Problems of Racial Justice in Portland* from Portland City Club Bulletin June 14, 1968, p. 32 in Stella Maris House Collection Box 3 Mss 1585, Oregon Historical Society Archives
- [15] *The Oregonian*, August 18th, 1967.
- [16] Eldridge Cleaver, one of the leaders of the BPP, brought negative attention to the group which helped paint a poor picture of the group as potentially racist and misogynist. Cleaver described rape of women as an insurrectionary act, and therefore appropriate.
- [17] Serbulo, Leanne and Gibson, Karen: p. 13.
- [18] Ibid.
- [19] Ibid. p. 14
- [20] Ibid, p. 89.
- [21] University of Oregon Office of the President, Clark statement re: results of Froines hearing.
- [22] President Geoffrey Wolfe Records BOX 14, Student Protest Folder, Portland State University Archives
- [23] Ibid.
- [24] Tom McCall Papers Collection, Mss 625, Box 11, Oregon Historical Society Archives.
- [25] *New Republic*, September 12, 1970.
- [26] Tom McCall Papers, MSS 625 Box 10, Oregon Historical Society.
- [27] Ibid.
- [28] Presidential Address, November 3rd, 1969.
- [29] Presidential Address, April 30th, 1970.
- [30] Tom McCall Papers.
- [31] Vanguard Newspaper, Portland State University, May 5th 1970.
- [32] *Vanguard*, Portland State University, May 8th, 1970.
- [33] President Gregory Wolfe Records BOX 14 Portland State University Archives
- [34] *The Oregonian*, May 7th, 2010.
- [35] Report of the Police Relations Committee of the Portland Metropolitan Human Relations Commission: Gregory Wolfe Papers, PSU Archives.
- [36] Ibid.
- [37] *Vanguard Newspaper*, May 12th, 1970.
- [38] *Vanguard Newspaper*, May 15th, 1970
- [39] Tom McCall Papers. *Vietnam and Protest* folder.
- [40] *Fire at Eden's Gate*, p. 284.
- [41] Vietnam War: Vertical File Folder, OHS
- [42] *Fire at Eden's Gate*, p. 287.
- [43] Peoples' Army Jamboree Pamphlet, President Geoffrey Wolfe Records, Box 14, Portland State University Archives
- [44] Tom McCall Papers, Oregon Historical Society, MSS 625 Box 11.
- [45] *Fire at Eden's Gate*, p. 290
- [46] Ibid. p. 294
- [47] Tom McCall Papers Collection Mss 625 Box 11.

[48] Ibid.

[49] Walth, Brent, *Fire at Eden's Gate: Tom McCall and the Oregon Story*, (Oregon Historical Society Press: Portland, 1994) p. 300.

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1.9: End of the Twentieth Century and Beyond

End of the Twentieth Century and Beyond

Oregon, like the Pacific Northwest, is a place of natural wonder and majesty. Historian William G. Robbins stated a common historical phenomenon that dominant cultures and their people shape the landscape they inhabit. When Euro-Americans arrived in the region, they rapidly changed the indigenous peoples' imprint on the Willamette Valley. During that transformation, the Euro-Americans envisioned an Edenic paradise while the Native American communities witnessed an unfolding tragedy.^[1] Earlier histories framed the Oregon Trail as a linear narrative of progress and lionized the pioneers of the Oregon Trail as the progenitors of civilization. According to these antiquated histories, the pioneers tilled and tamed the "wild, savage wilderness", and provided the foundation of a new society, an agricultural republic. The historiography of the American West described the heroic odyssey of the pioneers forging ahead to the Land of Eden challenged by great odds and fueled by courage; consequently, the Native American experience was elided, and merely served as an obstacle in the narrative. The ideological pull of the heroic pioneer narrative united ideas of progress and tenacity with technological advancement and change as Oregon was transformed again by industrialization in the twentieth century. Technological ingenuity in hydroelectric and nuclear power symbolized mankind's continued mastery over nature in this traditional ethos, but it was growth story that had significant limitations and excesses. Pollution, climate change, human alienation and species depletion are only a sliver of the environmental concerns that have arisen since the beginning of the age of technocratic change and progress. If human communities do not meet these existential threats to their economic and physical well-being, then we may be left without viable options. But fortunately, Oregon met this challenge and had an environmental pioneer of its own, Governor Thomas Lawson McCall.



Governor Thomas Lawson McCall

During the 1960s, the state government began to enact legislation to preserve the beauty of Oregon and its economic vitality through sustainable environmental practices and policies. Governor Tom McCall wanted to leave behind a living legacy for others to enjoy across the state. During McCall's tenure, Oregon embraced a preservationist ethos promoting land use laws, restricting urban sprawl, public access to beaches, regulating polluters, and investment and development of sustainable energy resources. Tom McCall was as an ardent environmentalist bitterly opposed to what he called "the grasping wastrels" of industrialism.

Although many environmental policies were established, bitter culture wars over land use and natural resource extraction disrupted these policies. Many working Oregonians who relied on the timber or mining industries found themselves at odds with regulations that promoted preservation and sustainability over highly profitable businesses. In 1990, the Northern Spotted Owl was listed on the Endangered Species list and scientists thought the species was on the brink of extinction. This decision raised the ire of the timber industry and provided fuel to a culture war over environmental concerns. Radical groups like "Earth First!" have made an impression on local politics and received media attention from tree-sittings to protest the timber industry, to destruction of logging equipment. Oregonians on the other side of the political aisle have clashed with environmental protestors often referring to them as "eco-terrorists." The spirit of the radical protest movement from the sixties continued through the end of the twentieth century and channeled environmentalism as its agita and passion.

Latin Americans, Farm Workers, and the Valley Migrant League of Oregon

The Latin American community emerged in the American West well before Oregon became a state. Vaqueros (cowboys) and mule packers assisted American cattlemen and helped drive cattle into the Oregon Territory. By the end of the nineteenth century,

laborers from Mexico and Central America arrived in Oregon to work in the railroad industry, and in 1920 Mexicans were exempted from the restrictive 1917 Immigration Act and worked in agriculture, mining and canneries. But then things turned sour during the Great Depression and Latinx laborers were targets of nativist rhetoric and coercion. Across the West and Oregon, tens of thousands of Mexicans, including those of U.S. ancestry, were deported from the country. When American was pulled into World War II, the war effort drew laborers away from the farms and into the munition factories of cities like Portland. Well over 500 thousand Latinos served in the U.S. armed forces during the war. On the home front, Pacific Coast states experienced a shortage of farm workers from the migration of people to urban centers. The federal government recruited an estimated 15,136 Mexican men at Oregon State University to contribute to the food-for-victory campaign in the state. Public Law 45, known as the Bracero Program, was a bi-national agreement where the federal government began to contract Mexican men “braceros” for temporary employment in the United States. According to the agreement, men would be paid a minimum wage, receive health care and adequate housing, and were to be protected from social discrimination. The efforts and courage of the Latin American community were profoundly significant in helping the United States achieve victory overseas and domestically. They kept commerce flowing at home, provided valuable resources to the American military, and honorably served their country.

In 1951, Public Law 78 enacted under President Harry S. Truman, brought thousands more workers from Mexico to the U.S. to work in agriculture. Several strikes among farm workers occurred in the Willamette Valley, and Southern Oregon in places like Klamath Falls and Medford. Eventually the Bracero Program was phased out, but the need for farm laborers and migrant workers remained in agricultural production in Oregon and the United States.

Latin American Farm Workers and the Valley Migrant League of Oregon

Oregon farms thrive in the Willamette Valley and are a critical part of domestic and international markets. Latin American laborers are a critical part of the agricultural sector in Oregon’s economy. State and federal agencies helped farms employ many Mexican-American migrant families who were vastly unprotected and underrepresented politically. The Oregon State Council of Churches was one of the first organizations to begin to address the migrants’ needs. The Council provided social services to migrant camp residents at Independence, McMinnville, and other locations. The Council of Churches provided testimony before the Commission on Migratory Labor urging inspection of health conditions at Oregon farm labor camps. The Church’s activist role provided a crucial ally to Latin American communities in Oregon. The increasing demand for farming jobs led to the development of permanent Hispanic communities, and the Catholic Church served as an important social institution that helped build and sustain their communities.

The 1960s were a watershed decade for the Hispanic communities of Oregon. Several church and civic leaders in the Willamette Valley, and other advocates of migrant workers, received an Office of Economic Opportunity grant and established the Valley Migrant League (VML) in Woodburn. The Office of Economic Opportunity was a critical part of President Lyndon Johnson’s War on Poverty domestic program. This organization served seven counties in the Willamette Valley. Their mission focused on education of agricultural laborers, advancement to white collar employment, and whole family care. By 1967, the League reported more than 200 migrant laborers had received high school diplomas through VML supported programs. The Valley Migrant League supported professional development, counseling and placement services for seasonally employed farm workers. The League had five Opportunity Centers with programs in adult education, child care and services, field contacts, and a bilingual newspaper. The opportunity centers were located in Aumsville, Jefferson, Dayton, Hillsboro, Independence, Salem, Sandy-Gresham, and Woodburn.



César Chávez at United Farm Workers rally in Delano, California

The Valley Migrant League felt poverty breeds poverty, and they wished to break that trend. The League was dedicated to social reform and autonomy for many farm workers who faced exploitation and harsh treatment. “Men should not stumble through life,

but should walk upright, economically and socially as well as spiritually.” The Valley Migrant League sought empowerment of migrants, ex-migrants and seasonal farm workers under the mission of social justice and economic betterment. The VML employed cooperative strategies where families helped each other build homes. They obtained loans from the Farmers Home Administration (FHA) and used funds to buy land and materials. The Federal Housing Authority and Farm Home Administration funded the operation, but its management was under the VML board of directors. Migrant laborers were facing challenges with housing, food, sanitation, health and sanitation, child care and education. Although they are key to the success of Oregon agriculture, those without U.S. citizenship status face increasing discrimination from the federal government and conservative political forces.[2]

Cesar Chavez and Boycotts in Oregon

Beginning in 1970, Chicano (Mexican-American) farm workers took total control of the Valley Migrant League. The Valley Migrant League was suspected by the Federal Bureau of Investigation and other police agencies to harbor subversives and the League was considered prone to communist infiltration.[3] They received opposition from local communities and farmers who did not want outside interference with farm labor. The VML became the heart and soul of the Chicano Movement of Oregon, and maintained an active presence in the Latin American community. Senators Ted Kennedy, Mark Hatfield, and George McGovern became aware of the impoverished conditions of farm workers in the Willamette Valley through the advocacy work of the VML. Senator McGovern toured a farm labor camp in the Willamette Valley and was disturbed by the working conditions. A substantial amount of child labor was used in the agricultural sector in the 1970s; one-fourth of farm wage workers, or as many as 800,000, were under the age of 16 and some were as young as six. In the Willamette Valley, 75 percent of the strawberry and bean harvesters were children who were exposed to pesticides like DDT while working in the fields. Farm work was one of the most hazardous occupations at the time because of chemical pesticides, and laborers suffered physical ailments from exposure to the chemicals.

Cesar Chavez, the nationally renowned advocate for migrant farm laborers, came to Portland State University to speak at a rally regarding a grape boycott in the United States in 1969. Chavez was cut from a similar cloth as the Reverend Martin Luther King, Jr. He was a non-violent social activist, and promoted the interests of Latin-American farm workers along with Dolores Huerta. He, like King, was an inspiring speaker who fired up the imagination and energies of Latin-Americans through his understanding of their plight. Chavez came to Portland State University to speak at a rally about the grape boycott on December 17th, 1969. “But God knows that we are not beasts of burden, we are not agricultural implements or rented slaves, we are men. We are men locked in a death struggle against the nation’s largest corporate interests.”[4] Chavez was criticized for bringing outside agitators into migrant communities. Social awareness for farm laborers came about from the Portland Boycott Committee, which focused its attention on a grape strike. The grape boycott was dealt a blow by the federal government when the U.S. Army increased their grape purchases by 350% from non-union growers. Portland longshoremen refused to handle the grapes grown by scab workers. Farm workers of the American Federation of Labor and Congress of Industrial Organizations (AFL-CIO) blocked the shipment of non-union grapes to South America.

The Valley Migrant League also worked to enhance opportunities of Chicanos in Oregon colleges and Universities. Through the VML’s scholarship program, the first four migrant workers to receive degrees in Oregon graduated from Linfield College in McMinnville. Cesar Chavez spoke at Mt. Angel College, where ex-migrants transformed the college into the Colegio César Chávez from 1973 to 1983, and he supported laborers pursuing higher education as a necessary step to their independence, “Education does not change things overnight. It makes change possible and irreversible. It cannot be stolen or taken away. It can be given away without losing any of it. It is something to hand down to your children and grandchildren like a family treasure. For me education is very important.” Latinx people are the state’s most populous ethnic minority, and they have been able to establish thriving cultural centers and community buildings in cities like Woodburn, Salem, and Hillsboro. No longer are they voiceless, through activism and social awareness, Latin Americans have achieved political representation in Oregon. They are a critical part of the Oregon labor force, and have an enduring legacy in Oregon’s historical development.

Civil Rights for the Gay Community of Oregon

Another group that would achieve autonomy and receive protections from the state government during the dawning of the 21st century was the LGBTQA+ community. In 1971, Oregon rescinded sodomy laws, which targeted gay men, and Portland’s first gay church and newspaper were organized. Oregon has experienced more ballot measure fights over LGBTQA+ rights than any other state. Starting in 1988, the Oregon Citizen’s Alliance (OCA) convinced Oregon voters to overturn Gov. Neil Goldschmidt’s executive order that banned discrimination in state government based on sexual orientation. The conservative group led by Lon

Mabon, whose rallying cry was “no special rights,” proposed a string of other state and county measures. The group cited ideas linked to the “evils of homosexuality” and claimed gay people were sexual predators of children.

In 1992, voters defeated the OCA’s signature initiative, Measure 9, which would have declared homosexuality “abnormal and perverse”. The Supreme Court case of *Lawrence v. Kansas* in 2003 invalidated anti-sodomy laws as a violation of an individual’s right to privacy. In 2004, voters passed Measure 36, amending the Oregon Constitution to ban gay marriage, and gay marriage was banned in 10 other states. Then, in 2007, Basic Rights Oregon scored a double victory in the Oregon Legislature. Lawmakers passed a domestic partnership law, enabling same sex couples to enjoy the same marriage rights as other couples under the state law, and a law barring discrimination against lesbians, gays, bisexuals and transgendered people. In 2008, a landmark decision entitled same sex couples to most of the benefits and responsibilities of married couples, and was met with opposition. By 2015, Oregon paved the way in support of same-sex marriage after U.S. District Court Judge Michael McShane ruled that the state’s 2004 constitutional amendment banning such marriages was unconstitutional in relation to the equal protection clause of the 14th Amendment.

Native American tribes have historically accepted LGBTQ/Two-Spirit same-sex relationships. The Coquille Indian Tribe of Coos Bay, Oregon, adopted a law in 2008 that recognizes same-sex marriage. The law extends to gay and lesbian partners, one of which must be Coquille, and shall have all Tribal benefits attached to their marriage. They were the first federally recognized tribe to legalize same-sex marriage. The tribe owns 6,400 acres on southern Oregon coastland and is the second largest employer in Coos County. Ken Tanner, Tribal Chief of the Coquille from 1992 to 2014, stated “Native Americans are sensitive to the discrimination of any kind...For our tribe we want people to walk in the shoes of other people and learn to respect differences. Through that we think we build a stronger community.”[5]

Environmental Leadership and Tom McCall’s Legacy

Oregon faces newer challenges posed with climate change, including disappearing snowpack, rising temperatures and annual widespread forest fires. At the same time, Oregon is building a vast infrastructure of renewable energy resources for the economic needs of the future. The people of Oregon have grown to love their land and its beauty, and have gained a respect for the delicate balance between people and their environment. In the spirit of Tom McCall, who helped preserve Oregon’s natural beauty, Oregon has retained a profound environmental legacy which first began when he was a journalist working for the Portland NBC TV station, KGW. In 1962, he created an exposé of environmental degradation that focused on pollution in the Willamette River, called “Pollution in Paradise.” The program fingered Crown Zellerbach and Georgia Pacific as some of the polluters and chastised federal agencies for failing to enforce environmental laws. McCall became an environmental reformer while in office, and in 1967 he warned of “the encroachment of crass commercialism” upon Oregon’s beaches and the threats of privatization of the real estate industry.

House Bill 1601 defined beach areas and “declared that public rights are included within state recreation areas...[and] protected and preserved the rights of the public.” McCall was also instrumental in the conservation of 80 percent of the land area adjacent to the Willamette River in Oregon, which included a six-point program for public use and enjoyment: a recreational trail system, hiking, cycling and riding along the river banks, a scenic drive system, and a conservation easement system providing protection of river banks from construction projects. McCall’s environmental legacy was placed in the public’s hands through his promise, “This is your land, to own, enjoy and care for.” Some of his responses to grade school students who wrote to him sharing their concerns over pollution in Oregon were ahead of their time, “We need to cut down our car use. We need a change in attitude so we can think in terms of having clean air and water and well cared for land and not only think of getting in products and dollars.”[6] McCall also spearheaded the nation’s first bottle bill in 1971, and the following year he approved shutting down the Boise Cascade Salem pulp mill for failure to cut its emissions that were polluting the Willamette River. When workers of the mill protested, McCall told them they were being used as pawns for the company’s profit and gain. In order for industry to play fair in Oregon, McCall felt, “industry must come here on our terms, play the game by our environmental rules and be members of the Oregon family.”[7] He also founded the Land Conservation and Development Commission, an agency that both created and enforced much stricter planning regulations than what were previously in place. McCall was also concerned about population growth compromising the quality of life in Oregon when he spoke at a Chamber of Commerce meeting and stated, “visit us again and again...But for heaven’s sake, don’t come here to live.” People in Southern Oregon, especially, can be overheard playfully commenting on the number of Californians that retire in their communities. Many young people who grew up in California attend college in Oregon, with many college football fans, especially, attending the University of Oregon in the past 5 years.[8]

Oregonians are vigilant and divided over environmental protections, and demand transparency from the federal government which to many critics has become an accessory of non-renewable energy lobbying interests and “the grasping wastrels of the land.”^[9] Oregon is faced with new challenges as sustainable energy sources continue to develop. Several hydroelectric dams on the Klamath River are slated for removal in the coming years, and large solar and industrial hemp farms are popping up in Klamath and Lake Counties. In 2016, Oregon passed the Clean Energy and Coal Transition Act committing the state to be coal free and doubling its investment in solar and wind energy technologies. Currently, coal power is significantly more expensive than cleaner alternatives like natural gas, solar and wind power whose cost has plummeted over the past few years. As these changes take shape, Oregonians continue to work together to find a balance between infrastructure development and preserving our natural and cultural heritage.

Epilogue: Civil Society and the Dream of Eden

“May your quest go well.

May we continue to find accord and high purpose.

May we forever prove (by our action) that people can join together for mutual benefit and greater good.

May we continue to work together.

May we face and endure every winter with spring . . . forever on our mind.”

Tom McCall Farewell Address to Oregon Legislature 1975

Oregon is a place of growth and progress, and a natural preserve or sanctuary. It is a community of activists, hard-working laborers, heroes and patriots, the forgotten, and a people forged in the American spirit. We look towards the future in unity. Together, Oregonians will build upon their hopes and dreams bridging gaps of ignorance by bringing people together and listening to each other.

^[1] Robbins, William: “Western Voices: Willamette Eden: The Ambiguous Legacy,” *Oregon Historical Quarterly*, Vol. 99, No. 2 (Summer, 1998), pp. 189-218

^[2] In 1987 Oregon became a sanctuary state which prohibits state and local law enforcement from using public resources to arrest or detain people whose only crime is being in the country in violation of federal immigration laws. An activist group called Oregonians for Immigration Reform sought to repeal the law which would allow federal officials to enter cities and remove people who are considered “illegals”. In 2018, Oregonians voted down Measure 105 by a large margin which would have repealed the sanctuary law.

^[3] The burglary of the FBI office in Philadelphia happened on March 8th, 1971 during the heavyweight boxing match between Muhammad Ali and George Frazier led by Keith Forsyth and other conspirators. They revealed a trove of documents including COINTELPRO which was a secret surveillance operation conducted by J. Edgar Hoover’s FBI intended to destroy groups and individuals labelled subversive such as the Black Panthers, Martin Luther King, Jr, Nation of Islam and the Valley Migrant League.

^[4] *Valley Migrant League Records Collection*, OHS Archives.

^[5] *The Oregonian*, August 21st, 2008

^[6] Tom McCall Papers MSS 625-1 Box 3.

^[7] http://www.oregonlive.com/century/1970_index.html

^[8] Kaitlin Hakanson.

^[9] A phrase coined by Governor Tom McCall.

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Index

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